



Markel eRisk Hub



Welcome to the Markel eRisk Hub!

Our risk management portal addressing your data privacy and security concerns

We recognize that your data is one of your most valuable assets and protecting that asset requires on-going effort. To assist you in managing your data security, we are pleased to provide you with free access to our eRisk Hub. This online portal provides quick and easy access to a wealth of resources for understanding security as well as combating, defending and recovering from a data breach incident.

This service is provided free of charge with the purchase of your Markel DataBreach_{8M} policy. We invite you to explore the site and take advantage of the wealth of information it offers. Key

features of our eRisk Hub portal include:

News Center – cyber risk stories, security and compliance blogs, security news, risk management events, and helpful industry links

Learning Center – best-practices articles, white papers, and webinars from leading technical and legal practitioners

Risk Manager Tools – assists you in managing your cyber risk, including research tools, what-if calculators, and state breach notification laws

Incident Roadmap – includes suggested steps to take following a network or data breach incident and free consultation with a Breach Coach®

eRisk Resources – a directory to quickly find external resources with expertise in pre- and post-breach disciplines

Register for your **free access** today:

1. Go to <https://www.eriskhub.com/markel.php>
2. Complete the registration form in the center of the page. Your Access Code is **12689**.
3. Once you've completed registration, you can log-in immediately with the User ID and password you created during registration.



MARKEL

EVANSTON INSURANCE COMPANY

10275 West Higgins Road, Suite 750
Rosemont, IL 60018

INSURANCE POLICY

Coverage afforded by this policy is provided by the Company (Insurer) and named in the Declarations.

In **Witness Whereof**, the company (insurer) has caused this policy to be executed and attested and countersigned by a duly authorized representative of the company (insurer) identified in the Declarations.

Kathleen Anne Sturgeon

Secretary

Al Markel

President



EVANSTON INSURANCE COMPANY

MARKEL'S DESIGNED PROTECTION® RISK MANAGEMENT RESOURCES FOR PROFESSIONALS

Welcome to Markel's Designed Protection® leading edge Risk Management Resources.

The following risk management resources are available exclusively to our policyholders at our website www.markelcorp.com/riskmanagement at no additional cost.

HOW TO QUICKLY ACCESS RISK MANAGEMENT RESOURCES:

- Step 1. Go onto our website, www.markelcorp.com/riskmanagement.
- Step 2. Select the Designed Protection services that apply to your policy, to get to the Login screen.
- Step 3. Review the disclaimer, enter your current policy number and click on the button below to access. Your policy number is MKLV1PEO004169

Available Risk Management Resources include:

Designed Protection® Risk Management Telephone Hotline for Professional Service Providers

This confidential telephone hotline is staffed by a panel of risk management experts that are available to answer general risk management questions.

Designed Protection® for Professional Services Firms – Leading Edge Strategies for Effective Risk Management

This Guide provides information about principles of effective risk management including client satisfaction, billing practices and prompt and effective action in the event of an error or omission.

Top 10 Tips for Liability Loss Avoidance for Professional Services Providers

A concise, bullet point summary of 10 liability risk avoidance strategies.

Please check our website regularly as additional resources are added throughout the year.



EVANSTON INSURANCE COMPANY

PRIVACY NOTICE

U. S. Consumer Privacy Notice

Rev. 1/1/2020

FACTS	WHAT DOES MARKEL GROUP OF COMPANIES REFERENCED BELOW (INDIVIDUALLY OR COLLECTIVELY REFERRED TO AS "WE", "US", OR "OUR") DO WITH YOUR PERSONAL INFORMATION?
Why?	In the course of Our business relationship with you, We collect information about you that is necessary to provide you with Our products and services. We treat this information as confidential and recognize the importance of protecting it. Federal and state law gives you the right to limit some but not all sharing of your personal information. Federal and state law also requires Us to tell you how We collect, share, and protect your personal information. Please read this notice carefully to understand what We do.
What?	The types of personal information We collect and share depend on the product or service you have with Us. This information can include: • your name, mailing and email address(es), telephone number, date of birth, gender, marital or family status, identification numbers issued by government bodies or agencies (i.e.: Social Security number or FEIN, driver's license or other license number), employment, education, occupation, or assets and income from applications and other forms from you, your employer and others; • your policy coverage, claims, premiums, and payment history from your dealings with Us, Our Affiliates, or others; • your financial history from other insurance companies, financial organizations, or consumer reporting agencies, including but not limited to payment card numbers, bank account or other financial account numbers and account details, credit history and credit scores, assets and income and other financial information, or your medical history and records. Personal information does not include: • publicly-available information from government records; • de-identified or aggregated consumer information. When you are no longer Our customer, We continue to share your information as described in this Notice as required by law.
How?	All insurance companies need to share customers' personal information to run their everyday business. In the section below, We list the reasons financial companies can share their customers' personal information; the reasons We choose to share; and whether you can limit this sharing. We restrict access to your personal information to those individuals, such as Our employees and agents, who provide you with insurance products and services. We may disclose your personal information to Our Affiliates and Nonaffiliates (1) to process your transaction with Us, for instance, to determine eligibility for coverage, to process claims, or to prevent fraud, or (2) with your written authorization, or (3) otherwise as permitted by law. We do not disclose any of your personal information, as Our customer or former customer, except as described in this Notice.

Reasons We can share your personal information	Do We share?	Can you limit this sharing?
For Our everyday business purposes and as required by law – such as to process your transactions, maintain your account(s), respond to court orders and legal/regulatory investigations, to prevent fraud, or report to credit bureaus	Yes	No
For Our marketing purposes – to offer Our products and services to you	Yes	No
For Joint Marketing with other financial companies	Yes	No
For Our Affiliates' everyday business purposes – information about your transactions and experiences	Yes	No
For Our Affiliates' everyday business purposes – information about your creditworthiness	No	We don't share
For Our Affiliates to market you	No	We don't share
For Nonaffiliates to market you	No	We don't share
Questions? Call (888) 560-4671 or email privacy@markel.com		

Who We are	
Who is providing this Notice?	A list of Our companies is located at the end of this Notice.

What We do	
How do We protect your personal information?	We maintain reasonable physical, electronic, and procedural safeguards to protect your personal information and to comply with applicable regulatory standards. For more information, visit www.markel.com/privacy-policy .
How do We collect your personal information?	We collect your personal information, for example, when you • complete an application or other form for insurance • perform transactions with Us, Our Affiliates, or others • file an insurance claim or provide account information • use your credit or debit card We also collect your personal information from others, such as consumer reporting agencies that provide Us with information such as credit information, driving records, and claim histories.
Why can't you limit all sharing of your personal information?	Federal law gives you the right to limit only • sharing for Affiliates' everyday business purposes – information about your creditworthiness • Affiliates from using your information to market to you • sharing for Nonaffiliates to market to you State laws and individual companies may give you additional rights to limit sharing. See the Other Important Information section of this Notice for more on your rights under state law.

Definitions	
Affiliates	Companies related by common ownership or control. They can be financial and nonfinancial companies. • Our Affiliates include member companies of Markel Group.
Nonaffiliates	Companies not related by common ownership or control. They can be financial and nonfinancial companies. • Nonaffiliates that We can share with can include financial services companies such as insurance agencies or brokers, claims adjusters, reinsurers, and auditors, state insurance officials, law enforcement, and others as permitted by law.
Joint Marketing	A formal agreement between Nonaffiliated companies that together market financial products or services to you. • Our Joint Marketing providers can include entities providing a service or product that could allow Us to provide a broader selection of insurance products to you.

Other Important Information
For Residents of AZ, CT, GA, IL, ME, MA, MN, MT, NV, NJ, NC, OH, OR, and VA: Under state law, under certain circumstances you have the right to access and request correction, amendment or deletion of personal information that We have collected from or about you. To do so, contact your agent, visit www.markel.com/privacy-policy, call (888) 560-4671, or write to Markel Corporation Privacy Office, 4521 Highwoods Parkway, Glen Allen, VA 23060. We may charge a reasonable fee to cover the costs of providing this information. We will let you know what actions We take. If you do not agree with Our actions, you may send Us a statement.
For Residents of CA: You have the right to review, make corrections, or delete your recorded personal information contained in Our files. To do so, contact your agent, visit www.markel.com/privacy-policy, call (888) 560-4671, or write to Markel Corporation Privacy Office, 4521 Highwoods Parkway, Glen Allen, VA 23060. We do not and will not sell your personal information. For the categories of personal information We have collected from consumers within the last 12 months, please visit: www.markel.com/privacy-policy.
For Residents of MA and ME: You may ask, in writing, for specific reason, for an adverse underwriting decision.
Markel Group of Companies Providing This Notice: City National Insurance Company, Essentia Insurance Company, Evanston Insurance Company, FirstComp Insurance Company, Independent Specialty Insurance Company, National Specialty Insurance Company, Markel Bermuda Limited, Markel American Insurance Company, Markel Global Reinsurance Company, Markel Insurance Company, Markel International Insurance Company Limited, Markel Service, Incorporated, Markel West, Inc. (d/b/a in CA as Markel West Insurance Services), Pinnacle National Insurance Company, State National Insurance Company, Inc., Superior Specialty Insurance Company, SureTec Agency Services, Inc. (d/b/a in CA as SureTec Agency Insurance Services), SureTec Indemnity Company, SureTec Insurance Company, United Specialty Insurance Company, Inc.



EVANSTON INSURANCE COMPANY

TEXAS IMPORTANT NOTICE

Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company or HMO first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company or HMO. If you don't, you may lose your right to appeal.

EVANSTON INSURANCE COMPANY

To get information or file a complaint with your insurance company or HMO:

Call: Assistant General Counsel at 1-800-507-7626

Online: www.markel.com

Email: legalregulatory@markel.com

Mail: 10275 West Higgins Rd, Suite 750, Rosemont, IL 60018

The Texas Department of Insurance

To get help with an insurance question or file a complaint with the state:

Call with a question: 1-800-252-3439

File a complaint: www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail: Consumer Protection, MC: CO-CP, Texas Department of Insurance, P.O. Box 12030, Austin, TX 78711-2030

¿Tiene una queja o necesita ayuda?

Si tiene un problema con una reclamación o con su prima de seguro, llame primero a su compañía de seguros o HMO. Si no puede resolver el problema, es posible que el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés) pueda ayudar.

Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas o de apelaciones de su compañía de seguros o HMO. Si no lo hace, podría perder su derecho para apelar.

EVANSTON INSURANCE COMPANY

Para obtener información o para presentar una queja ante su compañía de seguros o HMO:

Llame a: Assistant General Counsel al 1-800-507-7626

Online: www.markel.com

Correo electrónico: legalregulatory@markel.com

Dirección postal: 10275 West Higgins Rd, Suite 750, Rosemont, IL 60018

El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros o para presentar una queja ante el estado:

Llame con sus preguntas al: 1-800-252-3439

Presente una queja en: www.tdi.texas.gov

Correo electrónico: ConsumerProtection@tdi.texas.gov

Dirección postal: Consumer Protection, MC: CO-CP, Texas Department of Insurance, P.O. Box 12030, Austin, TX 78711-2030



EVANSTON INSURANCE COMPANY

IMPORTANT POLICYHOLDER NOTICE

TEXAS SURPLUS LINES NOTICE

This insurance contract is with an insurer not licensed to transact insurance in this state and is issued and delivered as surplus line coverage under the Texas insurance statutes. The Texas Department of Insurance does not audit the finances or review the solvency of the surplus lines insurer providing this coverage, and the insurer is not a member of the property and casualty insurance guaranty association created under Chapter 462, Insurance Code. Chapter 225, Insurance Code, requires payment of a 4.85% (percent) tax on gross premium.

EVANSTON INSURANCE COMPANY

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <https://www.treasury.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.



EVANSTON INSURANCE COMPANY

NOTICE TO POLICYHOLDERS CLAIM REPORTING

If you purchased DataBreach coverage as a part of this policy with Markel and are experiencing a data breach or believe you have experienced a data breach, please immediately report a new claim under this policy to:

MARKEL CYBER SUPPORT HOTLINE

A live operator will connect you with breach response counsel. Markel claims and breach response counsel can deploy services and resources to rapidly address a policy event.

Phone: 844-462-7535 (844) 4MARKEL

For all other claim reporting that does not require immediate assistance, please report a new claim under this policy to:

newclaims@markelcorp.com

For general claims inquiries after a claim has been reported, please email:

markelclaims@markelcorp.com

In order for us to expedite the handling of your claim and quickly refer it to the appropriate party, please have the following information available:

- Claim number (or report as new)
- Your name, contact information and position with the Named Insured
- Date of loss
- Policy number and insured name
- Details of loss

Our address and additional contact information are as follows:

Markel Claims
P.O. Box 2009
Glen Allen, VA 23058-2009
Phone: 800-362-7535 (800) 3MARKEL
Fax: 855-662-7535 (855) 6MARKEL

Markel understands the importance of having knowledgeable claims professionals prepared to answer your questions with personal attention and expertise. With claims professionals located across four time zones, you are sure to find the claims assistance you need -- when you need it.

**PLEASE REFER TO THE POLICY FOR ANY NOTICE AND REPORTING PROVISIONS
AND DUTIES IN THE EVENT OF LOSS OR DAMAGE TO COVERED PROPERTY.**



EVANSTON INSURANCE COMPANY

CYBER PERILS DISCLOSURE NOTICE

IMPORTANT NOTICE TO POLICYHOLDER:

THIS DISCLOSURE NOTICE DOES NOT PROVIDE ANY COVERAGE. PLEASE READ YOUR POLICY CAREFULLY TO DETERMINE THE TERMS, LIMITS, CONDITIONS, ATTACHMENT POINTS, EXTENSIONS, AND ENDORSEMENTS THEREIN. ONLY THE PROVISIONS OF THE POLICY DETERMINE THE SCOPE OF INSURANCE PROTECTION. IF THERE IS ANY CONFLICT BETWEEN THE POLICY AND THIS NOTICE, **THE PROVISIONS OF THE POLICY SHALL PREVAIL.**

CYBER PERILS

Cyber perils have potential impact beyond the scope of coverage in this policy. This policy is not a replacement for any dedicated cyber insurance policy, which may offer broader and specialized coverages and services for first and third party losses resulting from or alleging cyber perils, such as costs associated with the following: breach response, crisis management, business interruption, restoration, cyber extortion, or data recovery.

For information regarding dedicated cyber coverages and services, such as those offered under the Markel Cyber 360™ offering, please contact your insurance agent.

EVANSTON INSURANCE COMPANY

FORMS SCHEDULE

<u>FORM NUMBER</u>	<u>FORM NAME</u>
MEDB 5700 12 18	Markel eRisk Hub
MJIL 1000 08 10	Policy Jacket
MJIL 1000 08 10	Policy Jacket/Signature Page
MPEO 5000 08 18	Markel's Designed Protection Risk Management Resources For Professionals
MPIL 1007 01 20	Privacy Notice
MPIL 1009-TX 07 23	Texas Important Notice
MPIL 1010-TX 05 10	Texas Surplus Lines Notice
MPIL 1083 04 15	U.S. Treasury Department's Office Of Foreign Assets Control ("OFAC") Advisory Notice To Policyholders
MPIL 1116 02 20	Notice To Policyholders Claim Reporting
MPIL 5007 02 23	Cyber Perils Disclosure Notice
MDIL 1001 08 11	Forms Schedule
MDEO 5000 10 20	Declarations
MEE0 5000 10 20	Professional Liability Insurance Coverage Part
MEE0 5004 10 20	Markel Cyber 360SM Insurance Coverage Part
MEE0 5005 10 20	Media Offense Liability Insurance For Professionals Coverage Part
MEE0 5700 10 20	Common Policy Conditions
MEE0 5256 10 20	Minimum Earned Premium
MEE0 5306 10 20	Exclusion - Medical Malpractice
MEE0 5309 10 20	Exclusion - Nuclear Energy Liability (Broad Form)
MEE0 5316 10 20	Exclusion - Asbestos
MEE0 5337 10 20	Exclusion - Violation Of Statutes Related To Personal Data
MEE0 5354 05 21	Amended Pollution Exclusion
MEE0 5418-TX 10 20	Texas Amendatory
MEE0 5550 03 20	Deletion of Aggregate Deductible
MEE0 5564 02 21	Amended Definition Of Social Engineering Incident
MEE0 5578 05 21	Amend Media Offense To Include Professional Services
MEE0 5579 05 21	Information Technology Services
MEE0 5589 02 24	Medical Billing Or Revenue Cycle Management
MEIL 1200 03 23	Service Of Suit
MEIL 1330 08 17	Exclusion - Unmanned Aircraft
MIL 1214 09 17	Trade or Economic Sanctions
MIL 1219 09 20	Cap On Losses From Certified Acts Of Terrorism
MPL-TERR-1 01 15	Confirmation Of Certified Acts Of Terrorism Coverage - Terrorism Risk Insurance Act
MECY 5235 08 24	Aon Broadened Media Liability
MECY 5235 08 24	Aon Cyfi Panel Enhancement

MDIL 1001 08 11



EVANSTON INSURANCE COMPANY

DECLARATIONS

SOME COVERAGE PARTS ARE CLAIMS MADE AND REPORTED. PLEASE READ THE COVERAGE PART(S) CAREFULLY. CLAIMS-MADE AND REPORTED COVERAGE PARTS REQUIRE THAT A CLAIM BE MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR EXTENDED REPORTING PERIOD, IF APPLICABLE, AND REPORTED TO THE COMPANY IN WRITING DURING THE POLICY PERIOD OR EXTENDED REPORTING PERIOD, IF APPLICABLE, BUT NO LATER THAN 60 DAYS AFTER THE DATE OF EXPIRATION OF THE POLICY PERIOD OR DURING THE EXTENDED REPORTING PERIOD, IF APPLICABLE.

PLEASE NOTE THAT AMOUNTS INCURRED AS CLAIM EXPENSES WILL REDUCE THE LIMIT OF LIABILITY AVAILABLE AND WILL BE APPLIED AGAINST THE DEDUCTIBLE OR RETENTION AMOUNT.

POLICY NUMBER: MKLV1PEO004169

RENEWAL OF POLICY: New

Named Insured and Mailing Address (No., Street, Town or City, County, State, Zip Code)

Resource Corporation of America & Recovery of Texas, LLC

1120 Marina Bay Drive

Kemah, TX 77565

Policy Period: From 10/31/2025 to 10/31/2026 at 12:01 A.M. Standard Time at the mailing address shown above.

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, THE COMPANY AGREE WITH THE INSUREDS TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

Producer Number, Name and Mailing Address
213353 Aon Risk Services Northeast, Inc. One Liberty Plaza, 165 Broadway, Suite 3201 New York, NY 10006

Insuring Agreement Schedule

This Policy includes only those Insuring Agreements designated below by "X" (☒) as purchased. If Insuring Agreement is not expressly designated as purchased, this Policy does not include such coverage.

Professional Liability Insurance						
Insuring Agreement		Limits Of Liability		Deductible		Retroactive Date
☒ Professional Liability: or	\$5,000,000	Each Claim	\$250,000	Each Claim	1/1/1900	
☐ Information Technology Professionals:	\$5,000,000	Aggregate	Not Applicable	Aggregate		
Additional Payments						
☒ TCPA Violation:	\$25,000		\$250,000		1/1/1900	
☒ FCRA Violation:	\$25,000		\$250,000		1/1/1900	
☒ Sexual Injury:	\$10,000		\$250,000		1/1/1900	
☒ Third Party Discrimination:	\$25,000		\$250,000		1/1/1900	
Supplementary Payments						
☒ Disciplinary Proceeding:	\$25,000		Not Applicable		1/1/1900	
☒ Loss Of Earnings And Expense Reimbursement:	\$10,000	Per Day	Not Applicable		1/1/1900	
	\$25,000	Maximum				
☒ Pre-Claim Assistance Expenses:	\$5,000		Not Applicable		1/1/1900	
☒ Public Relations Expenses:	\$5,000		Not Applicable		1/1/1900	
☒ Subpoena And Record Request Assistance:	\$5,000		Not Applicable		1/1/1900	
Coverage Part Aggregate Limit Of Liability:	\$5,000,000					
Description of Professional Services: as per Medical Billing Endorsement						

General Liability Insurance For Professionals			
Coverage	Limits Of Liability		Retroactive Date
Each Occurrence:			Each Occurrence
Damage To Premises:	Any One Premises		
Medical Expense:	Each Person		
Personal & Advertising Injury:	Each Person Or Organization	Each Person Or Organization	
General Aggregate:			
Products/Completed Operations Aggregate:			

Supplementary Payments ☐ Loss Of Earnings And Expense Reimbursement:	Per Day Maximum
Description of Specified Products, Goods, Operations, or Premises:	

Markel Cyber 360 SM Insurance			
Insuring Agreements	Insuring Agreement Aggregate Limit Of Liability	Retention Amount/ Retention Period	Retroactive Date
☒ Cyber And Privacy Liability	\$5,000,000	\$250,000 Each Claim	Full Prior Acts
☒ Regulatory Fines	\$5,000,000	\$250,000 Each Claim	Full Prior Acts
☐ Media Offense Liability			
☒ System And Data Rectification Costs And Financial Loss	\$5,000,000	\$250,000 Each Policy Event	Full Prior Acts
☒ Extortion Loss	\$5,000,000	\$250,000 Each Policy Event	Full Prior Acts
☒ Security Business Interruption Event	\$5,000,000	8 Hours Each Event	Full Prior Acts
☒ Contingent Security Business Interruption Event	\$5,000,000	8 Hours Each Event	Full Prior Acts
☒ System Failure Business Interruption Event	\$5,000,000	8 Hours Each Event	Full Prior Acts
☒ Contingent System Failure Business Interruption Event	\$5,000,000	8 Hours Each Event	Full Prior Acts
☒ Privacy Breach Notification And Mitigation Costs	\$5,000,000	\$250,000 Each Policy Event	Full Prior Acts
☒ PCI DSS Assessments	\$5,000,000	\$250,000 Each Policy Event	Full Prior Acts
☒ Social Engineering Loss	\$250,000	\$250,000 Each Policy Event	Full Prior Acts
☒ Telecommunications Fraud And Cryptojacking	\$250,000	\$250,000 Each Policy Event	Full Prior Acts
Markel Cyber 360 SM Insurance Coverage Part Aggregate Limit Of Liability:		\$5,000,000	
Supplementary Payments ☒ Loss Of Earnings And Expense Reimbursement:	\$5,000 Per Day \$25,000 Maximum		

Media Offense Liability Insurance For Professionals				
Coverage	Limits Of Liability		Deductible	Retroactive Date
☒ Media Offense Liability:	\$5,000,000 Each Claim \$5,000,000 Aggregate		\$250,000 Each Claim Not Applicable Aggregate	Full Prior Acts
Supplementary Payments ☒ Loss Of Earnings And Expense Reimbursement:	\$5,000 \$25,000	Per Day Maximum		

Coverage Parts Which Share An Aggregate Limit Of Liability

Coverages designated below by "X" (☒) share the Combined Aggregate Limit Of Liability

- ☒ Professional Liability Insurance
- ☐ General Liability For Professionals
- ☒ Markel Cyber 360SM Insurance
- ☒ Media Offense Liability Insurance For Professionals
- ☐ NONE

Combined Aggregate Limit Of Liability

\$5,000,000

All Damages, Regulatory Fines, Breach Mitigation Expenses, Loss and Claim Expenses under all purchased Coverage Parts, combined.

Premium

Professional Liability Insurance:	Included
General Liability For Professionals:	Not Purchased
Markel Cyber 360 SM Insurance:	Included
Media Offense Liability Insurance For Professionals:	Included
Total Adjusted Annual Premium: \$48,000	

Extended Reporting Period

Additional Period(Months):	Premium Percentage For Extended Reporting Period:
12	100%
24	150%
36	200%

Endorsements

Forms and Endorsements applying to this Coverage Part and made part of this policy at time of issue:

SEE MDIL 1001 ATTACHED

These declarations, together with the Common Policy Conditions and Coverage Form(s) and any Endorsement(s), complete the above numbered policy.

Countersigned: _____
11/17/2025
DATE

By: 
AUTHORIZED REPRESENTATIVE

EVANSTON INSURANCE COMPANY

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

SECTION I – THE INSURED	2
SECTION II – INSURING AGREEMENTS	2
SECTION III – DEFINITIONS	6
SECTION IV – EXCLUSIONS	9
SECTION V – TERRITORY	12
SECTION VI – LIMITS OF LIABILITY, DEDUCTIBLES, AND INTERRELATED WRONGFUL ACTS	12
SECTION VII – DEFENSE, SETTLEMENTS AND CLAIM EXPENSES	13
SECTION VIII – CLAIMS REPORTING AND NOTICE	14
SECTION IX – EXTENDED REPORTING PERIOD	15
SECTION X – CHANGES IN OWNERSHIP	16

Professional Liability Insurance Coverage Part

THIS IS A CLAIMS-MADE AND REPORTED COVERAGE PART. THIS COVERAGE PART REQUIRES THAT A CLAIM BE MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR THE EXTENDED REPORTING PERIOD, IF APPLICABLE, AND REPORTED TO THE COMPANY IN WRITING DURING THE POLICY PERIOD OR THE EXTENDED REPORTING PERIOD, IF APPLICABLE, BUT NO LATER THAN 60 DAYS AFTER THE DATE OF EXPIRATION OF THE POLICY PERIOD OR THE EXTENDED REPORTING PERIOD, IF APPLICABLE. PLEASE READ THE POLICY CAREFULLY.

PLEASE NOTE THAT AMOUNTS INCURRED AS CLAIM EXPENSES WILL REDUCE THE LIMIT OF LIABILITY AVAILABLE AND WILL BE APPLIED AGAINST THE DEDUCTIBLE AMOUNT.

The Company, relying upon the statements in the **Application**, which is deemed incorporated into this Policy and forms a part hereof, and in consideration of the payment of the premium, agrees with the **Insured** as follows:

SECTION I – THE INSURED

The word **Insured**, whether in the singular or plural, means:

- A. The Named Insured herein defined as the person(s) or organization(s) stated in the Declarations and any **Subsidiary** or **Predecessor Entity** of such organization(s) as of inception of the **Policy Period**;
- B. Any past or current principal, partner, member, manager, officer, director, trustee, shareholder, or employee of the Named Insured solely while acting on behalf of the Named Insured and within the scope of their duties as such;
- C. The spouse or **Domestic Partner** of each **Insured** in Paragraph **B.** above, but only for each such **Insured's** liability as is otherwise covered herein;
- D. The heirs, executors, administrators, assigns, and legal representatives of each **Insured** in Paragraphs **A.** through **C.** above in the event of death, incapacity, or bankruptcy of each such **Insured**, but only for each such **Insured's** liability as is otherwise covered herein; and
- E. Any natural person who is an independent contractor of the Named Insured solely while acting within their professional capacity on behalf of the Named Insured.

SECTION II – INSURING AGREEMENTS

A. Professional Liability Coverage

The Company shall pay on behalf of the **Insured** all sums in excess of the Deductible stated in the Declarations that the **Insured** becomes legally obligated to pay as **Damages** and **Claim Expenses** incurred as a result of a **Claim** first made against the **Insured** during the **Policy Period** or the Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph **A.** Claim Reporting Provision of Section **VIII** – Claims Reporting And Notice by reason of a:

- 1. **Wrongful Act**; or
- 2. **Personal Injury**;

in the performance of **Professional Services** rendered or that should have been rendered by the **Insured** or by any person for whose **Wrongful Act** or **Personal Injury** the **Insured** is legally responsible, provided:

- a. The **Wrongful Act** or **Personal Injury** happens during the **Policy Period** or on or after the applicable **Retroactive Date** and before the end of the **Policy Period**; and
- b. Prior to the effective date of the first date of continuous coverage of this Coverage Part with the Company, no **Insured** had any knowledge of such **Wrongful Act** or **Personal Injury**, or any fact, circumstance, situation, or incident which would lead a reasonable person in the **Insured's** position to conclude that a **Claim** was likely.

B. Additional Payments

- 1. **TCPA Violation**

The Company shall pay on behalf of the **Insured** all sums in excess of the Deductible stated in the Declarations and up to the TCPA Violation Limit Of Liability stated in the Declarations, per **Policy Period** including the Extended Reporting Period, if applicable, that the **Insured** becomes legally obligated to pay as **Damages** and **Claim Expenses** incurred as a result of a **Claim** first made against the **Insured** during the **Policy Period** or the Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph A. Claim Reporting Provision of Section VIII – Claims Reporting And Notice by reason of a violation of the Telephone Consumer Protection Act of 1991 (TCPA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation in the performance of **Professional Services** rendered or that should have been rendered by the **Insured**, provided:

- a. The TCPA violation happens during the **Policy Period** or on or after the applicable **Retroactive Date** and before the end of the **Policy Period**; and
- b. Prior to the effective date of this Coverage Part, no **Insured** had any knowledge of such violation, or any fact, circumstance, situation, or incident which would lead a reasonable person in the **Insured's** position to conclude that a **Claim** was likely.

No coverage for TCPA Violations is provided by this Policy except as provided by this Paragraph B.1. TCPA Violation of Section II – Insuring Agreements.

2. FCRA Violation

The Company shall pay on behalf of the **Insured** all sums in excess of the Deductible stated in the Declarations and up to the FCRA Violation Limit Of Liability stated in the Declarations, per **Policy Period** including the Extended Reporting Period, if applicable, that the **Insured** becomes legally obligated to pay as **Damages** and **Claim Expenses** incurred as a result of a **Claim** first made against the **Insured** during the **Policy Period** or the Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph A. Claim Reporting Provision of Section VIII – Claims Reporting And Notice by reason of a violation of the Fair Credit Reporting Act (FCRA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation, including the Fair and Accurate Credit Transactions Act of 2003 (FACTA) in the performance of **Professional Services** rendered or that should have been rendered by the **Insured**, provided:

- a. The FCRA violation happens during the **Policy Period** or on or after the applicable **Retroactive Date** and before the end of the **Policy Period**; and
- b. Prior to the effective date of this Coverage Part, no **Insured** had any knowledge of such violation, or any fact, circumstance, situation, or incident which would lead a reasonable person in the **Insured's** position to conclude that a **Claim** was likely.

No coverage for FCRA Violations is provided by this Policy except as provided by this Paragraph B.2. FCRA Violation of Section II – Insuring Agreements.

3. Sexual Injury

The Company shall pay those **Claim Expenses** incurred as a result of a **Claim** for **Sexual Injury** in excess of the Deductible stated in the Declarations and up to the Sexual Injury Limit Of Liability stated in the Declarations, per **Policy Period** including the Extended Reporting Period, if applicable, as a result of all **Sexual Acts** perpetrated or alleged to have been perpetrated by any **Insured** or for allegations that the **Insured** was negligent in hiring, training, or supervising any **Insured** who perpetrated or is alleged to have perpetrated a **Sexual Act** resulting in **Sexual Injury** provided:

- a. Such **Sexual Act** is perpetrated or alleged to have been perpetrated during the **Policy Period** or on or after the **Retroactive Date** and before the end of the **Policy Period**; and
- b. Prior to the effective date of this Policy, no **Insured** had any knowledge of such **Sexual Act** or any fact, circumstance, situation, or incident involving such **Sexual Act** which would lead a reasonable person in that **Insured's** position to conclude that a **Claim** was likely.

However, this Additional Payment does not apply to any:

- (1) **Insured** who perpetrates or is alleged to have perpetrated a **Sexual Act** resulting in **Sexual Injury**; however, the Company will defend such **Insured**, and pay **Claim Expenses** on such **Insured's** behalf, until it is established that such **Insured** in fact perpetrated such **Sexual Act**;
- (2) Manager, supervisor, partner, officer, director, or trustee who gains knowledge of any actual or alleged **Sexual Act** and fails to take reasonable care to prevent a future **Sexual Act**;

(3) **Claim** based upon, arising out of, or in any way involving any **Sexual Act** which is perpetrated or alleged to have been perpetrated by an **Insured** who previously perpetrated or is alleged to have previously perpetrated a **Sexual Act**, and after a manager, supervisor, partner, officer, director, or trustee has gained knowledge of the actual or alleged previously perpetrated **Sexual Act**; or

(4) **Claim** based upon, arising out of, or in any way involving any **Sexual Injury** to an **Insured**.

No coverage for **Sexual Injury** is provided by this Policy except as provided by this Paragraph B.3. Sexual Injury of Section II – Insuring Agreements.

4. Third Party Discrimination

The Company shall pay those sums in excess of the Deductible stated in the Declaration up to the Third Party Discrimination Limit Of Liability stated in the Declarations, per **Policy Period** including the Extended Reporting Period, if applicable, which the **Insured** becomes legally obligated to pay as **Damages** and **Claim Expenses** incurred as a result of a **Claim** for **Third Party Discrimination**; provided:

- a. The **Third Party Discrimination** happens during the **Policy Period** or on or after the **Retroactive Date** and before the end of the **Policy Period**; and
- b. Prior to the effective date of this Policy, no **Insured** had any knowledge of such **Third Party Discrimination** or any fact, circumstance, situation or incident which would lead a reasonable person in that **Insured's** position to conclude that a **Claim** for **Third Party Discrimination** was likely.

No coverage for **Third Party Discrimination** is provided by this Policy except as provided by this Paragraph B.4. Third Party Discrimination of Section II – Insuring Agreements.

Payments under this Paragraph B. shall be a part of, and not in addition to, the Coverage Part Aggregate Limit Of Liability stated in the Declarations. Once the applicable limit has been paid, the Company's obligation to defend has ended.

C. Supplementary Payments

1. Disciplinary Proceeding Legal Fee And Legal Expense Reimbursement

a. Upon submission to the Company of satisfactory written proof of payment by the Named Insured, the Company shall reimburse the Named Insured up to the Disciplinary Proceeding Limit Of Liability stated in the Declarations, per **Policy Period** including the Extended Reporting Period, if applicable, for all reasonable and necessary legal fees and legal expenses incurred in response to a **Disciplinary Proceeding** against the Named Insured first initiated during the **Policy Period**, or the Extended Reporting Period, if applicable, provided:

- (1) The **Wrongful Act** giving rise to the **Disciplinary Proceeding** happens during the **Policy Period** or on or after the **Retroactive Date** and before the end of the **Policy Period**; and
- (2) Prior to the effective date of this Coverage Part no **Insured** had any knowledge of such **Wrongful Act** or any fact, circumstance, situation, or incident which may have led a reasonable person in the **Insured's** position to conclude that a **Disciplinary Proceeding** was likely.

b. The **Insured** will give the Company written notice as soon as practicable of any **Disciplinary Proceeding** first initiated against the **Insured** during the **Policy Period** or the Extended Reporting Period, if applicable. In any event, such **Disciplinary Proceeding** must be reported to the address stated in the Claim Reporting policyholder notice, no later than 60 days after the end of the **Policy Period** or the Extended Reporting Period, if applicable.

c. No reimbursement shall be made for the **Insured's** payment of any taxes; criminal or civil fines, penalties or sanctions; registration or licensing fees; or any monetary judgment, award, or settlement of any kind.

d. Reimbursement to the Named Insured under this Paragraph C.1. shall be in addition to the Limits Of Liability stated in the Declarations and will not be subject to the Deductible.

2. Loss Of Earnings And Expense Reimbursement

a. Upon submission to the Company of satisfactory written proof of payment by the Named Insured, the Company shall reimburse the Named Insured as expense reimbursement for all reasonable and necessary expenses incurred by an **Insured** at the Company's written request for attendance at any arbitration, **Mediation**, deposition, hearing, or trial in connection with a **Claim** to which this Coverage Part applies. The

Named Insured will give the Company written proof of payment of expenses as soon as practicable. In any event, such written proof of payment must be reported to the Company at the address stated in the Claim Reporting policyholder notice attached to this Policy, no later than 60 days after incurring such expenses.

- b. The Company shall compensate the Named Insured for loss of earnings of an **Insured** up to the Loss Of Earnings And Expense Reimbursement Limits Of Liability stated in the Declarations per day for all **Insureds** to attend at the Company's written request any arbitration, **Mediation**, deposition, hearing, or trial in connection with a **Claim** to which this Coverage Part applies.
- c. The maximum the Company shall pay the Named Insured for all **Insureds** for compensation of all loss of earnings and expense reimbursement for all **Claims** to which this Coverage Part applies and all attendances at the Company's written request is the Loss Of Earnings And Expense Reimbursement Limit Of Liability stated in the Declarations.
- d. Payments to the Named Insured under this Paragraph **C.2.** shall be in addition to the Limits Of Liability stated in the Declarations and will not be subject to the Deductible.

No coverage for Loss Of Earnings And Expense Reimbursement is provided by this Policy except as provided by this Paragraph **C.2.** Loss Of Earnings And Expense Reimbursement of Section **II** – Insuring Agreements.

3. Pre-Claim Investigation Expenses

If, during the **Policy Period**, the **Insured** provides the Company with written notice of a **Wrongful Act** or **Personal Injury** as provided in Paragraph **B.** Discovery Of Potential Claims of Section **VIII** – Claims Reporting And Notice that is reasonably expected to result in a **Claim** but as to which no **Claim** has yet been made, the Company may, at the Company's sole option, choose to investigate the **Wrongful Act** or **Personal Injury**. Such an investigation will be at the Company's expense and will not reduce the Limits Of Liability or be subject to the Deductible provisions of this Policy until one of the following occurs:

- a. A **Claim** results from the **Wrongful Act** or **Personal Injury** under investigation; or
- b. The Company incurs the Pre-Claim Investigation Expenses Limit Of Liability stated in the Declarations in expenses arising from the investigation.

If a **Claim** is made and reported to the Company, or once the Company incurs the Pre-Claim Investigation Expenses Limit Of Liability stated in the Declarations in investigative expense, any further payment will be considered **Claims Expense** and will reduce the applicable Limits Of Liability and be subject to the Deductible provisions of this insurance.

No coverage for **Pre-Claim Investigation Expenses** is provided by this Policy except as provided by this Paragraph **C.3.** Pre-Claim Investigation Expenses of Section **II** – Insuring Agreements.

4. Public Relations Expenses

The Company shall reimburse **Public Relations Expenses** that have been approved by the Company prior to being incurred, up to the Public Relations Expenses Limit Of Liability stated in the Declarations, per **Policy Period** including the Extended Reporting Period, if applicable, as the direct result of a **Wrongful Act** or **Personal Injury** that occurs during the **Policy Period**.

No coverage for **Public Relations Expenses** is provided by this Policy except as provided by this Paragraph **C.4.** Public Relations Expenses of Section **II** – Insuring Agreements.

5. Subpoena And Record Request Assistance

In the event that during the **Policy Period**:

- a. The **Insured** first receives a subpoena, notice of deposition, or a written request for the **Insured's** records or files relative to a **Wrongful Act** or **Personal Injury** in the performance of **Professional Services** rendered or that should have been rendered by the **Insured** or by any person or organization for whose **Wrongful Act** or **Personal Injury** the **Insured** is legally responsible; and
- b. The **Insured** reports the receipt of such subpoena or request in writing to the Company within 30 days of such receipt and prior to a **Claim** being first made against the **Insured** arising out of such **Wrongful Act** or **Personal Injury**;

then the Company shall pay on behalf of the **Insured** up to the Subpoena And Record Request Assistance Limit Of Liability stated in the Declarations per **Policy Period** reasonable and necessary legal fees and legal expenses

incurred for engaging the services of legal counsel selected by the Company to assist the **Insured** in responding to such subpoena or request.

Payments to the Named Insured under this Paragraph **C.5.** shall be in addition to the Coverage Part Aggregate Limit Of Liability stated in the Declarations and not subject to the Deductible.

SECTION III – DEFINITIONS

A. Application means:

1. The application for this Policy and for any policy issued by the Company, or any of its affiliates, of which this Policy is a direct or indirect renewal or replacement;
2. Any attachment to any such application; and
3. Any other materials or applications submitted with or incorporated into any such application.

B. Bodily Injury means bodily injury, sickness, or disease sustained by a person, including death resulting from any of these; however, **Bodily Injury** shall not include:

1. Humiliation or the infliction of emotional distress arising solely from **Personal Injury**; or
2. **Sexual Injury**.

C. Claim means the **Insured's** receipt of:

1. A written demand for **Damages** or remedial **Professional Services**, including a written demand that the **Insured** toll or waive a statute of limitations; or
 2. The service of suit or institution of arbitration proceedings against the **Insured**;
- however, **Claim** shall not include any **Disciplinary Proceeding**.

D. Claim Expenses means reasonable and necessary amounts incurred by the Company, or by the **Insured** with the prior written consent of the Company, in the defense of that portion of any **Claim** for which coverage is afforded under this Coverage Part, including costs of investigation, court costs, costs of appeals, and costs of bonds to release attachments and similar bonds, but without any obligation of the Company to apply for or furnish any such bonds; however, **Claim Expenses** shall not include:

1. Salary, wages, overhead, or benefit expenses of or associated with employees or officials of the Named Insured or employees or officials of the Company; or
2. Salary, wages, administration, overhead, benefit expenses, or charges of any kind attributable to any in-house counsel or outside counsel for the Named Insured or the Company.

E. Client means a natural person or organization:

1. For which **Professional Services** are rendered by the **Insured**; or
2. Using the Named Insured's products or goods for which a fee was paid to the Named Insured.

F. Computer System means:

1. Any computer hardware, firmware, software, or any components thereof; and
2. The data stored thereon wherever located, associated input and output devices, data storage devices and repositories, networking equipment, backup facilities, and websites;

that are under the ownership, operation, or control of, or that is contracted or leased by, the Named Insured.

G. Content means advertising, publicity, press release, articles, publication, marketing or promotional item, or broadcast by any medium.

H. Damages means the monetary portion of any judgment, award, or settlement, including punitive damages where insurable by law; however, **Damages** shall not include:

1. Multiplied portions of damages in excess of actual damages, including trebling of damages;
2. The cost of any modifications or changes to the **Insured's** security measures, procedures, software, or hardware required or agreed to by the **Insured** to satisfy a judgment, award, or settlement;

3. Any cost required to repair, build, or modify property to comply with any award by a court, administrative order, arbitration award, or any similar judgment;
4. Taxes, criminal or civil fines assessed against an **Insured**, attorneys' fees of a party other than an **Insured**, or penalties imposed by law;
5. Sanctions;
6. Matters which are uninsurable under the law pursuant to which this Coverage Part will be construed;
7. The return, withdrawal, reduction, restitution, or payment of any fees, profits, charges or royalties for services or considerations, or any expenses paid or payable to the **Insured** for services or goods; or
8. Any cost to correct, perform, or re-perform services of a professional nature when the **Insured** had the capability to correct, perform, or re-perform the services of a professional nature with respect to which such costs were incurred.

The insurability of such punitive damages will be determined under the internal laws of any applicable jurisdiction most favorable to the **Insured**, including without limitation the jurisdiction in which the Named Insured, the **Insured**, the Company, this Policy, or such **Claim** is located.

- I. **Denial Of Service Attack** means any unlawful or unauthorized attempt by a third party to temporarily or indefinitely overload, hinder, interrupt, or suspend service to a **Computer System** via the internet.
- J. **Disciplinary Proceeding** means the **Insured's** receipt of any proceeding by a United States of America domiciled regulatory body, disciplinary board, or governmental agency, any of which has the authority to investigate charges of professional misconduct in the performance of **Professional Services**; however, **Disciplinary Proceeding** will not include any criminal proceeding.
- K. **Domestic Partner** means any natural person qualifying as a domestic partner under the provisions of any applicable federal, state, or local law.
- L. **Electronic Data** means information, facts, or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices, or other media which are used with electronically controlled equipment.
- M. **Financial Planner** means an investment professional who helps individuals or entities set and achieve their financial goals through investments, tax planning, asset allocation, risk management, retirement planning, and estate planning, and assisting in increasing net worth in furtherance of the individual's or entity's financial objectives.
- N. **Interrelated Wrongful Act** means any **Wrongful Acts** that have as a common connection or nexus any fact, incident, circumstance, situation, event, transaction, or cause or series of facts, incidents, circumstances, situations, events, transactions, or causes.
- O. **Media Offense** means any of the following acts, errors, or omissions by the **Insured** in its dissemination of **Content** for which the Named Insured is legally responsible:
 1. Libel, slander, or defamation, or any other form of disparagement;
 2. Invasion or infringement of the right of privacy or the right of publicity;
 3. Improper deep-linking, framing, web harvesting, web scraping, or data extraction;
 4. Infringement of copyright, service mark, service name, trademark, title, trade dress, trade name, or slogan, and unfair competition alleged in connection therewith;
 5. Plagiarism, piracy, or misappropriation of ideas under implied contract; or
 6. Infliction of emotional distress, mental anguish, false arrest, or malicious prosecution.
- P. **Mediation** means the voluntary process in which an objective third party who is a qualified professional mediator selected by the parties to the **Claim**, with written agreement of the Company, intervenes between the parties in an attempt to achieve settlement of the **Claim**. However, **Mediation** does not include litigation, arbitration, or any court-mandated proceeding.
- Q. **Personal Injury** means:
 1. Libel, slander, or defamation;
 2. Invasion or infringement of the right of privacy or right of publicity;

3. Malicious prosecution, abuse of process, false arrest, or false imprisonment; or
4. Humiliation or infliction of emotional distress;

committed in the performance of **Professional Services**.

R. Policy Period means the period from the inception date of this Coverage Part to the Coverage Part expiration date stated in the Declarations, or the effective date of any earlier cancellation or termination of this Policy.

S. Pollutant means any solid, liquid, gaseous, fuel, lubricant, thermal, acoustic, electrical, or magnetic irritant or contaminant, including, but not limited to, smoke, vapor, soot, fumes, fibers, radiation, acid, alkalis, petroleum, chemicals, or waste. Waste includes medical waste and all other materials to be disposed of, recycled, stored, reconditioned, or reclaimed.

T. Pre-Claim Investigation Expenses means costs, attorneys' fees, experts' fees, charges, or expenses incurred by the Company, at our discretion, in connection with the investigation or evaluation of any potential **Claim**.

U. Predecessor Entity means any entity engaged in **Professional Services** to whose financial assets and liabilities the Named Insured is the majority successor in interest.

V. Private Data means data in the care, custody, and control of an **Insured** or for which the Named Insured is legally responsible, containing any of the following:

1. An individual's driver license or other state-issued identification number, social security number, unpublished telephone number, or savings account, checking account, credit card, or debit card number;
2. Nonpublic personal information as defined in the Gramm-Leach-Bliley Act of 1999, as amended, and regulations issued pursuant thereto;
3. Medical and healthcare information, including protected health information as defined in the Health Insurance Portability and Accountability Act of 1996 (HIPAA), as amended, and regulations issued pursuant thereto;
4. Private personal information as defined under a security breach notice law;
5. Private personal information as defined under the law of a country other than the United States, which law is intended to provide for the protection of such private personal information; or
6. Proprietary information of third parties of commercial value which the Named Insured is legally responsible to maintain in confidence;

not including any data available to or accessible by the general public.

W. Professional Services means those services stated in the Declarations rendered for others for a fee.

X. Property Damage means physical injury to tangible property, including all resulting loss of use of that property or loss of use of tangible property that is not physically injured; however, tangible property shall not include **Electronic Data**.

Y. Public Relations Expenses means actual, necessary, and reasonable expenses approved by the Company in writing and incurred by the **Insured** in retaining a public relations consultant to protect or restore the **Insured's** business reputation or in planning, implementing, executing, and managing a public relations campaign under the direction of a public relations consultant to mitigate or minimize any actual or anticipated adverse effects of negative publicity.

Z. Retroactive Date means the Retroactive Date stated in the Declarations as applicable to the coverages under the Professional Liability Insurance Coverage Part.

AA. Sexual Act means sexual abuse, sexual molestation, or sexual exploitation arising out of the conduct of **Professional Services**.

BB. Sexual Injury means bodily injury, sickness, disease, unlawful detention, false imprisonment, humiliation, emotional distress, mental anguish, sexual dysfunction, invasion of right of privacy, assault, or battery, solely when arising out of a **Sexual Act**.

CC. Subsidiary means:

1. Any entity, excluding partnerships or joint ventures, of which the **Insured** owns more than 50% of the outstanding voting securities or has the right to exercise more than 50% of the voting rights for the election or appointment of the members of the board of directors or equivalent management positions including, but not limited to, members of the board of managers of a limited liability company;

2. Any entity that is newly created or acquired during the **Policy Period**, provided that such entity's total consolidated assets as of the date of such creation or acquisition will be no more than 25% of the total consolidated assets of the **Insured** according to the most recently filed audited financial statements. A newly created or acquired **Subsidiary** will only receive coverage for **Claims** arising from **Wrongful Acts**, **Personal Injuries**, or **Interrelated Wrongful Acts** occurring after such date of creation or acquisition and before the end of the **Policy Period**; or
3. Any organization operated as a joint venture in which, on or prior to the inception date stated in the Declarations, the **Insured** owns, directly or through one or more **Subsidiaries**, exactly 50% of the organization's outstanding securities with voting rights, and under a written agreement with the organization's remaining owners, has sole control of the organization's management and operations.

DD. Third Party Discrimination means conduct of an **Insured** with respect to any natural person who is not an **Insured** that results in any actual or alleged discrimination on the basis of age, color, disability, familial status, marital status, national origin, pregnancy, race, sex, sexual preference, religion, or other protected class or characteristic under applicable federal, state, or local statute or ordinance.

EE. Unauthorized Access means a breach of a **Computer System**, including:

1. Any intentional violation, interception, use, or misuse of a **Computer System**, whether or not for profit or gain, by any person without the permission, knowledge, or ratification of the **Insured**;
2. Access to a **Computer System** with the **Insured's** permission, where such permission is the result of fraud or deception, including phishing scams;
3. Use of a **Computer System** by a party including, but not limited to, a rogue employee, authorized by the **Insured** to use such system, who does so for an unauthorized purpose;
4. The introduction of viruses, malware, or other programs into a **Computer System** which contain fraudulent or destructive instructions or code, including any inadvertent transmission of such programs to a third party;
5. A credible threat by a third party including, but not limited to, a threat to initiate ransomware or a **Denial Of Service Attack**, threatening or portending:
 - a. Loss or damage to **Private Data**;
 - b. Loss or damage to a **Computer System**; or
 - c. Loss of money, securities, bonds, or any similar financial instrument of the Named Insured, solely to the extent that record of such is maintained in digital or electronic format on a **Computer System**; or
6. A **Denial Of Service Attack** or the failure to prevent an unauthorized user or code from launching a **Denial Of Service Attack** on a third party through a **Computer System**.

FF. Unintentional Data Compromise means:

1. Any computer security incident, including by an **Unauthorized Access**, resulting in the intrusion, breach, compromise, theft, loss, or misuse of **Private Data**;
2. The theft or loss of any paper records containing **Private Data**;
3. The failure of any third party to prevent the unauthorized viewing, copying, or distribution of **Private Data** which the Named Insured has entrusted to such party under a written contract or agreement that specifically requires such party to protect the confidentiality of the **Private Data** so entrusted; or
4. The unintentional breach of the Named Insured's written privacy policy.

GG. Wrongful Act means a negligent act, error, or omission in **Professional Services** rendered or that should have been rendered by the **Insured** or by any person for whose acts, errors, or omissions the **Insured** is legally responsible, and includes an **Interrelated Wrongful Act**.

SECTION IV – EXCLUSIONS

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

A. Abuse

Based upon or arising out of any actual or threatened abuse, molestation, or exploitation by anyone; however, this exclusion does not apply to coverage provided under Paragraph **B.3. Sexual Injury** of Section **II – Insuring Agreement**.

B. Any Information In Application

Based upon or arising out of any **Wrongful Act** or **Personal Injury**, or any fact, circumstance, situation, incident, or **Claim**, referred to in an answer to any question of the **Application(s)** or addendum(s) attached to this Policy.

C. Bodily Injury

Based upon or arising out of any actual or alleged **Bodily Injury**; however, this exclusion shall not apply to coverage provided under Paragraph **B.3. Sexual Injury** of Section **II – Insuring Agreement**.

D. Contractual Liability

Based upon or arising out of the liability of others assumed by the **Insured** under any contract or agreement; however, this exclusion shall not apply to any liability an **Insured** would have in the absence of the contract or agreement by reason of a **Wrongful Act** of the **Insured** in the performance of **Professional Services**.

E. Conversion Or Misappropriation

Based upon or arising out of any conversion, misappropriation, commingling, or defalcation of funds or property.

F. Employment Related Practices

Based upon or arising out of:

1. Any obligation of the **Insured** under any workers' compensation, unemployment compensation, or disability benefits law or under any similar law; or
2. Wrongful termination or other employment related practices; including, but not limited to, the employment relationship or the nature, terms or conditions of employment or any workplace tort brought by or on behalf of any employee, former employee, prospective employee, independent contractor, or consultant of the **Insured**.

G. ERISA Or SEC

Based upon or arising out of any actual or alleged violation of the responsibilities, obligations, or duties imposed by:

1. The Employment Retirement Income Security Act (ERISA) of 1974 and any amendments thereto, or any rules or regulations promulgated thereunder; or
2. Any of the provisions of the Securities Act of 1933, the Securities Exchange Act (SEC) of 1934, or any similar federal, state, or common law relating thereto.

H. Failure To Pay Or Collect

Based upon or arising out of any inability or failure of any party to pay or collect monies or to collect or pay federal, state, county, or local tax, including, but not limited to, income tax, sales tax, or property tax.

I. Fraudulent Or Dishonest Acts

Based upon, arising out of, or in any way involving any conduct of the **Insured** or at the **Insured's** direction that is intentional, willful, dishonest, fraudulent, or that constitutes a willful violation of any law, statute, or regulation; however, this exclusion will not apply to:

1. The strictly vicarious liability of any **Insured** for the intentional, willful, dishonest, or fraudulent conduct of another **Insured** or for the conduct of another **Insured** that constitutes a willful violation of any statute or regulation; or
2. **Claim Expenses** incurred until an allegation is determined through final and non-appealable adjudication.

J. Illegal Profit

Based upon, arising out of, or in any way involving the gaining by any **Insured** of any profit, remuneration, or advantage to which such **Insured** was not legally entitled, provided; however, no fact pertaining to any **Insured** will be imputed to any other **Insured** to determine the applicability of this exclusion.

K. Insolvency

Based upon or arising out of the insolvency, receivership, bankruptcy, liquidation, or financial inability to pay:

1. Of any bank, savings and loan, banking firm, registered representative or broker/dealer of securities or commodities, insurance company, reinsurer, risk retention group or captive (or other self-insurance plan or trust by whatsoever name), real estate developer, or construction organization; or
2. Of any **Subsidiary**.

L. Insured Versus Insured

Made against the **Insured**:

1. By any principal, partner, officer, director, member, manager, employee, or shareholder of an **Insured** or any subrogee or assignee of such person; or
2. By or on behalf of any person or organization included in the definition of **Insured**.

M. Investment Advising Services

Based upon or arising out of any acts or services as an investment adviser, **Financial Planner**, registered representative or broker/dealer of securities or commodities, mortgage banker, or investment banker.

N. Media Offense

Based upon or arising out of any **Media Offense**.

O. Not Licensed As Required By Law

Based upon or arising out of any acts or services performed by any **Insured** that is not licensed or certified to perform such acts or services if such licensing or certification is required by law.

P. Other Coverage

Brought under any other Coverage Part of this Policy.

Q. Owned Or Controlled Entities

Made against the **Insured** by any person or organization or its subrogee, assignee, contractor, subcontractor, or parent organization, **Subsidiary**, division, or affiliated organization which was or is operated, managed, owned, or otherwise controlled, whether directly or indirectly, or in whole or in part, by any **Insured**.

R. Patents Or Trade Secrets

Based upon or arising out of:

1. Infringement or inducement of infringement of patent or trade secret or misappropriation of trade secrets or confidential or proprietary information relating to the Named Insured's business operations;
2. Unfair competition based upon infringement of copyright, patent, trademark, service mark, trade name, or trade secret;
3. The value of trade secrets, confidential processing methods, or other confidential or proprietary information; or
4. Any dispute related to ownership of any intellectual property.

S. Pollution

Based upon or arising out of:

1. Actual, alleged, or threatened discharge, disposal, migration, dispersal, release, or escape of **Pollutants**; or
2. Direction, order, or request to test for, monitor, remediate, clean up, remove, contain, treat, detoxify, or neutralize **Pollutants**, or to pay for or contribute to the costs of undertaking such actions.

T. Prior Notice

Based upon or arising out of any **Wrongful Act** or **Personal Injury** or any fact, circumstance, or situation that has been the subject of any notice given prior to the **Policy Period** under any other policy of insurance or to any reinsurer, risk retention group or captive (or any other self-insurance plan or trust by whatsoever name), or insurance representative;

U. Property Damage

Based upon or arising out of any actual or alleged **Property Damage**.

V. Trade Practices And Antitrust

Based upon or arising out of any actual or alleged violation of any law, whether statutory, regulatory, or common law, respecting any of the following activities: antitrust, business competition, unfair trade practices, or tortious interference in another's business or contractual relationships.

W. Unauthorized Access

Based upon or arising out of an **Unauthorized Access**.

X. Unintentional Data Compromise

Based upon or arising out of any actual or alleged **Unintentional Data Compromise**.

Y. Unlawful Discrimination

Based upon or arising out of any unlawful discrimination by any **Insured**; however, this exclusion does not apply to:

1. Such unlawful discrimination resulting directly from and in the normal course of the performance of **Professional Services** by the **Insured**; or
2. Coverage provided under Paragraph **B.4. Third Party Discrimination** of Section **II – Insuring Agreement**.

Z. Valuable Consideration

Based upon or arising out of any actual or alleged price discounts, prizes, awards, money, or valuable consideration given in excess of a total contracted or expected amount.

AA.Warranties Or Guarantees

Based upon or arising out of any warranties or guarantees, whether express, implied, or otherwise; or any cost estimates.

SECTION V – TERRITORY

The insurance afforded by this Coverage Part applies worldwide, except for **Claims** made in any country on which the government of the United States of America has imposed trade sanctions, embargoes, or any similar regulations that prohibit the transaction of business with or within such country.

SECTION VI – LIMITS OF LIABILITY, DEDUCTIBLES, AND INTERRELATED WRONGFUL ACTS

A. Limits Of Liability

1. Each Claim

Subject to Paragraphs **2.** and **3.** below, the liability of the Company for the combined total of **Damages** and **Claim Expenses** paid under Section **II – Insuring Agreements, A. Professional Liability Coverage** for each **Claim** first made against the **Insured** during the **Policy Period** or Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph **A. Claim Reporting Provision** of Section **VIII – Claims Reporting And Notice**, shall not exceed the Each Claim Limit Of Liability stated in the Declarations.

2. Aggregate

Subject to Paragraph **3.** below, the total liability of the Company for the combined total of all **Damages** and **Claim Expenses** paid under Section **II – Insuring Agreements, A. Professional Liability Coverage** arising out of all **Claims** first made against the **Insured** during the **Policy Period** and the Extended Reporting Period, if applicable, shall not exceed the Aggregate Limit Of Liability stated in the Declarations.

3. Coverage Part Aggregate

The total liability of the Company for the combined total of all **Damages** and **Claim Expenses** paid under Section **II – Insuring Agreements, A. Professional Liability Coverage** and **B. Additional Payments** arising out of all **Claims** first made against the **Insured** during the **Policy Period** and the Extended Reporting Period, if applicable, shall not exceed the Coverage Part Aggregate Limit Of Liability stated in the Declarations.

B. Deductibles

1. Each Claim Deductible

Subject to Paragraph **2.** below, the applicable Deductible stated in the Declarations shall be paid by the Named Insured for each **Claim** and apply to **Damages** and **Claim Expenses**, whether or not any **Damages** payments

are made. Such Deductible amounts will, upon written demand by the Company, be paid by the Named Insured within 10 days. The total payments requested from the Named Insured in respect of each **Claim** will not exceed the Deductible stated in the Declarations. The determination of the Company as to the reasonableness of the **Claim Expenses** shall be conclusive on the Named Insured.

2. Aggregate Deductible

The total Deductible payments to be paid by the Named Insured shall not exceed the Aggregate Deductible stated in the Declarations for **Damages** and **Claim Expenses** arising out of all **Claims**, other than any **Disciplinary Proceeding**, first made during the **Policy Period** and the Extended Reporting Period, if applicable.

3. Deductible Credits

With respect to this Coverage Part, if a **Claim** is settled without litigation, arbitration, **Mediation** or court mandated proceedings, the Deductible for such **Claim** will be reduced by 75% or \$10,000, whichever is less.

If the Named Insured and the Company agree to the use of **Mediation** and a **Claim** is settled at that **Mediation**, the Deductible for such **Claim** will be reduced by 50% or \$10,000, whichever is less.

The deductible credits are not additive or cumulative.

C. Multiple Insureds, Claims, And Claimants

The inclusion herein of more than one **Insured** in any **Claim** or the making of **Claims** by more than one person or organization shall not operate to increase the Limits Of Liability stated in the Declarations. More than one **Claim** arising out of a single **Wrongful Act, Personal Injury, or Interrelated Wrongful Act** will be treated as a single **Claim**. Such single **Claim** will be deemed first made on the date on which the earliest **Claim** arising out of such **Wrongful Act, Personal Injury, or Interrelated Wrongful Act** is made or with respect to written notice given to and accepted by the Company pursuant to Paragraph B. Discovery Of Potential Claims of Section VIII – Claims Reporting And Notice, on the date within the **Policy Period** on which such written notice of potential **Claim** is first received by the Company.

SECTION VII – DEFENSE, SETTLEMENTS AND CLAIM EXPENSES

A. Defense And Investigation

With respect to coverage hereunder, the Company will have the right and duty to defend the **Insured** and to investigate any **Claim** and **Disciplinary Proceeding** to which coverage under this Coverage Part applies pursuant to the following provisions:

1. **Claim Expenses** incurred in defending and investigating such **Claim** shall be a part of and not in addition to the applicable Limits Of Liability stated in the Declarations. Such **Claim Expenses** will reduce the applicable Limits Of Liability and will be applied against the applicable Deductible. The Company will have no obligation to pay any **Damages** or to defend or continue to defend any **Claim** or to pay **Claim Expenses** after the applicable Limits Of Liability stated in the Declarations have been exhausted by payment(s) of **Damages** or **Claim Expenses**.
2. The Company shall select defense counsel; however, if the law of the state of the Named Insured's domicile, stated in the Declarations, allows the **Insured** to control the selection of defense counsel where a conflict of interest has arisen between the **Insured** and the Company, the Company will provide a list of attorneys or law firms from which the **Insured** may designate defense counsel who will act solely in the interest of the **Insured**, and the **Insured** will direct such defense counsel to cooperate with the Company. Such cooperation shall include:
 - a. Providing on a regular basis, but not less frequently than every 3 months, written reports on claimed **Damages**, potential liability, progress of any litigation, any settlement demands, or any investigation developments that materially affect the **Claim**;
 - b. Providing any other reasonable information requested;
 - c. Providing fully itemized billing on a periodic basis; and
 - d. Cooperating with the Company and the **Insured** in resolving any disputes, including but not limited to billing disputes.

The fees and costs incurred by such defense counsel, including those fees and costs generated by cooperation with the Company, as set forth above, will be included in **Claim Expenses**. Such **Claim Expenses** shall be a part of and not in addition to the applicable Limits Of Liability stated in the Declarations. Such **Claim Expenses** shall reduce the applicable Limits Of Liability and be applied against the applicable Deductible.

3. Any payments shall be made in U.S. currency from a bank or financial institution located in the United States of America. With respect to **Claims** brought in a country other than the United States of America, payment will be made to the Named Insured.

B. Consent To Settlement

The Company will not settle any **Claim** without the prior written consent of the first Named Insured, but the Company will have, at all times, the right to recommend a settlement of any **Claim**. If the first Named Insured refuses to settle such **Claim** pursuant to the Company's recommendations and acceptable to the claimant, then the Company's liability in regard to such **Claim** will not exceed the sum of:

1. The amount of **Damages** for which the Company could have settled such **Claim**;
2. **Claim Expenses** accrued as of the date such settlement was proposed in writing by the Company to the Named Insured; and
3. 80% of all covered **Damages** and **Claim Expenses** incurred thereafter on account of such **Claim**.

Such amounts are subject to the provisions of Paragraph **A**.

SECTION VIII – CLAIMS REPORTING AND NOTICE

A. Claim Reporting Provision

1. It is a condition precedent to coverage afforded by this Coverage Part that the **Insured** shall give to the Company written notice as soon as practicable of any **Claim** first made against the **Insured** during the **Policy Period** or the Extended Reporting Period, if applicable, but in no event later than:

- a. 60 days after expiration of the **Policy Period**; or
- b. The expiration of the Extended Reporting Period, if applicable.

Such **Claim** must be reported to the Company at the address stated on the Claim Reporting policyholder notice attached to this Policy.

2. In the event a suit is brought against the **Insured**, the **Insured** will immediately forward to the Company at the address stated on the Claim Reporting policyholder notice, every demand, notice, summons, or other process received by the **Insured** or their representatives.

B. Discovery Of Potential Claims

If, during the **Policy Period**, the **Insured** first becomes aware of a specific **Wrongful Act** or **Personal Injury** which is reasonably expected to result in a **Claim** within the scope of coverage of this Coverage Part, then the **Insured** may elect to provide notice of a potential claim to the Company. Such notice to the Company shall be in writing, containing the information listed below, and sent to the Company at the address stated on the Claim Reporting policyholder notice. If such written notice is received by the Company during the **Policy Period**, then any **Claim** subsequently made against the **Insured** arising out of such **Wrongful Act** or **Personal Injury** will be deemed for the purpose of this insurance to have been first made on the date on which such written notice is first received by the Company.

It is a condition precedent to the coverage afforded by this Paragraph **B**. that written notice is given to the Company containing the following information:

1. The description of the specific **Wrongful Act** or **Personal Injury**;
2. The date on which such **Wrongful Act** or **Personal Injury** took place;
3. The **Damage** or injury which has or may result from such **Wrongful Act** or **Personal Injury**;
4. The identity of any injured person or organization subject to such injury or **Damage**; and
5. The date and circumstances by which the **Insured** first became aware of such **Wrongful Act** or **Personal Injury**.

The Company, at its sole option, may investigate such circumstance, **Wrongful Act** or **Personal Injury** as stated in Paragraph **C.3**. Pre-Claim Investigation Expenses of Section **II** – Insuring Agreement.

C. Supplementary Payments

Pursuant to Paragraph **C**. Supplementary Payments of Section **II** – Insuring Agreements, upon the Company's receipt of satisfactory written proof of payment by the Named Insured in no event later than 60 days after the date incurred, the Company will indemnify the Named Insured for such expenses and such loss of earnings within 60 days.

SECTION IX – EXTENDED REPORTING PERIOD

- A.** The Named Insured's right to exercise the Extended Reporting Period under this Coverage Part will exist solely if the Named Insured also exercises its right to purchase the Extended Reporting Period under all Insuring Agreements of all Coverage Parts in the Policy for which an Extended Reporting Period is available.
- B.** If the Named Insured nonrenews this Policy in its entirety or cancels this Policy in its entirety pursuant to Paragraph **D.** Cancellation of the **COMMON POLICY CONDITIONS**, or if the Company nonrenews this Policy or cancels this Policy pursuant to Paragraph **D.** Cancellation of the **COMMON POLICY CONDITIONS**, for reasons other than nonpayment of premium or Deductible or non-compliance with the terms and conditions of this Policy, then the Named Insured will have the right upon payment of an additional premium calculated at the Premium Percentage stated in the Declarations of the annual premium for the **Policy Period** to extend the coverage granted under Section **II** – Insuring Agreements of this Coverage Part for the Additional Period stated in the Declarations, as elected by the Named Insured, to apply to:
- 1. Claims** first made against the **Insured** during the Additional Period stated in the Declarations, and reported to the Company pursuant to Paragraph **A.** Claim Reporting Provision of Section **VIII** – Claims Reporting And Notice, following immediately upon the effective date of such cancellation or nonrenewal, for any **Wrongful Act** or **Personal Injury** which happened on or after the applicable **Retroactive Date** and prior to the effective date of such cancellation or nonrenewal and which is otherwise covered by this Coverage Part; and
 - 2. Disciplinary Proceedings** first initiated against the **Insured** during the Additional Period stated in the Declarations, and reported to the Company pursuant to Paragraph **C.1.** Disciplinary Proceeding Legal Fee And Legal Expense Reimbursement of Section **II** – Insuring Agreements, following immediately upon the effective date of such cancellation or nonrenewal, for any **Wrongful Act** which happened on or after the applicable **Retroactive Date** and prior to the effective date of such cancellation or nonrenewal and which is otherwise covered by this Coverage Part.

This extended period of coverage as elected by the Named Insured and described herein will be referred to in this Coverage Part as the Extended Reporting Period.

If, however, this Coverage Part is immediately succeeded by similar claims-made insurance coverage on which the applicable **Retroactive Date** is the same as or earlier than that stated in the Declarations, the succeeding insurance will be deemed to be a renewal hereof, and in consequence, the Named Insured will have no right to purchase an Extended Reporting Period applicable to the coverage afforded under this Coverage Part.

The quotation of a different premium, deductible, or limit of liability for renewal does not constitute a cancellation or refusal to renew for the purpose of this provision.

- C.** As a condition precedent to the right to purchase the Extended Reporting Period, the Named Insured must have paid:
- 1.** All deductibles when due;
 - 2.** All premiums due for the **Policy Period**; and
 - 3.** All premiums and deductibles due on any other policies issued by the Company or any of its affiliated companies in an uninterrupted series of policies of which this Policy is a renewal or replacement.

The right to purchase the Extended Reporting Period will terminate unless a written request of such election for the Extended Reporting Period is received by the Company within 30 days after the effective date of cancellation or nonrenewal together with payment of the additional premium for the Extended Reporting Period. If such written request and premium payment for the Extended Reporting Period are not so received by the Company, there shall be no right to purchase the Extended Reporting Period at a later date.

- D.** In the event of the purchase of the Extended Reporting Period the entire premium therefor will be fully earned at its commencement.
- E.** The Extended Reporting Period will not in any way increase the Limits Of Liability stated in the Declarations.

SECTION X – CHANGES IN OWNERSHIP

A. New Organizations

If, before or during the **Policy Period**, the Named Insured acquires or creates a new **Subsidiary** or acquires an entity by merger or consolidation, to perform the same **Professional Services** as the Named Insured, coverage under this Policy automatically will apply to the new organization, provided:

1. Such coverage will apply only with respect to any **Claim** for a **Wrongful Act** or **Personal Injury** taking place after such acquisition or creation; and
2. There is no other similar insurance available to that organization.

Coverage will be subject to the following:

- a. Coverage is afforded only until 60 days after the Named Insured acquired or formed the organization or the end of the **Policy Period**, whichever is earlier; however, this condition shall not apply if such entity's total consolidated assets as of the date of such creation or acquisition will be no more than 25% of the total consolidated assets of the **Insured** according to the most recently filed audited financial statements;
- b. The **Retroactive Date** applicable to any **Claim** or **Disciplinary Proceeding** against such organization newly acquired or newly formed by the Named Insured for **Wrongful Acts** or **Personal Injuries** by **Insureds** will be the date on which the Named Insured newly acquired or newly formed such organization; and
- c. No person or organization is an **Insured** with respect to the conduct of any current or past partnership, joint venture, or limited liability company that is not stated as a Named Insured in the Declarations.

B. Acquisition Of The Insured

If, during the **Policy Period**, a transaction occurs wherein another organization gains control of the Named Insured through the ownership of more than 50% of the outstanding securities or voting rights representing the present right to vote for the election of directors or equivalent position, or the Named Insured merges into another organization or consolidates with another organization such that the Named Insured is not the surviving organization, then:

1. The first Named Insured must give written notice of such transaction to the Company within 60 days after the effective date of such transaction and provide the Company with such information in connection therewith as the Company may deem necessary; and
2. This Coverage Part will apply only to those **Wrongful Acts** or **Personal Injuries** which happened on or before the effective date of such transaction.

C. Cessation Of Subsidiaries

If before or during the **Policy Period**, an organization ceases to be a **Subsidiary**, coverage with respect to such **Subsidiary** will continue until the end of the **Policy Period** or the Extended Reporting Period, if applicable, provided such coverage will apply only with respect to any **Claim** for a **Wrongful Act** or **Personal Injury** taking place prior to the date such organization ceased to be a **Subsidiary**.



EVANSTON INSURANCE COMPANY

MARKEL CYBER 360SM INSURANCE COVERAGE PART

SECTION I – THE INSURED	2
SECTION II – INSURING AGREEMENTS	2
SECTION III – DEFINITIONS	5
SECTION IV – EXCLUSIONS	13
SECTION V – TERRITORY	16
SECTION VI – LIMITS OF LIABILITY, DEDUCTIBLES, MULTIPLE INSURED, AND MULTIPLE CLAIMS	16
SECTION VII – DEFENSE, SETTLEMENTS AND CLAIM EXPENSES	17
SECTION VIII – CLAIMS REPORTING AND NOTICE	18
SECTION IX – EXTENDED REPORTING PERIOD	20
SECTION X – CHANGES IN OWNERSHIP	21
SECTION XI – OTHER CONDITIONS	21

Markel Cyber 360SM Insurance Coverage Part

THIS IS A CLAIMS MADE AND REPORTED COVERAGE PART. THIS COVERAGE PART REQUIRES THAT A CLAIM BE MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR DURING THE EXTENDED REPORTING PERIOD, IF APPLICABLE, AND REPORTED TO THE COMPANY IN WRITING DURING THE POLICY PERIOD OR THE EXTENDED REPORTING PERIOD, IF APPLICABLE, BUT NO LATER THAN 60 DAYS AFTER THE DATE OF EXPIRATION OF THE POLICY PERIOD OR DURING THE EXTENDED REPORTING PERIOD, IF APPLICABLE. PLEASE READ THE POLICY CAREFULLY.

PLEASE NOTE THAT AMOUNTS INCURRED AS CLAIM EXPENSES WILL REDUCE THE LIMIT OF LIABILITY AVAILABLE AND WILL BE FIRST APPLIED AGAINST THE RETENTION AMOUNT.

The Company, relying upon the statements in the **Application** which is deemed incorporated into this Policy and forms a part hereof, and in consideration of the payment of the premium, agrees with the **Insured** as follows:

SECTION I – THE INSURED

The word **Insured**, either in the singular or plural, means:

- A. The Named Insured herein defined as the person(s) or organization(s) stated in the Declarations and any **Subsidiary** or **Predecessor Entity** of such organizations as of inception of the **Policy Period**;
- B. Any past or current principal, partner, member, manager, officer, director, trustee, or shareholder or **Employee** of the Named Insured stated in the Declarations solely while acting on behalf of the Named Insured and within the scope of their duties as such;
- C. The spouse or **Domestic Partner** of each **Insured** in Paragraph 2. above, but only for each such **Insured's** liability as is otherwise covered herein;
- D. The heirs, executors, administrators, assigns, and legal representatives of each **Insured** above in the event of death, incapacity, or bankruptcy of such **Insured** but only for such **Insured's** liability as is otherwise covered herein; and
- E. Any past or present independent contractor of the Named Insured who is a natural person or single person entity, but only with respect to a **Policy Event** committed:
 - 1. Solely while acting on behalf of the Named Insured and within the scope of such natural person's or single person entity's duties as directed by the Named Insured; and
 - 2. After the Named Insured agreed in writing to provide insurance or indemnification to such natural person or single person entity.

SECTION II – INSURING AGREEMENTS

Although various Insuring Agreements may be referenced in this Coverage Part, an Insuring Agreement is included within this Coverage Part only if that Insuring Agreement is designated as purchased by an "X" in the Declarations.

A. Cyber And Privacy Liability

The Company shall pay on behalf of the **Insured** all sums in excess of the Retention Amount stated in the Declarations that:

- 1. The **Insured** becomes legally obligated to pay as **Damages**, and **Claim Expenses** incurred, both of which are a result of a **Claim** first made against the **Insured** during the **Policy Period** or Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph A. Claims Reporting Provision under Section VIII – Claims, Loss, And Expenses; and
- 2. Result directly from an **Unauthorized Access**, **Potential Unauthorized Access**, or **Unintentional Data Compromise** that occurs on or after the Retroactive Date stated in the Declarations and before the end of the **Policy Period**.

B. Regulatory Fines

The Company shall pay on behalf of the **Insured** all sums in excess of the Retention Amount stated in the Declarations that:

- 1. The **Insured** becomes legally obligated to pay as **Regulatory Fines**, and **Claim Expenses** incurred, both of which are a result of a **Claim** first made against the **Insured** during the **Policy Period** or Extended Reporting

Period, if applicable, and reported to the Company pursuant to Paragraph **A**. Claims Reporting Provision under Section **VIII** – Claims, Loss, And Expenses; and

2. Result directly from a **Policy Event** that occurs on or after the Retroactive Date stated in the Declarations and before the end of the **Policy Period**.

C. Media Offense Liability

The Company shall pay on behalf of the **Insured** all sums in excess of the Retention Amount stated in the Declarations that:

1. The **Insured** becomes legally obligated to pay as **Damages**, and **Claim Expenses** incurred, both of which are a result of a **Claim** first made against the **Insured** during the **Policy Period** or Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph **A**. Claims Reporting Provision under Section **VIII** – Claims, Loss, And Expenses; and
2. Result directly from a **Media Offense** that occurs on or after the Retroactive Date stated in the Declarations and before the end of the **Policy Period**.

D. System And Data Rectification Costs And Financial Loss

The Company shall pay on behalf of the Named Insured the amount of **Loss** in excess of the Retention Amount stated in the Declarations that results directly from an **Unauthorized Access**, **Potential Unauthorized Access**, or **Unintentional Data Compromise** that:

1. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
2. Is reported to the Company pursuant to Paragraph **A**. Claims Reporting Provision under Section **VIII** – Claims, Loss, And Expenses.

E. Extortion Loss

The Company shall reimburse the Named Insured the amount of **Extortion Loss**, incurred with the prior written consent of the Company, in excess of the Retention Amount stated in the Declarations that results directly from an **Extortion Event** that is:

1. Received by the **Insured** during the **Policy Period**; and
2. Reported to the Company pursuant to Paragraph **A**. Claims Reporting Provision under Section **VIII** – Claims, Loss, And Expenses.

F. Security Business Interruption Loss

1. Security Business Interruption Event

The Company shall reimburse the Named Insured the amount of **Business Interruption Loss** that results directly from a **Security Business Interruption Event** that:

- a. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
- b. Is reported to the Company pursuant to Paragraph **A**. Claims Reporting Provision under Section **VIII** – Claims, Loss, And Expenses.

2. Contingent Security Business Interruption Event

The Company shall reimburse the Named Insured the amount of **Business Interruption Loss** that results directly from a **Contingent Security Business Interruption Event** that"

- a. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
- b. Is reported to the Company pursuant to Paragraph **A**. Claims Reporting Provision under Section **VIII** – Claims, Loss, And Expenses.

G. System Failure Business Interruption Loss

1. System Failure Business Interruption Event

The Company shall reimburse the Named Insured the amount of **Business Interruption Loss** that results directly from a **System Failure Business Interruption Event** that:

- a. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
- b. Is reported to the Company pursuant to Paragraph **A. Claims Reporting Provision** under Section **VIII – Claims, Loss, And Expenses**.

2. Contingent System Failure Business Interruption Event

The Company shall reimburse the Named Insured the amount of **Business Interruption Loss** that results directly from a **Contingent System Failure Business Interruption Event** that:

- a. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
- b. Is reported to the Company pursuant to Paragraph **A. Claims Reporting Provision** under Section **VIII – Claims, Loss, And Expenses**.

H. Privacy Breach Notification And Mitigation Costs

1. The Company shall pay on behalf of the Named Insured the amount of **Privacy Breach Notification And Mitigation Costs**, incurred with the prior written consent of the Company, in excess of the Retention Amount stated in the Declarations that result directly from an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise** that:
 - a. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
 - b. Is reported to the Company pursuant to Paragraph **A. Claims Reporting Provision** under Section **VIII – Claims, Loss, And Expenses**.
2. With respect to any amount that the Company pays on behalf of the Named Insured for expenses actually incurred by the Named Insured pursuant to this Insuring Agreement, if the same **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise** results in a judgment, award, or settlement subject to coverage under Insuring Agreement **A. Cyber And Privacy Liability**, such expenses shall not be subject to payment under this Insuring Agreement.

I. PCI DSS Assessments

The Company shall pay on behalf of the Named Insured the amount of **PCI DSS Assessments** in excess of the Retention Amount stated in the Declarations that result directly from a **Payment Card Breach** that:

1. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
2. Is reported to the Company pursuant to Paragraph **A. Claims Reporting Provision** under Section **VIII – Claims, Loss, And Expenses**.

J. Social Engineering Loss

The Company shall reimburse the Named Insured the amount of **Social Engineering Loss** in excess of the Retention Amount stated in the Declarations that results directly from a **Social Engineering Incident** that:

1. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and
2. Is reported to the Company pursuant to Paragraph **A. Claims Reporting Provision** under Section **VIII – Claims, Loss, And Expenses**.

K. Telecommunications Fraud And Cryptojacking

The Company shall reimburse the Named Insured the amount of **Telecommunications Fraud Or Cryptojacking Charges** in excess of the Retention Amount stated in the Declarations that result directly from **Telecommunications Fraud Or Cryptojacking** that:

1. Occurs on or after the Retroactive Date stated in the Declarations and is discovered during the **Policy Period**; and

2. Is reported to the Company pursuant to Paragraph **A. Claims Reporting Provision** under Section **VIII – Claims, Loss, And Expenses**.

However, payments under this Insuring Agreement shall not include any loss, costs, or expenses associated with a **Social Engineering Incident**.

L. Supplementary Payments

1. Reward Coverage

- a. The Company shall reimburse the Named Insured the actual payment of a reward offered for information leading to the arrest and conviction of persons responsible for crimes committed against an **Insured** and related to a covered **Policy Event**.
- b. Reimbursement will be subject to a maximum of 50% of a covered **Policy Payment**, up to a maximum reimbursement of \$25,000 per **Policy Period** and Extended Reporting Period, if applicable.
- c. The Named Insured shall give the Company written proof of payment of a reward as soon as practicable, but no later than 60 days after payment of such reward.

2. Loss Of Earnings And Expense Reimbursement

- a. The Company shall reimburse **Employees** of the Named Insured as expense reimbursement for all reasonable and necessary expenses incurred by an **Insured** at the Company's written request for attendance at any arbitration, mediation, deposition, hearing, or trial in connection with a **Claim** to which this Coverage Part applies. The Named Insured shall give the Company written proof of payment of expenses as soon as practicable, but in no event later than 60 days after incurring such expenses.
- b. The Company shall compensate the Named **Insured** for loss of earnings of an **Insured** a maximum of the Loss Of Earnings And Expense Reimbursement Per Day Limit Of Liability stated in the Declarations per day for all **Insureds** to attend at the Company's written request any arbitration, mediation, deposition, hearing, or trial in connection with a **Claim** to which this Coverage Part applies.
- c. The maximum the Company shall pay the Named Insured for all **Insureds** for compensation of all loss of earnings and expense reimbursement for all **Claims** to which this Coverage Part applies and all attendances at the Company's written request is the Loss Of Earnings And Expense Reimbursement Maximum Limit Of Liability stated in the Declarations.

Any payment made under this Paragraph **L. Supplementary Payments** shall be in addition to the Markel Cyber 360SM Insurance Coverage Part Aggregate Limit Of Liability and the Combined Aggregate Limit Of Liability stated in the Declarations and shall not be subject to a Retention Amount.

SECTION III – DEFINITIONS

A. Application means:

1. The application for this Policy and for any policy issued by the Company, or any of its affiliates, of which this Policy is a direct or indirect renewal or replacement;
2. Any attachment to any such application; and
3. Any other materials or applications submitted with or incorporated into any such application.

B. Authority means any agency of:

1. A federal, state, or local government of the United States of America, its territories or possessions, or Puerto Rico;
2. A federal, provincial, or local government of the United Kingdom, Canada, or other commonwealth nations; or
3. The government of the European Union (EU) or any member nation;

any of which is charged with the administration or enforcement of laws or regulations relating to the use, transfer, or storage of electronic communications or data storage systems.

C. Business Interruption Loss means those sums established by a loss adjuster to reflect the difference between the **Insured's** net profit or loss (before taxes) normally achieved and the net profit or loss (before taxes) actually achieved, taking into account reasonable business projections, seasonal influences, and prevailing economic conditions, and:

1. The **Insured's** continuing and normal fixed costs and expenses actually incurred, including payroll, not saved as a result of the interruption or shutdown; and
2. Reasonable and necessary additional costs of operating actually incurred by the **Insured**, including but not limited to staff overtime payments;

during a **Period Of Interruption** but after any Retention Period and solely as a result of a:

- a. **Computer System** being affected by a **Security Business Interruption Event** or **System Failure Business Interruption Event**; or
- b. **Shared System** being affected by a **Contingent Security Business Interruption Event** or **Contingent System Failure Business Interruption Event**.

However, **Business Interruption Loss** will be reduced by the Company to reflect any work deferred by the **Insured** due to a **Period Of Interruption** but subsequently conducted or completed within the first 60 days after the **Period Of Interruption** ends.

Business Interruption Loss includes reasonable and necessary **Forensic Expense** actually incurred to conduct an audit of the **Computer System** to ascertain the source, scope, and extent of any **Security Business Interruption Event** or **System Failure Business Interruption Event** leading to a **Business Interruption Loss**.

D. Claim means:

1. With respect to Insuring Agreements **A. Cyber And Privacy Liability** and **C. Media Offense Liability** only, any:
 - a. Written demand against any **Insured** for **Damages** or non-monetary or injunctive relief, commenced by such **Insured's** receipt of such written demand;
 - b. Civil proceeding against any **Insured** seeking **Damages** or non-monetary or injunctive relief, commenced by the service of a complaint or similar pleading upon such **Insured**;
 - c. Arbitration, mediation, or other alternative dispute resolution proceeding against any **Insured** seeking **Damages** or non-monetary or injunctive relief, commenced by such **Insured's** receipt of a written demand or service of a complaint or similar pleading upon such **Insured**; or
 - d. Written request directed at any **Insured** to toll or waive a statute of limitations applicable to a **Claim** referenced in Paragraphs **a.** through **c.** above;

all as a result of an **Unauthorized Access**, **Potential Unauthorized Access**, **Unintentional Data Compromise**, or **Media Offense**. However, with respect to this Paragraph **1.**, **Claim** shall not include a **Regulatory Proceeding**.

2. With respect to Insuring Agreement **B. Regulatory Fines** only, a **Regulatory Proceeding**, commenced by the **Insured's** receipt of notice of a charge or similar document.

E. Claim Expenses means reasonable and necessary amounts incurred by the Company, or by the **Insured** with the prior written consent of the Company, in the defense of that portion of any **Claim** for which coverage is afforded under this Coverage Part, including costs of investigation, court costs, costs of bonds to release attachments and similar bonds but without any obligation of the Company to apply for or furnish any such bonds, and costs of appeals; however, **Claim Expenses** shall not include:

1. Salary, wages, overhead, or benefit expenses of or associated with **Employees** or officials of the Named Insured or employees or officials of the Company; or
2. Salary, wages, administration, overhead, benefit expenses, or charges of any kind attributable to any in-house counsel or outside counsel for the Named Insured or the Company.

F. Computer System means:

1. Any computer hardware, firmware, software, or any components thereof; and
2. The data stored thereon wherever located, associated input and output devices, data storage devices and repositories, networking equipment, backup facilities, and websites;

that are under the ownership, operation, or control of, or that is contracted or leased by, the Named Insured.

G. Content means advertising, publicity, press release, articles, publication, marketing or promotional item, or broadcast by any medium.

- H. Contingent Security Business Interruption Event** means the actual interruption to or degradation in the availability of a **Shared System** resulting directly from an **Unauthorized Access**.
- I. Contingent System Failure Business Interruption Event** means the actual interruption to or degradation in the availability of a **Shared System** resulting directly from a **System Failure**.
- J. Control Group** means the Named Insured's board members, chief executive officer (CEO), chief operating officer (COO), chief information officer (CIO), chief financial officer (CFO), chief information security officer (CISO), chief procurement officer (CPO), chief technology officer (CTO), general counsel, human resources director, risk manager, or their functional equivalents.
- K. Damages** means the monetary portion of any judgment, award, or settlement, including punitive or exemplary damages to the extent such punitive or exemplary damages are insurable under the applicable law most favorable to the insurability of such damages. However, **Damages** shall not include:
1. Multiplied portions of damages in excess of actual damages, including trebling of damages;
 2. The cost of any modifications or changes to the **Insured's** security measures, procedures, software, or hardware required or agreed to by the **Insured** to satisfy a judgment, award, or settlement;
 3. Any cost required to repair, build, or modify property to comply with any award by a court, administrative order, arbitration award, or any similar judgment;
 4. Taxes, criminal or civil fines, sanctions, attorneys' fees of a party other than an **Insured**, or penalties imposed by law;
 5. Matters that are uninsurable under the law pursuant to which this Coverage Part shall be construed;
 6. The return, withdrawal, reduction, restitution, or payment of any fees, profits, charges for services, consideration, or expenses paid to the **Insured**;
 7. **Regulatory Fines**;
 8. **PCI DSS Assessments**; or
 9. **Social Engineering Loss**.
- L. Denial Of Service Attack** means any unlawful or unauthorized attempt by a third party to temporarily or indefinitely overload, hinder, interrupt, or suspend service to a **Computer System** via the internet.
- M. Domestic Partner** means any natural person qualifying as a domestic partner under the provisions of any applicable federal, state, or local law.
- N. Employee** means any natural person (except a director or trustee who is not also an officer or employee of the Named Insured, if the Named Insured is a corporation or trust) while in the regular service of the Named Insured in the ordinary course of the Named Insured's business and whom the Named Insured compensates by salary, wages, or commissions and has the right to govern and direct the performance of such service. **Employee** includes any **Leased Worker** and **Temporary Worker**, but does not include any independent contractor or consultant of the Named Insured.
- O. Extortion Event** means a credible threat by a third party including, but not limited to, a threat to initiate ransomware or a **Denial Of Service Attack**, threatening or portending:
1. Loss or damage to **Private Data**;
 2. Loss or damage to a **Computer System**; or
 3. Loss of money, securities, bonds, or any other financial instrument of the Named Insured, solely to the extent that record of such is maintained in digital or electronic format on a **Computer System**.
- P. Extortion Loss** means the reasonable and necessary payment by the Named Insured of a ransom or extortion demand, including payments via digital currencies or the fair market value of goods or services demanded in lieu of a ransom, to respond to an **Extortion Event**.
- Extortion Loss** includes costs to conduct an independent security audit of the **Computer System**.
- Q. Extra Expense** means expenses to continue the conduct of the Named Insured's business that would not have been incurred if there had not been an **Unauthorized Access**, **Potential Unauthorized Access**, or **Unintentional Data Compromise**.

- R. Financial Loss** means the loss of money, securities, bonds, or similar financial instruments with monetary value that is actually incurred by the Named Insured and that is proximately caused by an **Unauthorized Access**, **Potential Unauthorized Access**, or **Unintentional Data Compromise** committed by a person or group of persons, none of whom are an **Insured**, having the intent to commit fraud, theft, or other dishonest act.
- S. Forensic Expense** means costs to engage the services of a third-party computer security expert.
- T. Interrelated Policy Event** means more than one **Policy Event** that have as a common connection or nexus any fact, incident, circumstance, situation, event, transaction, or cause including, but not limited to, a computer security incident, intrusion, breach, compromise, theft, loss, or use of a **Computer System** or **Shared System**.
- U. Leased Worker** means any natural person leased to the Named Insured by a labor leasing organization, under an agreement between the Named Insured and the labor leasing organization, to perform duties related to the conduct of the Named Insured's business and at the Named Insured's direction.
- V. Loss** means **System And Data Rectification Costs** and **Financial Loss**.

However, **Loss** shall not include:

1. Any cost required to repair, build, or modify tangible property to comply with any award or order by a court, an **Authority**, arbitration, or any similar proceeding;
 2. Any loss of reputation of the Named Insured, loss of customer confidence in the Named Insured, or the value imputed to such loss;
 3. Expenses incurred by the **Insured** in establishing the amount of any **Loss** covered under this Coverage Part;
 4. **Business Interruption Loss**;
 5. **PCI DSS Assessments**;
 6. **Social Engineering Loss**; or
 7. **Telecommunications Fraud Or Cryptojacking Charges**.
- W. Media Offense** means any of the following acts, errors, or omissions by the **Insured** in its dissemination of **Content** for which the Named Insured is legally responsible:
 1. Libel, slander, or defamation, or any other form of disparagement;
 2. Invasion or infringement of the right of privacy or the right of publicity;
 3. Improper deep-linking, framing, web harvesting, web scraping, or data extraction;
 4. Infringement of copyright, service mark, service name, trademark, title, trade dress, trade name, or slogan, and unfair competition alleged in connection therewith;
 5. Plagiarism, piracy, or misappropriation of ideas under implied contract; or
 6. Infliction of emotional distress, mental anguish, false arrest, or malicious prosecution.
 - X. Outsource Service Provider** means an entity that hosts the Named Insured's applications or operates a **Shared System** on behalf of the Named Insured pursuant to a written contract with the Named Insured. However, **Outsource Service Provider** does not include any entity owned, operated, or controlled, in whole or in part, by the Named Insured.
 - Y. Payment Card Breach** means an actual or suspected unintentional disclosure of payment card data stored or processed by the Named Insured resulting from an **Unauthorized Access** or **Unintentional Data Compromise**.
 - Z. PCI DSS Assessments** means the amount actually incurred by the Named Insured as a result of any written demand received by an **Insured** from a card association or acquiring bank for monetary assessments or fines for an actual or alleged violation of the Payment Card Industry Data Security Standard.

However, **PCI DSS Assessments** shall not include **Privacy Breach Notification And Mitigation Costs**.

AA. Period Of Interruption means the shorter of the following:

1. The actual continuous period of time the **Computer System** or **Shared System** is affected or interrupted; or
2. The 120 days immediately following discovery that the **Computer System** or **Shared System** has been affected or interrupted.

BB. Policy Event means **Unauthorized Access, Potential Unauthorized Access, Media Offense, Unintentional Data Compromise, Security Business Interruption Event, Contingent Security Business Interruption Event, System Failure, Payment Card Breach, Social Engineering Incident, or Telecommunications Fraud Or Cryptojacking**, but only to the extent covered under each purchased Insuring Agreement.

CC. Policy Payment means **Damages, Regulatory Fines, Claim Expenses, Loss, Extortion Loss, Business Interruption Loss, Privacy Breach Notification And Mitigation Costs, PCI DSS Assessments, Social Engineering Loss, or Telecommunications Fraud Or Cryptojacking Charges**, but only to the extent covered under each purchased Insuring Agreement.

DD. Policy Period means the period from the inception date of this Coverage Part to the Coverage Part expiration date stated in the Declarations, or the effective date of any earlier cancellation or termination of this Policy.

EE. Pollutants means any solid, liquid, gaseous, fuel, lubricant, thermal, acoustic, electrical, or magnetic irritant or contaminant including, but not limited to, smoke, vapor, soot, fumes, fibers, radiation, acid, alkalis, petroleum, chemicals, or waste. Waste includes medical waste and all other materials to be disposed of, recycled, stored, reconditioned, or reclaimed.

FF. Potential Unauthorized Access means the credible threat of an **Unauthorized Access** to a **Computer System**.

However, **Potential Unauthorized Access** shall not mean the threat of a **Social Engineering Incident**.

GG. Predecessor Entity means any entity to whose financial assets and liabilities the Named Insured is the majority successor in interest.

HH. Preventative Shutdown means the reasonable intentional shutdown by an **Insured**, or by a third party on behalf of an **Insured**, of a **Computer System**, but only to the extent that the shutdown is in response to:

1. An **Unauthorized Access** or **Potential Unauthorized Access** expressly directed against such **Computer System**; or
2. A **System Failure**;

provided that such intentional shutdown serves to mitigate or reduce **Privacy Breach Notification And Mitigation Costs, Loss, PCI DSS Assessments, Damages, Regulatory Fines, or Claim Expenses**, and the **Insured** is able to demonstrate that the **Business Interruption Loss** resulting from such shutdown is less than the amount of **Privacy Breach Notification And Mitigation Costs, Loss, PCI DSS Assessments, Damages, Regulatory Fines, and Claim Expenses** that would have been covered under each of the purchased Insuring Agreements had there not been any intentional shutdown of the **Computer System**.

However, the Company shall not be liable to pay any **Business Interruption Loss** incurred as the result of a **Preventative Shutdown** that exceeds a period of 24 hours unless, prior to the end of the first 24 hour shutdown period, the Company consents in writing to the continuation of the **Preventative Shutdown**.

II. Privacy Breach Notification And Mitigation Costs means the following reasonable and necessary expenses actually incurred by the Named Insured with the prior written consent of the Company:

1. Expenses associated with the services of a public relations professional, or other publicity expenses that are recommended by a public relations professional, to respond to any adverse publicity in the media that are the result of an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise**;
2. Expenses, including, but not limited to, notification and call center costs and related legal fees, that are actually incurred to comply with a **Security Breach Notice Law** and that are the result of an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise**;
3. Expenses associated with voluntarily providing notifications, credit monitoring services, identity restoration services, or credit repair services for a period of 12 months (or longer if required by law or regulation) to individuals affected by an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise**;
4. Expenses associated with the Named Insured's contractual obligation to indemnify its customer, a merchant bank, or a payment card processor for amounts as included in Paragraphs **1.** through **3.** above, arising from an **Unintentional Data Compromise**, but only if such obligation was present in a written service agreement executed by the parties prior to the **Unintentional Data Compromise**; and

5. Expenses associated with the services of a data security expert, breach coach, or consultant that are actually incurred in response to an **Unauthorized Access**, **Potential Unauthorized Access**, or **Unintentional Data Compromise**.

However, **Privacy Breach Notification And Mitigation Costs** shall not include **PCI DSS Assessments**.

JJ. Private Data means data, in the care, custody, and control of an **Insured** or for which the Named Insured is legally responsible, containing any of the following:

1. An individual's driver's license or other state-issued identification number, social security number, unpublished telephone number, or savings account, checking account, credit card, or debit card number;
2. Nonpublic personal information as defined in the Gramm-Leach-Bliley Act of 1999, as amended, and regulations issued pursuant thereto;
3. Medical and healthcare information, including protected healthcare information as defined in the Health Insurance Portability and Accountability Act of 1996 (HIPAA), as amended, and regulations issued pursuant thereto;
4. Private personal information as defined under a **Security Breach Notice Law**;
5. Private personal information as defined under the law of a country other than the United States, which law is intended to provide for the protection of such private personal information; or
6. Proprietary information of third parties of commercial value which the Named Insured is legally responsible to maintain in confidence;

not including any data available to or accessible by the general public.

KK. Regulatory Fines means civil fines and penalties assessed against the **Insured** by an **Authority** to the extent such civil fines and penalties are insurable under the applicable law.

LL. Regulatory Proceeding means a formal hearing, official investigation, examination, inquiry, legal action, or any other similar proceeding initiated by an **Authority** against the **Insured** as a result of a **Policy Event**.

MM. Security Breach Notice Law means any local, state, federal, or foreign identity theft and privacy protection law, statute, or regulation requiring commercial entities that handle or collect **Private Data** to post privacy policies, adopt specific privacy or security controls and protocols, or notify individuals in the event that **Private Data** has potentially been compromised.

NN. Security Business Interruption Event means the actual interruption to or degradation in the availability of a **Computer System** resulting directly from an **Unauthorized Access**, **Potential Unauthorized Access**, or **Preventative Shutdown**.

OO. Shared System means any computer hardware, firmware, software, or any components thereof, on which the Named Insured's data is stored, wherever located, as well as associated input and output devices, data storage devices and repositories, networking equipment, and backup facilities and websites that are under the ownership, operation, or control of an **Outsource Service Provider**, and is linked to a **Computer System** through a network of 2 or more devices accessible through the Internet, internal network, or connected with data storage or other peripheral devices.

PP. Social Engineering Incident means any priming, pretexting, spoofing, or other fraudulent, manipulative, or deceptive communication received by an **Insured** within the normal course of the Named Insured's business operations. However, **Social Engineering Incident** shall not mean **Unauthorized Access**.

QQ. Social Engineering Loss means:

1. The loss of money, securities, bonds, or similar financial instruments with monetary value that is incurred by the Named Insured;
2. The actual loss of pecuniary value of tangible property that is incurred by the Named Insured;
3. The loss of funds, held in escrow or trust, or controlled or managed, by the Named Insured, as the result of theft or misdirection; or
4. The loss of personal funds of members of the **Control Group** as the result of theft.

RR. Subsidiary means:

1. Any entity, excluding partnerships or joint ventures, of which the **Insured** owns more than 50% of the outstanding voting securities or has the right to exercise more than 50% of the voting rights for the election or appointment of

the members of the board of directors or equivalent management positions including, but not limited to, members of the board of managers of a limited liability company;

2. Any entity that is newly created or acquired during the **Policy Period**, provided that such entity's total consolidated assets as of the date of such creation or acquisition will be no more than 25% of the total consolidated assets of the **Insured** according to the most recently filed audited financial statements. A newly created or acquired **Subsidiary** will only receive coverage for **Claims** arising from **Policy Event** occurring after such date of creation or acquisition and before the end of the **Policy Period**; or
3. Any organization operated as a joint venture in which, on or prior to the inception date stated in the Declarations, the **Insured** owns, directly or through one or more **Subsidiaries**, exactly 50% of the organization's outstanding securities with voting rights, and under a written agreement with the organization's remaining owners, has sole control of the organization's management and operations.

SS.System And Data Rectification Costs means:

1. Reasonable and necessary **Forensic Expense** actually incurred to determine the existence and cause of the **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise**;
2. Reasonable and necessary **Extra Expense** actually incurred by the Named Insured during the period from the time of the discovery of an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise** to the time a **Computer System** is or can be restored to the condition that existed prior to an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise**;
3. Reasonable and necessary expenses actually incurred by the Named Insured, with the prior written approval of the Company, to reduce **System And Data Rectification Costs** after an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise** to the extent that such expenses do not exceed the value of the **System And Data Rectification Costs** that such expenses are incurred to reduce;
4. Reasonable and necessary:
 - a. Costs actually incurred by the Named Insured to restore, replace, replicate, or reinstate a **Computer System** (but not including any industrial control system [ICS] or Supervisory Control and Data Acquisition [SCADA] related hardware) after an **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise** that has resulted in loss of use or functionality; and
 - b. **Forensic Expense** actually incurred by the Named Insured, up to \$50,000 (which is part of, not in addition to, the System And Data Rectification Costs And Financial Loss Limit Of Liability stated in the Declarations), for an audit to be conducted in order to demonstrate the **Insured's** ability to prevent a future **Unauthorized Access, Potential Unauthorized Access, or Unintentional Data Compromise** as required by a merchant services agreement; and
5. Reasonable and necessary costs actually incurred by the Named Insured to replace or reinstate a more secure and efficient version of the **Computer System** affected by an **Unauthorized Access**, including the cost of:
 - a. Replacing computer hardware (including networking equipment but not including any industrial control system [ICS] or Supervisory Control and Data Acquisition [SCADA] related hardware), but only where it is a more practical and cost effective solution than rebuilding existing hardware;
 - b. Upgrading existing computer software and operating systems with newer versions of the original model or license, but only where the affected systems and software are all within their standard support agreement; and
 - c. Implementing new security technology to protect against the **Unauthorized Access** that gave rise to the **System And Data Rectification Costs**, but only when the use of this technology is deemed by a qualified third-party security expert to be the most viable course of action to defend against that **Unauthorized Access**.

The maximum amount the Company shall pay for costs described in Paragraphs **5.a.** through **5.c.** above is 125% of the cost that would have been incurred to replace or reinstate the **Computer System** in the same or similar configuration as it was prior to the **Unauthorized Access** giving rise to the **System And Data Rectification Costs**, and such costs are part of, not in addition to, the System And Data Rectification Costs And Financial Loss Limit Of Liability stated in the Declarations.

However, **System And Data Rectification Costs** does not include any costs or charges associated with building, modifying, or upgrading the **Computer System**, security measures, or procedures, other than those costs described and limited in Paragraph 5. above.

TT. System Failure means the unintentional and unplanned outage of a **Computer System**.

Solely with respect to Insuring Agreement **G.2. Contingent System Failure Business Interruption Event**, **System Failure** means the unintentional and unplanned outage of a **Shared System**.

However, **System Failure** shall not include any:

1. Outage of a **Computer System** or **Shared System** caused by an **Unauthorized Access**; or
2. Failure or interruption of service attributable to any internet service provider, telecommunications provider, utility provider, or other infrastructure provider.

UU. System Failure Business Interruption Event means the actual interruption to or degradation in the availability of a **Computer System** resulting directly from a **System Failure** or **Preventative Shutdown**.

VV. Telecommunications Fraud Or Cryptojacking means the unauthorized gaining of access to:

1. Outgoing telephone service of the Named Insured's telephone system; or
2. Bandwidth of the **Computer System** for the purpose of mining cryptocurrency or any other digital or electronic currency.

WW. Telecommunications Fraud Or Cryptojacking Charges means telephone, telegraph, cable, bandwidth, or broadcasting charges or any other unintended or unauthorized charges actually incurred by the Named Insured associated with the misuse of the telephone system or **Computer System**, provided that such charges:

1. Are charged to the Named Insured in a periodic billing statement by the provider of such service or resource pursuant to a written contract or agreement between the Named Insured and the provider, executed prior to the **Telecommunications Fraud Or Cryptojacking**; and
2. Are not charged at a flat fee that does not scale with the rate of use of such service or resource.

XX. Temporary Worker means any natural person who is furnished to the Named Insured to substitute for a permanent **Employee** on leave or to meet seasonal or short-term work load requirements, who performs duties related to the conduct of the Named Insured's business and which duties are at the Named Insured's direction.

YY. Unauthorized Access means a breach of a **Computer System**, including:

1. Any intentional violation, interception, use, or misuse of a **Computer System**, whether or not for profit or gain, by any person without the permission, knowledge, or ratification of the **Insured**;
2. Access to a **Computer System** with the **Insured's** permission, where such permission is the result of fraud or deception, including phishing scams;
3. Use of a **Computer System** by a party, including a rogue **Employee**, authorized by the **Insured** to use such system, who does so for an unauthorized purpose;
4. The introduction of viruses, malware, or other programs into a **Computer System** which contain fraudulent or destructive instructions or code, including any inadvertent transmission of such programs to a third party;
5. An **Extortion Event**; or
6. A **Denial Of Service Attack**, or the failure to prevent an unauthorized user or code from launching a **Denial Of Service Attack** on a third party through a **Computer System**.

With respect solely to Insuring Agreement **F.2. Contingent Security Business Interruption Event**, **Unauthorized Access** means any intentional violation, interception, use, or misuse of a **Shared System**, whether or not for profit or gain, by any person without the permission, knowledge, or ratification of the **Outsource Service Provider**.

However, **Unauthorized Access** shall not mean **Social Engineering Incident**.

ZZ. Unintentional Data Compromise means:

1. Any computer security incident, including by an **Unauthorized Access**, resulting in the intrusion, breach, compromise, theft, loss, or misuse of **Private Data**;
2. The theft or loss of any paper records containing **Private Data**;

3. The failure of any third party to prevent the unauthorized viewing, copying, or distribution of **Private Data** which the Named Insured has entrusted to such party under a written contract or agreement that specifically requires such party to protect the confidentiality of the **Private Data** so entrusted; or
4. The unintentional breach of the Named Insured's written privacy policy.

SECTION IV – EXCLUSIONS

A. With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim, Policy Event, or Policy Payment**:

1. Bodily Injury

For bodily injury, sickness, or disease sustained by a person, including death resulting from any of these; however, this exclusion shall not apply to **Damages** resulting from humiliation or the infliction of emotional distress arising solely from an **Unauthorized Access, Potential Unauthorized Access, or Media Offense**.

2. Collection Of Data

Based upon or arising out of the collection of information by the **Insured**, or others on the **Insured's** behalf, without the knowledge or permission of the persons to whom such information relates; however, this exclusion shall not apply:

- a. If no member of the **Control Group** knew or had reason to know of such conduct; or
- b. To **Privacy Breach Notification And Mitigation Costs**.

3. Contractual Liability

Based upon or arising out of:

- a. An **Insured's** actual or alleged liability under a written contract or agreement including, but not limited to, express warranties or guarantees;
- b. An **Insured's** contractual liability involving the ownership of intellectual property with any vendor, customer, sub-contractor, or current or former **Employee**; or
- c. Liability of others assumed by an **Insured** under any oral or written contract or agreement.

However, this exclusion shall not apply to:

- (1) Any liability that would have attached to the **Insured** in the absence of such contract, agreement, warranty, or guarantee;
- (2) The Named Insured's contractual obligation to indemnify its customer, a merchant bank, or a payment card processor for expenses described in Paragraph 4. of the definition of **Privacy Breach Notification And Mitigation Costs** that arise from an **Unintentional Data Compromise**, but only if such obligation was present in a written service agreement effected by the parties prior to the **Unintentional Data Compromise**;
- (3) An **Insured's** contractual obligation to maintain the confidentiality or security of **Private Data**;
- (4) An unintentional violation by an **Insured** to comply with the Named Insured's privacy policy;
- (5) Solely with respect to Insuring Agreement C. Media Offense Liability, misappropriation of an idea under implied contract; or
- (6) **PCI DSS Assessments**.

4. Conversion Or Misappropriation

Based upon or arising out of any conversion, misappropriation, commingling, or defalcation of funds or property; however, this exclusion shall not apply to **Loss** or **Social Engineering Loss**.

5. Cost Guarantees

Based upon or arising out of any inaccurate, inadequate, or incomplete description of the price of goods, products, or services.

6. Electromagnetic

Based upon, arising out of, or in any way involving electromagnetic fields, electromagnetic radiation, electromagnetic pulses, electromagnetism, solar flares and storms, or any other type of radiation.

7. Employment Related Practices

Brought by or on behalf of any **Employee**, former **Employee**, or prospective **Employee** based upon, arising out of, or in any way involving the employment relationship or the nature, terms, or conditions of employment or any workplace tort; however, this exclusion shall not apply to any **Claim** arising out of an **Unintentional Data Compromise** of the **Private Data** of an **Employee**.

8. ERISA/RICO/SEC

Based upon or arising out of any actual or alleged violation of or violation of the responsibilities, obligations, or duties imposed by:

- a. The Employment Retirement Income Security Act of 1974 and any amendments thereto, or any rules or regulations promulgated thereunder;
- b. The Racketeer Influenced and Corrupt Organization Act 18 USC Sections 1961 et seq. and any amendments thereto, or any rules and regulations promulgated thereunder; or
- c. Any of the provisions of the Securities Act of 1933, the Securities Exchange Act of 1934, or any similar federal, state, or common law relating thereto.

9. Fraudulent Or Dishonest Acts

Based upon, arising out of, or in any way involving the actual or alleged dishonest, fraudulent, criminal, or malicious act or omission of the **Insured** or at the **Insured's** direction; however:

- a. No fact pertaining to, or knowledge possessed by, any **Insured** will be imputed to any other **Insured** to determine if coverage is available; and
- b. This exclusion does not apply to **Claim Expenses** incurred until an allegation is determined through admission by the **Insured** or final and non-appealable adjudication to be a dishonest, fraudulent, criminal, or malicious act or omission.

10. Governmental Entity

Caused by access to a **Computer System** or **Shared System** that is attributed, by the government of the United States of America, to any government, governmental agency, or sub-agency, or any agents thereof while acting on behalf of such entity.

11. Infrastructure

Based upon, arising out of, or in any way involving:

- a. Fire, smoke, explosion, or any act of nature including, but not limited to, lightning, wind, water, flood, earthquake, volcanic eruption, tidal wave, landslide, or hail, however caused; or
- b. Any failure of satellite, power, utility, mechanical, telecommunications, or networking infrastructure not under the control of the Named Insured or **Outsource Service Provider**.

However, this exclusion shall not apply to failures, interruptions, disturbances, or outages of telecommunications systems or networking infrastructure under an **Insured's** or **Outsource Service Provider's** operational control which are a result of an **Unauthorized Access** or **System Failure**.

12. Insured Versus Insured

Brought by, in the name of, or on behalf of any **Insured**; however, this exclusion shall not apply to any **Claim** arising out of an **Unintentional Data Compromise** of the **Private Data** of an **Employee**.

13. Known Policy Event

Based upon, arising out of, or in any way involving any **Policy Event** that was known to exist by any member of the **Control Group** prior to the inception of the Policy.

14. Owned Or Controlled Entities

Brought by any organization that is operated, managed, or owned, in whole or in part, by the Named Insured or any parent organization, **Subsidiary**, division, or affiliated organization thereof.

15. Patents Or Trade Secrets

Based upon or arising out of infringement or inducement of infringement of patent or trade secret.

16. Personal Liability

For personal liability of any member of the **Control Group** when acting in that capacity or when managing the Named Insured's business.

17. Pollution

Based upon, arising out of, or in any way involving any:

- a. Actual, alleged, or threatened discharge, disposal, migration, dispersal, release, or escape of **Pollutants**; or
- b. Direction, order, or request to test for, monitor, remediate, clean up, remove, contain, treat, detoxify, or neutralize **Pollutants**, or to pay for or contribute to the costs of undertaking such actions.

18. Professional Services

For an act, error, or omission in the performance of professional services rendered or that should have been rendered by the **Insured** or by any person or organization for whose acts, errors, or omissions the **Insured** is legally responsible.

19. Property Damage

For physical damage to tangible property, including all resulting loss of use of that property or loss of use of tangible property that is not physically damaged; however, this exclusion shall not apply to damage to, corruption of, or inability to access data, software, and computer networks arising solely from an **Unauthorized Access**, **Potential Unauthorized Access**, or **Media Offense**.

20. Recalls

Based upon, arising out of, or in any way involving any costs to recall, repair, replace, upgrade, supplement, withdraw, or remove the Named Insured's products or services.

21. Trade Practices And Antitrust

Based upon or arising out of any actual or alleged violation of any law, whether statutory, regulatory, or common law, respecting any of the following activities: antitrust, business competition, unfair trade practices, or tortious interference in another's business or contractual relationships; however, this exclusion shall not apply to a **Regulatory Proceeding** resulting directly from an **Unauthorized Access** or **Unintentional Data Compromise**.

22. Unsolicited Or Otherwise Improper Communications

Based upon, arising out of, or in any way involving violation of any federal, state, or local statute, law, rule, ordinance, or regulation that addresses, prohibits, or limits the dissemination, interception, receiving, sending, transmitting, communicating, printing, disposal, collecting, recording, or distribution of information or other material including, but not limited to, the:

- a. Telephone Consumer Protection Act of 1991 (TCPA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation;
- b. CAN-SPAM Act of 2003 and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation; or
- c. Fair Credit Reporting Act (FCRA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation including, but not limited to, the Fair and Accurate Credit Transactions Act of 2003 (FACTA).

23. Virtual Currencies

Based upon, arising out of, or in any way involving any virtual currency, including but not limited to cryptocurrency, including fluctuations in value; however, this exclusion shall not apply to **Extortion Loss** involving ransom payments in the form of bitcoin or other virtual currency.

24. War

Due to acts of foreign enemies, riot, civil commotion, rebellion, revolution, military action, war, warlike operations (whether war is declared or not), civil war, insurrection, or usurped power. However, this exclusion does not apply to an **Unauthorized Access** initiated specifically against the **Insured**.

B. Solely with respect to Insuring Agreement **C.** Media Offense Liability, this Coverage Part does not apply to any **Claim**:

1. Contests Or Games Of Chance

Based upon or arising out of any gambling, contest, lottery, or other game of chance.

2. Failure To Perform

Based upon or arising out of failure of goods, products, or services to conform to any statement of quality or performance.

3. Infringement Of Intellectual Property

Based upon or arising out of infringement of copyright, title, trade dress, slogan, service mark, service name, trademark, trade name, or other intellectual property arising from any tangible goods or products of others displayed on the Named Insured's website.

4. Performance Rights Organizations

Brought by, in the name of, or on behalf of any performance rights organization including, but not limited to, ASCAP, BMI, SESAC, SOCAN, or SoundExchange.

C. Solely with respect to Insuring Agreements **D.** System And Data Rectification Costs And Financial Loss, **F.** Security Business Interruption Loss, **G.** System Failure Business Interruption Loss, and **H.** Privacy Breach Notification And Mitigation Costs, this Coverage Part does not apply to:

1. Betterment, Property, And Hardware Costs

a. Any costs or expenses to restore, replace, replicate, or reinstate the **Computer System** to a level beyond or above that which existed immediately prior to the **Unauthorized Access**, **Potential Unauthorized Access**, or **System Failure** which gave rise to the **Policy Payment**; or

b. Any tangible property repair or replacement, including the cost of repairing any hardware or replacing any tangible property or equipment that forms part of a **Computer System** or **Shared System**.

However, this exclusion shall not apply to Insuring Agreement **D.** System And Data Rectification Costs And Financial Loss, subject to the maximum liability of the Company as described in and limited by Paragraph **5.** of the definition of **System And Data Rectification Costs**.

2. Media Offense

Any **Policy Payments** based upon or arising out of a **Media Offense**.

3. Theft Of Financial Instruments

Any **Policy Payments** based upon or arising out of the actual or alleged theft of money, securities, bonds, or similar financial instruments with monetary value caused, or contributed to, by any fraudulent, dishonest, or criminal act committed by any person who is an **Employee** of an **Insured** or any employee of an **Outsource Service Provider** at the time of the **Unauthorized Access**, whether acting alone or in collusion with others.

4. Trade Secrets

Any **Policy Payments** based upon or arising out of the reduction in value of trade secrets, confidential processing methods, or other confidential or proprietary information.

SECTION V – TERRITORY

The insurance afforded by this Coverage Part applies worldwide except for **Claims** made, or **Policy Payments** or Supplementary Payments incurred, in any country on which the government of the United States of America has imposed trade sanctions, embargoes or any similar regulations that prohibit the transaction of business with or within such country.

SECTION VI – LIMITS OF LIABILITY AND RETENTIONS

A. Limits Of Liability

1. Insuring Agreement Aggregate Limits Of Liability

Subject to the Markel Cyber 360SM Insurance Coverage Part Aggregate Limit Of Liability, the total liability of the Company under any one Insuring Agreement shall not exceed the applicable Insuring Agreement Aggregate Limit Of Liability stated in the Declarations for the sum of all **Policy Payments**:

- a. Arising out of all **Claims**, with respect to Insuring Agreement **A.**, **B.**, or **C.**, if purchased, that are first made against the **Insured** during the **Policy Period** and the Extended Reporting Period, if applicable, and reported to the Company pursuant to Section **VIII** – Claims, Loss, And Expenses; or
- b. Resulting directly from all applicable **Policy Events**, with respect to Insuring Agreement **D.**, **E.**, **F.**, **G.**, **H.**, **I.**, **J.**, or **K.**, if purchased, that are reported to the Company pursuant to Section **VIII** – Claims, Loss, And Expenses.

2. Markel Cyber 360SM Insurance Coverage Part Aggregate Limit Of Liability

Regardless of the number of **Insureds**, **Claims** made, persons or organizations making **Claims**, or **Policy Events**, the Markel Cyber 360SM Insurance Coverage Part Aggregate Limit Of Liability stated in the Declarations shall be the Company's maximum aggregate liability for the combined total of all **Policy Payments** under all purchased Insuring Agreements.

B. Retentions

1. Retention Amounts

- a. The Company shall not be obligated to make any **Policy Payment** or perform any service until the amount of the **Policy Payment** exceeds the applicable Retention Amount stated in the Declarations. The Retention Amount shall apply separately to each **Claim** or **Policy Event** and shall be borne by the **Insureds** and will remain uninsured.
- b. With respect to Insuring Agreements **A.**, **B.**, and **C.**, if purchased, the Retention Amount shall be applicable to each **Claim** and shall apply to **Damages** and **Claim Expenses**, whether or not any **Damages** payments are made. The determination of the Company as to the reasonableness of the **Claim Expenses** shall be conclusive on the Named Insured.

2. Retention Periods

The Company shall not be obligated to pay any **Business Interruption Loss** until the **Policy Event** exceeds the applicable Retention Period stated in the Declarations. **Business Interruption Loss** incurred prior to the end of the Retention Period shall be borne by the **Insureds** and will remain uninsured.

The applicable Each Event Retention Period stated in the Declarations applies separately to each **Security Business Interruption Event**, **Contingent Security Business Interruption Event**, **System Failure Business Interruption Event**, and **Contingent System Failure Business Interruption Event**.

C. Multiple Insureds, Policy Events, And Claims

1. The inclusion herein of more than one **Insured** in any **Claim** or **Policy Event**, or the reporting of a **Policy Payment** incurred by more than one person or organization or under more than one purchased Insuring Agreement of this Coverage Part, shall not operate to increase the Limits Of Liability stated in the Declarations and this Coverage Part.
2. All **Interrelated Policy Events** shall be treated as a single **Policy Event** deemed to have occurred on the date the earliest of such **Policy Events** occurred.

However, with respect to Insuring Agreements **F.** Security Business Interruption Loss and **G.** System Failure Business Interruption Loss, for the purpose of applying the Retention Period only, each **Security Business Interruption Event**, **Contingent Security Business Interruption Event**, **System Failure Business Interruption Event**, and **Contingent System Failure Business Interruption Event** will be considered a separate event, and a separate Retention Period will apply to each such event.
3. More than one **Claim** arising out of a single **Policy Event** or **Interrelated Policy Events** shall be treated as a single **Claim** and shall be deemed first made on the date the earliest of such **Claims** is first made.
4. It is the intent of the Company that the coverage afforded under the Insuring Agreements be mutually exclusive. If however, it is determined that more than one purchased Insuring Agreement applies to a single **Policy Event** or **Interrelated Policy Events**, then the smallest of the applicable Retentions for the purchased Insuring Agreements will apply.

SECTION VII – DEFENSE, SETTLEMENTS, AND CLAIM EXPENSES

A. Defense And Investigation

With respect to Insuring Agreements **A. Cyber And Privacy Liability**, **B. Regulatory Fines**, and **C. Media Offense Liability**, the Company shall have the right and duty to defend the **Insured** and to investigate any **Claim** to which coverage under this Coverage Part applies, pursuant to the following:

1. **Claim Expenses** incurred in defending and investigating such **Claim** shall be a part of, not in addition to, the applicable Limits Of Liability stated in the Declarations. Such **Claim Expenses** shall reduce the applicable Limits Of Liability and shall be applied against the applicable Retention Amount. The Company shall have no obligation to pay any **Damages** or **Regulatory Fines**, defend or continue to defend any **Claim**, or pay **Claim Expenses** after the applicable Limits Of Liability stated in the Declarations have been exhausted by payment of **Damages**, **Regulatory Fines**, or **Claim Expenses**.
2. The Company shall select defense counsel; however, if the law of the state of the Named Insured's domicile stated in the Declarations, allows the **Insured** to control the selection of defense counsel where a conflict of interest has arisen between the **Insured** and the Company, the Company will provide a list of attorneys or law firms from which the **Insured** may designate defense counsel who shall act solely in the interest of the **Insured**, and the **Insured** shall direct such defense counsel to cooperate with the Company. Such cooperation shall include:
 - a. Providing, on a regular basis but not less frequently than every 3 months, written reports on claimed **Damages**, **Regulatory Fines**, potential liability, progress of any litigation, any settlement demands, or any investigation developments that materially affect the **Claim**;
 - b. Providing any other reasonable information requested;
 - c. Providing fully itemized billing on a periodic basis; and
 - d. Cooperating with the Company and the **Insured** in resolving any discrepancies.

The fees and costs incurred by such defense counsel, including those fees and costs generated by cooperation with the Company as set forth above, shall be included as **Claim Expenses**.

B. Consent To Settlement

The Company shall not settle any **Claim** without the prior written consent of the first Named Insured, but the Company shall have the right to recommend a settlement of any **Claim**. If the first Named Insured refuses to settle such **Claim** pursuant to the Company's recommendations and acceptable to the claimant, then the Company's liability in regard to such **Claim** shall not exceed the sum of:

1. The amount of **Damages** or **Regulatory Fines** for which the Company could have settled such **Claim**;
2. **Claim Expenses** incurred as of the date such settlement was proposed in writing by the Company to the Named Insured; and
3. 80% of all covered **Damages**, **Regulatory Fines**, and **Claim Expenses** incurred thereafter on account of such **Claim**.

Such amounts are subject to the applicable Insuring Agreement Aggregate Limit Of Liability and the Market Cyber 360SM Insurance Coverage Part Aggregate Limit Of Liability stated in the Declarations.

- C. The Company may, at its sole discretion, investigate any **Policy Event**. The Company will pay for covered **Damages**, **Regulatory Fines**, **Claim Expenses**, **Loss**, **Privacy Breach Notification And Mitigation Costs**, or **PCI DSS Assessments** in excess of the Retention Amount, if applicable.

The Company will reimburse the Named Insured within 60 days after receipt of the sworn proof of **Extortion Loss**, **Business Interruption Loss**, **Social Engineering Loss**, or **Telecommunications Fraud Or Cryptojacking Charges**, provided:

1. The **Insured** has complied with all the terms of this Policy; and
2. The Company and the Named Insured have agreed with the items included within and the amounts documented in the Named Insured's sworn proof of **Extortion Loss**, **Business Interruption Loss**, **Social Engineering Loss**, or **Telecommunications Fraud Or Cryptojacking Charges**.

SECTION VIII – CLAIMS, LOSS, AND EXPENSES

A. Claims Reporting Provision

As a condition precedent to coverage afforded by this Coverage Part:

1. The **Insured** shall give to the Company written notice of any **Claim** or **Policy Event** as soon as practicable and in no event later than 60 days after the end of the **Policy Period** or during the Extended Reporting Period, if applicable.
2. The **Insured** shall:
 - a. Notify law enforcement in the event of a theft;
 - b. As soon as practicable, provide a description of how, when, and what elements of the **Computer System** were impacted by the **Unauthorized Access, Potential Unauthorized Access, Unintentional Data Compromise, or System Failure**;
 - c. Take all reasonable steps to protect the **Computer System** from further **Unauthorized Access, Unintentional Data Compromise, or System Failure** and to reduce **Policy Payments**;
 - d. As often as may be reasonably required, permit the Company to inspect the **Computer System** and examine the **Insured's** books and records related to the **Claim** or **Policy Event**;
 - e. Provide, in no event later than 60 days after the Company's request, a sworn proof of **Extortion Loss, Business Interruption Loss, Social Engineering Loss, or Telecommunications Fraud Or Cryptojacking Charges**, signed by the Named Insured, containing the information the Company requests to investigate the **Policy Payment**; and
 - f. Provide, as soon as practicable and to the extent possible, a description of how, when, and what elements of the **Shared System** were impacted by the **Unauthorized Access, Potential Unauthorized Access, Unintentional Data Compromise, or System Failure**.

In the event a suit is brought against the **Insured**, a charge against the **Insured** is instituted by any **Authority**, or any administrative action is initiated by an **Authority**, the **Insured** shall immediately forward to the address stated in the Claim Reporting policyholder notice every demand, notice, summons, or other process received by the **Insured** or its representatives.

B. Discovery Clause

1. With respect to Insuring Agreements **A. Cyber And Privacy Liability, B. Regulatory Fines, and C. Media Offense Liability**, if, during the **Policy Period**, the **Insured** first becomes aware of a specific **Policy Event** which is reasonably expected to result in a **Policy Payment** within the scope of coverage of this Coverage Part, then the **Insured** may elect to provide notice of a potential **Policy Payment** to the Company. Such notice shall be in writing, containing the information listed in Paragraph **B.2.** below, and sent to the Company at the address stated in the Claim Reporting policyholder notice. If such written notice is received by the Company during the **Policy Period**, then any **Claim** subsequently made against the **Insured** arising out of such **Policy Event** shall be deemed for the purpose of this insurance to have been first made on the date on which such written notice is first received by the Company.
2. It is a condition precedent to the coverage afforded by this Discovery Clause that written notice be given to the Company containing the following information:
 - a. The description of the specific **Policy Event**;
 - b. The date on which such **Policy Event** occurred;
 - c. The **Policy Payment** that has resulted or may result from such **Policy Event**; and
 - d. The circumstances by which the **Insured** first became aware of such **Policy Event**.

If, during the **Policy Period**, the **Insured** provides such written notice of a specific **Policy Event** which is reasonably expected to result in a **Policy Payment** within the scope of coverage of this Coverage Part, the Company, at its sole option, may investigate such specific **Policy Event**. Such matter shall be subject to all terms, conditions, and provisions in this Coverage Part as applicable to a **Policy Payment**.

C. Assistance And Cooperation Of The Insured

The **Insured** shall cooperate with the Company and, upon the Company's request, the **Insured** shall:

1. Timely provide all requested documents related to the investigation, evaluation, and defense of any **Claim** or **Policy Event**;

2. Submit to examination and interview by a representative of the Company and while not in the presence of any other **Insured**, under oath if required;
3. Attend hearings, depositions, and trials;
4. Assist in effecting settlement, securing and giving evidence, and obtaining the attendance of witnesses in the conduct of suits; and
5. Give written statements to the Company's representatives and meet with such representatives for the purpose of determining coverage or defending any **Claim**;

all without cost to the Company. The **Insured** shall further cooperate with the Company and do whatever is necessary to secure and effect any right of indemnity, contribution, or apportionment which the **Insured** may have.

The **Insured** shall not, with respect to any **Claim** covered under this Policy, except at their own cost, make any payment, admit any liability, settle any **Claims**, assume any obligation, agree to arbitration or any similar means of resolution of any dispute, waive any rights, or incur **Claim Expenses** without the Company's prior written consent, such consent not to be unreasonably withheld. Any costs and expenses incurred by the **Insured** prior to the **Insured** giving written notice of the **Claim** to the Company shall be borne by the **Insured** and will not constitute satisfaction of the Retention Amount.

D. False Or Fraudulent Claims

If any **Insured** commits fraud in proffering any information related to coverage under this Coverage Part, this insurance shall become void as to such **Insured** from the date such fraud was committed.

SECTION IX – EXTENDED REPORTING PERIOD

- A. The Named Insured's right to exercise the Extended Reporting Period under this Coverage Part shall exist solely if the Named Insured also exercises its right to purchase the Extended Reporting Period under all Insuring Agreements in the policy for which an Extended Reporting Period is available.
- B. If the Named Insured nonrenews or cancels this Policy or if the Company nonrenews or cancels this Policy in its entirety, pursuant to the Cancellation provision in the **COMMON POLICY CONDITIONS**, for reasons other than nonpayment of premium or Retention Amount or non-compliance with the terms and conditions of this Policy, then the Named Insured shall have the right, upon payment of an additional premium calculated at the Premium Percentage stated in the Declarations of the annual premium for the **Policy Period** to extend the coverage granted in this Coverage Part for the Additional Period stated in the Declarations, as elected by the Named Insured, to apply to **Claims** first made against the **Insured** or **Policy Payments** incurred during the period of months as elected, and reported to the Company pursuant to Section VIII – Claims, Loss, and Expenses, following immediately upon the effective date of such cancellation or nonrenewal, by reason of any **Policy Event**, which happened during the **Policy Period** or on or after the Retroactive Date stated in the Declarations and prior to the effective date of such cancellation or nonrenewal and which is otherwise covered by this Coverage Part.

This extended period of coverage as elected by the Named Insured and described in this paragraph shall be referred to in this Policy as the Extended Reporting Period.

If, however, this Coverage Part is immediately succeeded by similar claims-made insurance coverage on which the applicable retroactive date is the same as or earlier than the Retroactive Date stated in the Declarations, the succeeding insurance shall be deemed to be a renewal hereof and, in consequence, the Named Insured shall have no right to purchase an Extended Reporting Period.

The quotation of a different premium, retention, or limit of liability for renewal does not constitute a cancellation or refusal to renew for the purpose of this provision.

- C. As a condition precedent to the right to purchase the Extended Reporting Period, the Named Insured must have paid all premiums and Retentions due for the **Policy Period**.
- D. The right to purchase the Extended Reporting Period shall terminate unless a written notice of such election for the Extended Reporting Period is received by the Company within 30 days after the effective date of cancellation or nonrenewal together with payment of the additional premium for the Extended Reporting Period. If such written notice of request and premium payment for the Extended Reporting Period are not so received by the Company, there shall be no right to purchase the Extended Reporting Period at a later date.
- E. In the event of the purchase of the Extended Reporting Period, the entire premium therefor shall be fully earned at its commencement.

F. The Extended Reporting Period shall not in any way increase the Limits Of Liability stated in the Declarations.

SECTION X – CHANGES IN OWNERSHIP

A. New Organizations

If, before or during the **Policy Period**, the Named Insured acquires or creates a new **Subsidiary** or acquires an entity by merger or consolidation, to perform the same operations as the Named Insured, coverage under this Coverage Part automatically will apply to the new organization, provided:

1. Such coverage will apply only with respect to any **Claim** taking place after such acquisition or creation; and
2. There is no other similar insurance available to that organization.

Coverage will be subject to the following:

- a. Coverage is afforded only until 60 days after the Named Insured acquired or formed the organization or the end of the **Policy Period**, whichever is earlier;
- b. The Retroactive Date applicable to any **Policy Event** or **Claim** against such organization newly acquired or newly formed by the Named Insured will be the date on which the Named Insured newly acquired or newly formed such organization; and
- c. No person or organization is an **Insured** with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not stated as a Named Insured in the Declarations or included in the definition of **Subsidiary**.

B. Acquisition Of The Insured

If, during the **Policy Period**, a transaction occurs wherein another organization gains control of the Named Insured through the ownership of more than 50% of the outstanding securities or voting rights representing the present right to vote for the election of directors or equivalent position, or the Named Insured merges into another organization or consolidates with another organization such that the Named Insured is not the surviving organization, then:

1. The first Named Insured must give written notice of such transaction to the Company within 60 days after the effective date of such transaction and provide the Company with such information in connection therewith as the Company may deem necessary; and
2. This Coverage Part will apply only to those **Policy Events** which happened on or before the effective date of such transaction.

C. Cessation Of Subsidiaries

If, during the **Policy Period**, an organization ceases to be a **Subsidiary**, coverage with respect to such **Subsidiary** will continue until the end of the **Policy Period** or the Extended Reporting Period, if applicable, provided such coverage will apply only with respect to any **Policy Event** taking place prior to the date such organization ceased to be a **Subsidiary**.

SECTION XI – OTHER CONDITIONS

Mitigation

It is a condition precedent to coverage that the **Insured** shall not willfully fail to comply with any **Security Breach Notice Law** to which the Named Insured may be subject by reason of an **Unauthorized Access**, **Potential Unauthorized Access**, or **Unintentional Data Compromise**.

EVANSTON INSURANCE COMPANY

MEDIA OFFENSE LIABILITY INSURANCE FOR

PROFESSIONALS COVERAGE PART

SECTION I – THE INSURED	2
SECTION II – INSURING AGREEMENTS.....	2
SECTION III – DEFINITIONS.....	3
SECTION IV – EXCLUSIONS.....	6
SECTION V – TERRITORY	9
SECTION VI – LIMITS OF LIABILITY, DEDUCTIBLES, MULTIPLE INSURED, AND MULTIPLE CLAIMS.....	9
SECTION VII – DEFENSE, SETTLEMENTS, AND CLAIM EXPENSES.....	10
SECTION VIII – CLAIMS REPORTING AND NOTICE	10
SECTION IX – EXTENDED REPORTING PERIOD	11
SECTION X – CHANGES IN OWNERSHIP	12
SECTION XI – OTHER CONDITIONS.....	12

Media Offense Liability Insurance For Professionals Coverage Part

THIS IS A CLAIMS MADE AND REPORTED COVERAGE PART. THIS COVERAGE PART REQUIRES THAT A CLAIM BE MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR DURING THE EXTENDED REPORTING PERIOD, IF APPLICABLE, AND REPORTED TO THE COMPANY IN WRITING DURING THE POLICY PERIOD OR THE EXTENDED REPORTING PERIOD, IF APPLICABLE, BUT NO LATER THAN 60 DAYS AFTER THE DATE OF EXPIRATION OF THE POLICY PERIOD OR DURING THE EXTENDED REPORTING PERIOD, IF APPLICABLE. PLEASE READ THE POLICY CAREFULLY.

PLEASE NOTE THAT AMOUNTS INCURRED AS CLAIM EXPENSES WILL REDUCE THE LIMIT OF LIABILITY AVAILABLE AND WILL BE FIRST APPLIED AGAINST THE DEDUCTIBLE OBLIGATION.

The Company, relying upon the statements in the **Application**, which is deemed incorporated into this Policy and forms a part hereof, and in consideration of the payment of the premium, agrees with the **Insured** as follows:

SECTION I – THE INSURED

The word **Insured**, either in the singular or plural, means:

- A. The Named Insured herein defined as the person(s) or organization(s) stated in the Declarations and any **Subsidiary** or **Predecessor Entity** of such organizations as of inception of the **Policy Period**;
- B. Any past or current principal, partner, officer, director, trustee, shareholder, manager, or employee of the Named Insured solely while acting on behalf of the Named Insured and within the scope of their duties as such;
- C. The spouse or domestic partner of each **Insured** in Paragraph B. above, but only for each such **Insured's** liability as is otherwise covered herein;
- D. The heirs, executors, administrators, assigns, and legal representatives of each **Insured** in Paragraphs A. through C. above in the event of death, incapacity, or bankruptcy of each such **Insured** but only for each such **Insured's** liability as is otherwise covered herein; and
- E. Any past or present independent contractor of the Named Insured who is a natural person or single person entity, but only with respect to a **Media Offense** committed:
 - 1. Solely while acting within their professional capacity on behalf of the Named Insured and within the scope of such natural person's or single person's entity's duties as directed by the Named Insured; and
 - 2. After the Named Insured agreed in writing to provide insurance or indemnification to such natural person or single person entity.

SECTION II – INSURING AGREEMENTS

A. Media Offense Liability Coverage

The Company shall pay on behalf of the **Insured** all sums in excess of the Deductible stated in the Declarations that:

- 1. The **Insured** becomes legally obligated to pay as **Damages** incurred as a result of a **Claim** first made against the **Insured** during the **Policy Period** or Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph A. Claim Reporting Provision of Section VIII – Claims Reporting And Notice;
- 2. Result directly from a **Media Offense** that occurs on or after the Retroactive Date shown in the Declarations and before the end of the **Policy Period**; and
- 3. Prior to the effective date of the first date of continuous coverage of this Policy with the Company, no **Insured** had any knowledge of such **Media Injury** or any **Offense**, fact, circumstance, situation or incident which would lead a reasonable person in the **Insured's** position to conclude that a **Claim** was likely.

B. Supplementary Payments

1. Loss Of Earnings And Expense Reimbursement

- a. Upon submission to the Company of satisfactory written proof of payment by the Named Insured, the Company will reimburse the Named Insured as expense reimbursement for all reasonable and necessary expenses incurred by an **Insured** at the Company's written request for attendance at any arbitration, **Mediation**, deposition, hearing, or trial in connection with a **Claim** to which this Coverage Part applies. The Named Insured will give the Company written proof of payment of expenses as soon as practicable to the

address shown on the Claim Reporting policyholder notice attached to this Policy, no later than 60 days after incurring such expenses.

- b. The Company will compensate the Named Insured for loss of earnings of an **Insured** up to a maximum of the Loss Of Earnings And Expense Reimbursement Per Day Limit Of Liability stated in the Declarations per day for any **Insured** to attend at the Company's written request any arbitration, **Mediation**, deposition, hearing, or trial in connection with a **Claim** to which this Coverage Part applies.
- c. The maximum the Company will pay the Named Insured for all **Insureds** for compensation of all loss of earnings and expense reimbursement for all **Claims** to which this Coverage Part applies and all attendances at the Company's written request is the Loss Of Earnings And Expense Reimbursement Maximum Limit Of Liability stated in the Declarations.
- d. Payments to the Named Insured for Supplementary Payments will be in addition to the Limits Of Liability stated in the Declarations and will not be subject to the Deductible.

2. Pre-Claim Assistance Expenses

If, during the **Policy Period**, the **Insured** provides the Company with written notice of a **Media Offense** as provided in Paragraph **B**. Discovery Of Potential Claims of Section **VIII** – Claims Reporting And Notice that is reasonably expected to result in a **Claim** but as to which no **Claim** has yet been made, the Company may, at the Company's sole option, choose to investigate the **Media Offense**. Such an investigation will be at the Company's expense and will not reduce the Limits Of Liability or be subject to the Deductible provisions of this Policy until one of the following occurs:

- a. A **Claim** results from the **Media Offense** under investigation; or
- b. The Company incurs the Pre-Claim Assistance Expenses Limit Of Liability shown in the Declarations in expenses arising from the investigation.

If a **Claim** is made and reported to the Company, or once the Company incurs the Pre-Claim Assistance Expenses Limit Of Liability shown in the Declarations in investigative expense, any further payment will be considered **Claims Expense** and will reduce the applicable Limits Of Liability and be subject to the Deductible.

No coverage for pre-claim assistance expenses is provided by this policy except as provided by this Paragraph **B.2**. Pre-Claim Assistance Expenses of Section **II** – Insuring Agreements.

SECTION III – DEFINITIONS

A. Application means:

- 1. The application for this policy and for any policy issued by the Company, or any of its affiliates, of which this policy is a direct or indirect renewal or replacement;
- 2. Any attachment to any such application; and
- 3. Any other materials or applications submitted with or incorporated into any such application.

B. Claim means the **Insured's** receipt of:

- 1. A written demand for **Damages** or non-monetary or injunctive relief, including a written demand that the **Insured** toll or waive a statute of limitations; or
- 2. The service of suit or institution of arbitration proceedings against the **Insured**.

C. Claim Expenses means reasonable and necessary amounts incurred by the Company, or by the **Insured** with the prior written consent of the Company, in the defense of that portion of any **Claim** for which coverage is afforded under this Coverage Part, including costs of investigation, court costs, costs of bonds to release attachments and similar bonds but without any obligation of the Company to apply for or furnish any such bonds, and costs of appeals; however, **Claim Expenses** shall not include:

- 1. Salary, wages, overhead, or benefit expenses of or associated with employees or officials of the Named Insured or employees or officials of the Company; or
- 2. Salary, wages, administration, overhead, benefit expenses, or charges of any kind attributable to any in-house counsel or outside counsel for the Named Insured or the Company.

D. Client means a natural person or organization:

1. For which services of a professional nature are rendered by the **Insured**; or
2. Using the Named Insured's products or goods for which a fee was paid to the Named Insured.

E. Computer System means:

1. Any computer hardware, firmware, software, or any components thereof; and
2. The data stored thereon wherever located, associated input and output devices, data storage devices and repositories, networking equipment, backup facilities, and websites;

that are under the ownership, operation, or control of, or that is contracted or leased by, the Named Insured.

F. Content means advertising, publicity, press release, articles, publication, marketing or promotional item, or broadcast by any medium.

G. Damages means the monetary portion of any judgment, award, or settlement, including punitive or exemplary damages to the extent such punitive or exemplary damages are insurable under the applicable law most favorable to the insurability of such damages. However, **Damages** shall not include:

1. Multiplied portions of damages in excess of actual damages, including trebling of damages;
2. The cost of any modifications or changes to the **Insured's** security measures, procedures, software, or hardware required or agreed to by the **Insured** to satisfy a judgment, award, or settlement;
3. Any cost to correct, perform or re-perform services of a professional nature when the **Insured** had the capability to correct, perform or re-perform the services of a professional nature with respect to which such costs were incurred;
4. Any cost required to repair, build, or modify property to comply with any award by a court, administrative order, arbitration award, or any similar judgment;
5. Taxes, criminal or civil fines, sanctions, attorneys' fees of a party other than an **Insured**, or penalties imposed by law;
6. Matters that are uninsurable under the law pursuant to which this Coverage Part will be construed;
7. The return, withdrawal, reduction, restitution or payment of any fees, profits, charges or royalties for services or consideration, or any expenses paid to or payable to the **Insured**; or
8. The cost or expense incurred by the **Insured** or others for any recall of any product or good or work.

H. Denial Of Service Attack means any unlawful or unauthorized attempt by a third party to temporarily or indefinitely overload, hinder, interrupt, or suspend service to a **Computer System** via the internet.

I. Media Offense means any of the following acts, errors, or omissions by the **Insured** in its dissemination of **Content** for which the Named Insured is legally responsible:

1. Libel, slander, or defamation, or any other form of disparagement;
2. Invasion or infringement of the right of privacy or the right of publicity;
3. Improper deep-linking, framing, web harvesting, web scraping, or data extraction;
4. Infringement of copyright, service mark, service name, trademark, title, trade dress, trade name, or slogan, and unfair competition alleged in connection therewith;
5. Plagiarism, piracy, or misappropriation of ideas under implied contract; or
6. Infliction of emotional distress, mental anguish, false arrest, or malicious prosecution.

J. Mediation means the voluntary process in which an objective third party who is a qualified professional mediator selected by the parties to the **Claim**, with written agreement of the Company, intervenes between the parties in an attempt to achieve settlement of the **Claim**. However, **Mediation** does not include litigation, arbitration, or any court mandated proceeding.

K. Policy Period means the period from the inception date of this Coverage Part to the Coverage Part expiration date shown in the Declarations, or the effective date of any earlier cancellation or termination of this Policy.

L. Predecessor Entity means any entity to whose financial assets and liabilities the Named Insured is the majority successor in interest.

M. Private Data means data in the care, custody, and control of an **Insured** or for which the Named Insured is legally responsible, containing any of the following:

1. An individual's driver license or other state-issued identification number, social security number, unpublished telephone number, or savings account, checking account, credit card, or debit card number;
2. Nonpublic personal information as defined in the Gramm-Leach-Bliley Act of 1999, as amended, and regulations issued pursuant thereto;
3. Medical and healthcare information, including protected health information as defined in the Health Insurance Portability and Accountability Act of 1996 (HIPAA), as amended, and regulations issued pursuant thereto;
4. Private personal information as defined under a security breach notice law;
5. Private personal information as defined under the law of a country other than the United States, which law is intended to provide for the protection of such private personal information; or
6. Proprietary information of third parties of commercial value which the Named Insured is legally responsible to maintain in confidence;

not including any data available to or accessible by the general public.

N. Subsidiary means:

1. Any entity, excluding partnerships or joint ventures, of which the **Insured** owns more than 50% of the outstanding voting securities or has the right to exercise more than 50% of the voting rights for the election or appointment of the members of the board of directors or equivalent management positions including, but not limited to, members of the board of managers of a limited liability company;
2. Any entity that is newly created or acquired during the **Policy Period**, provided that such entity's total consolidated assets as of the date of such creation or acquisition will be no more than 25% of the total consolidated assets of the **Insured** according to the most recently filed audited financial statements. A newly-created or acquired **Subsidiary** will only receive coverage for **Claims** arising from **Media Offenses** occurring after such date of creation or acquisition and before the end of the **Policy Period**; or
3. Any organization operated as a joint venture in which, on or prior to the inception date of this Coverage Part, the **Insured** owns, directly or through one or more **Subsidiaries**, exactly 50% of the organization's outstanding securities with voting rights, and under a written agreement with the organization's remaining owners, has sole control of the organization's management and operations.

O. Unauthorized Access means a breach of a **Computer System**, including:

1. Any intentional violation, interception, use, or misuse of a **Computer System**, whether or not for profit or gain, by any person without the permission, knowledge, or ratification of the **Insured**;
2. Access to a **Computer System** with the **Insured's** permission where such permission is the result of fraud or deception, including phishing scams;
3. Use of a **Computer System** by a party, including a rogue employee, authorized by the **Insured** to use such system, who does so for an unauthorized purpose;
4. The introduction of viruses, malware, or other programs into a **Computer System** which contain fraudulent or destructive instructions or code, including any inadvertent transmission of such programs to a third party;
5. A credible threat by a third party including, but not limited to, a threat to initiate ransomware or a **Denial Of Service Attack**, threatening or portending:
 - a. Loss or damage to **Private Data**;
 - b. Loss or damage to a **Computer System**; or
 - c. Loss of money, securities, bonds, or any other similar financial instrument of the Named Insured, solely to the extent that record of such is maintained in digital or electronic format on a **Computer System**; or
6. A **Denial Of Service Attack** or the failure to prevent an unauthorized user or code from launching a **Denial Of Service Attack** on a third party through a **Computer System**.

P. Unintentional Data Compromise means:

1. Any computer security incident, including by an **Unauthorized Access**, resulting in the intrusion, breach, compromise, theft, loss, or misuse of **Private Data**;
2. The theft or loss of any paper records containing **Private Data**;
3. The failure of any third party to prevent the unauthorized viewing, copying, or distribution of **Private Data** which the Named Insured has entrusted to such party under a written contract or agreement that specifically requires such party to protect the confidentiality of the **Private Data** so entrusted; or
4. The unintentional breach of the Named Insured's written privacy policy.

SECTION IV – EXCLUSIONS

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim** or Supplementary Payment:

A. Bodily Injury

For bodily injury, sickness, or disease sustained by a person, including death resulting from any of these; however, this exclusion shall not apply to **Damages** resulting from humiliation or the infliction of emotional distress arising solely from a **Media Offense**.

B. Collection Of Data

Based upon or arising out of the collection of information by the **Insured**, or others on the **Insured's** behalf, without the knowledge or permission of the persons to whom such information relates.

C. Committed By Others

Based upon or arising out of a **Media Offense** committed by an organization, or a principal, partner, officer, director, trustee, member, manager, or employee of an organization:

1. That is not shown in the Declarations as a Named Insured; or
2. That is not a **Subsidiary**.

D. Contractual Liability

Based upon or arising out of:

1. An **Insured's** actual or alleged liability under a written contract or agreement including, but not limited to, express warranties or guarantees;
2. An **Insured's** contractual liability involving the ownership of intellectual property with any vendor, **Client**, customer, sub-contractor, or current or former employee; or
3. Liability of others assumed by an **Insured** under any oral or written contract or agreement.

However, this exclusion shall not apply to:

- a. Any liability that would have attached to the **Insured** in the absence of such contract, agreement, warranty, or guarantee; or
- b. Misappropriation of an idea under implied contract.

E. Conversion Or Misappropriation

Based upon or arising out of any conversion, misappropriation, commingling, or defalcation of funds or property.

F. Cost Estimates Or Guarantees

Based upon or arising out of any:

1. Warranties or guarantees, express, implied, or otherwise;
2. Cost estimates; or
3. Any description of the price of the **Insured's** goods, products, or services.

G. Destructive Code

Based upon or arising out of the introduction of programs, software, or malware into a third party's **Computer System** which contain fraudulent or destructive instructions or code.

H. Employment Related Practices

Brought by or on behalf of any employee, former employee, or prospective employee based upon, arising out of, or in any way involving the employment relationship or the nature, terms, or conditions of employment or any workplace tort.

I. Employers' Liability

Based upon or arising out any obligation of the **Insured** under any workers' compensation, unemployment compensation, disability benefits law, or under any similar law.

J. ERISA Or SEC

Based upon or arising out of any actual or alleged violation of or violation of the responsibilities, obligations, or duties imposed by:

1. The Employment Retirement Income Security Act of 1974 and any amendments thereto, or any rules or regulations promulgated thereunder; or
2. Any of the provisions of the Securities Act of 1933, the Securities Exchange Act of 1934, or any similar federal, state, or common law relating thereto.

K. Failure To Pay Or Collect

Based upon or arising out of any inability or failure of any party to pay or collect monies.

L. Failure To Perform

Based upon or arising out of failure of goods, products, or services to conform to any statement of quality or performance.

M. Fraudulent Or Dishonest Acts

Based upon, arising out of, or in any way involving the actual or alleged dishonest, fraudulent, criminal, or malicious act or omission of the **Insured** or at the **Insured's** direction; however:

1. No fact pertaining to, or knowledge possessed by, any **Insured** will be imputed to any other **Insured** to determine if coverage is available; and
2. This exclusion does not apply to **Claim Expenses** incurred until an allegation is determined through admission by the **Insured** or final and non-appealable adjudication to be a dishonest, fraudulent, criminal, or malicious act or omission.

N. Illegal Profit

Based upon, arising out of, or in any way involving the gaining by any **Insured** of any profit, remuneration, or advantage to which such **Insured** was not legally entitled; however:

1. No fact pertaining to, or knowledge possessed by, any **Insured** will be imputed to any other **Insured** to determine if coverage is available.
2. This exclusion will not apply to **Claim Expenses** incurred until an allegation is adjudicated through a finding by a trier-of-fact to be any profit, remuneration, or advantage to which such **Insured** was not legally entitled.

O. Infringement Of Intellectual Property

Based upon or arising out of infringement of copyright, title, trade dress, slogan, service mark, service name, trademark, trade name, or other intellectual property arising from any tangible goods or products of others displayed on the Named Insured's web site.

P. Insolvency

Based upon, arising out of, or in any way involving the insolvency, receivership, bankruptcy, liquidation of the Named Insured or of any **Subsidiary** thereof whether or not included in the definition of **Insured**.

Q. Insured Versus Insured

Brought by, in the name of, or on behalf of any **Insured**.

R. Not Licensed

Based upon, arising out of, or in any way involving any acts or services performed by any **Insured** which is not licensed or certified to perform such acts or services if such licensing or certification is required by law.

S. Other Coverage

Brought under any other Coverage Part of this Policy.

T. Owned Or Controlled Entities

Brought by any organization that is operated, managed, or owned, in whole or in part, by the Named Insured or any parent organization, **Subsidiary**, division, or affiliated organization thereof.

U. Performance Rights Organizations

Brought by, in the name of, or on behalf of any performance rights organization including, but not limited to, ASCAP, BMI, SESAC, SOCAN, or SoundExchange.

V. Prior Notice

Based upon, arising out of, or in any way involving any **Media Offense** or any fact, circumstance, or situation that has been the subject of any notice given prior to the **Policy Period** under any other policy of insurance or to any reinsurer, risk retention group, or captive (or any other self-insurance plan or trust by whatsoever name), or insurance representative.

W. Professional Services

Based upon, arising out of, or in any way involving an act, error, or omission in the performance of professional services rendered or that should have been rendered by the **Insured** or by any person or organization for whose acts, errors, or omissions the **Insured** is legally responsible.

X. Property Damage

For physical damage to tangible property, including all resulting loss of use of that property or loss of use of tangible property that is not physically damaged.

Y. Trade Practices And Antitrust

Based upon, arising out of, or in any way involving any actual or alleged violation of any law, whether statutory, regulatory, or common law, respecting any of the following activities: antitrust, business competition, unfair trade practices, or tortious interference in another's business or contractual relationships.

Z. Unauthorized Access

Based upon or arising out of an **Unauthorized Access**.

AA. Unauthorized Use

Based upon, arising out of, or in any way involving the unauthorized use of another party's name or product in the Named Insured's email address, domain name or metatag, or any similar device to mislead another party's customers or potential customer.

BB. Unintentional Data Compromise

Based upon, arising out of, or in any way involving any actual or alleged **Unintentional Data Compromise**.

CC. Unlawful Discrimination

Based upon or arising out of any unlawful discrimination by any **Insured**.

DD. Unsolicited Or Otherwise Improper Communications

Based upon, arising out of, or in any way involving violation of any federal, state, or local statute, law, rule, ordinance, or regulation that addresses, prohibits, or limits the dissemination, interception, receiving, sending, transmitting, communicating, printing, disposal, collecting, recording, or distribution of information or other material including, but not limited to, the:

1. Telephone Consumer Protection Act of 1991 (TCPA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation;
2. CAN-SPAM Act of 2003 and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation; or

3. Fair Credit Reporting Act (FCRA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation including, but not limited to, the Fair and Accurate Credit Transactions Act of 2003 (FACTA).

EE. Usage Of Insured's Name

Based upon or arising out of usage of the **Insured's** name in operating its business including, but not limited to, the **Insured's** legal name(s), domain name(s), fictitious name(s), or assumed name(s).

SECTION V – TERRITORY

The insurance afforded by this policy applies worldwide, except for **Claims** made in any country on which the government of the United States of America has imposed trade sanctions, embargoes, or any similar regulations that prohibit the transaction of business with or within such country, provided the **Claim** is made in the United States of America, its territories or possessions, Puerto Rico, or Canada.

SECTION VI – LIMITS OF LIABILITY, DEDUCTIBLES, MULTIPLE INSURED, AND MULTIPLE CLAIMS

A. Limits Of Liability

1. Each Claim

Subject to Paragraph 2. below, the liability of the Company under this Coverage Part for the combined total of **Damages** and **Claim Expenses** for each **Claim** first made against the **Insured** during the **Policy Period** or Extended Reporting Period, if applicable, and reported to the Company pursuant to Paragraph A. Claim Reporting Provision of Section VIII – Claims Reporting And Notice, will not exceed the Media Offense Liability Each Claim Limit Of Liability stated in the Declarations.

2. Aggregate

The total liability of the Company under this Coverage Part for the combined total of all **Damages** and **Claim Expenses** arising out of all **Claims** first made against the **Insured** during the **Policy Period** and the Extended Reporting Period, if applicable, will not exceed the Media Offense Liability Aggregate Limit Of Liability stated in the Declarations.

B. Deductibles

1. Each Claim Deductible

Subject to Paragraph 2. below, with respect to this Coverage Part, the Media Offense Liability Each Claim Deductible stated in the Declarations will be paid by the Named Insured and will be applicable to each **Claim** and will apply to **Damages** and **Claim Expenses**, whether or not any **Damages** payments are made. Such Deductible amount will, upon written demand by the Company, be paid by the Named Insured within 10 days. The determination of the Company as to the reasonableness of the **Claim Expenses** will be conclusive on the Named Insured.

2. Aggregate Deductible

The total Deductible payments to be paid by the Named Insured will not exceed the Aggregate Deductible stated in the Declarations for **Damages** and **Claim Expenses** arising out of all **Claims** first made during the **Policy Period** and the Extended Reporting Period, if applicable.

3. Deductible Credits

With respect to this Coverage Part, if a **Claim** is settled without litigation, arbitration, **Mediation**, or court mandated proceedings, the Deductible for such **Claim** will be reduced by 75% or \$10,000, whichever is less.

If the Named Insured and the Company agree to the use of **Mediation** and a **Claim** is settled at that **Mediation**, the Deductible for such **Claim** will be reduced by 50% or \$10,000, whichever is less.

The Deductible credits are not additive or cumulative.

C. Multiple Insureds, Claims, and Claimants

The inclusion herein of more than one **Insured** in any **Claim** or the making of **Claims** by more than one person or organization will not operate to increase the Limits Of Liability stated in the Declarations. More than one **Claim** arising out of a single **Media Offense** will be treated as a single **Claim**. Such single **Claim** will be deemed first made on the date on which the earliest **Claim** arising out of such **Media Offense** is made or with respect to written notice given to and accepted by the Company pursuant to Paragraph B. Discovery Of Potential Claims of Section VIII – Claims

Reporting And Notice, on the date within the **Policy Period** on which such written notice of potential **Claim** is first received by the Company.

SECTION VII – DEFENSE, SETTLEMENTS AND CLAIM EXPENSES

A. Defense And Investigation

With respect to coverage hereunder, the Company will have the right and duty to defend the **Insured** and to investigate any **Claim** to which coverage under this Coverage Part applies pursuant to the following provisions:

1. **Claim Expenses** incurred in defending and investigating such **Claim** will be a part of and will not be in addition to the applicable Limits Of Liability stated in the Declarations. Such **Claim Expenses** will reduce the applicable Limits Of Liability and will be applied against the applicable Deductible. The Company will have no obligation to pay any **Damages** or to defend or continue to defend any **Claim** or to pay **Claim Expenses** after the applicable Limits Of Liability stated in the Declarations have been exhausted by payment(s) of **Damages** or **Claim Expenses**.
2. The Company will select defense counsel; however, if the law of the state of the Named Insured's domicile, stated in the Declarations, allows the **Insured** to control the selection of defense counsel where a conflict of interest has arisen between the **Insured** and the Company, the Company will provide a list of attorneys or law firms from which the **Insured** may designate defense counsel who will act solely in the interest of the **Insured**, and the **Insured** will direct such defense counsel to cooperate with the Company. Such cooperation will include:
 - a. Providing on a regular basis, but not less frequently than every 3 months, written reports on claimed **Damages**, potential liability, progress of any litigation, any settlement demands, or any investigation developments that materially affect the **Claim**;
 - b. Providing any other reasonable information requested;
 - c. Providing fully itemized billing on a periodic basis; and
 - d. Cooperating with the Company and the **Insured** in resolving any discrepancies.

The fees and costs incurred by such defense counsel, including those fees and costs generated by cooperation with the Company, as set forth above, will be included in **Claim Expenses**. Such **Claim Expenses** will be a part of and will not be in addition to the applicable Limits Of Liability stated in the Declarations. Such **Claim Expenses** will reduce the applicable Limits Of Liability and will be applied against the applicable Deductible.

B. Consent To Settlement

The Company will not settle any **Claim** without the prior written consent of the first Named Insured, but the Company will have, at all times, the right to recommend a settlement of any **Claim**. If the Named Insured refuses to settle such **Claim** pursuant to the Company's recommendations and acceptable to the claimant, then the Company's liability in regard to such **Claim** will not exceed the sum of:

1. The amount of **Damages** for which the Company could have settled such **Claim**;
2. **Claim Expenses** accrued as of the date such settlement was proposed in writing by the Company to the Named Insured; and
3. 80% of all covered **Damages** and **Claim Expenses** incurred thereafter on account of such **Claim**.

Such amounts are subject to the provisions of Paragraph **A. Defense And Investigation**.

SECTION VIII – CLAIMS REPORTING AND NOTICE

A. Claim Reporting Provision

1. It is a condition precedent to coverage afforded by this Coverage Part that the **Insured** will give to the Company written notice as soon as practicable of any **Claim** first made against the **Insured** during the **Policy Period** or the Extended Reporting Period, if applicable, but no later than:
 - a. 60 days after expiration of the **Policy Period**; or
 - b. The expiration of the Extended Reporting Period, if applicable.

Such **Claim** must be reported to the Company at the address shown in the Claim Reporting policyholder notice attached to this policy.

2. In the event a suit is brought against the **Insured**, the **Insured** will immediately forward to the Company at the address shown on the Claim Reporting policyholder notice every demand, notice, summons, or other process received by them or their representatives.

B. Discovery Of Potential Claims

If during the **Policy Period**, the **Insured** first becomes aware of a specific **Media Offense** which is reasonably expected to result in a **Claim** within the scope of coverage of this Coverage Part, then the **Insured** may elect to provide notice of a potential claim to the Company. Such notice shall be in writing, containing the information listed below, and sent to the Company at the address shown on the Claim Reporting policyholder notice. If such written notice is received by the Company during the **Policy Period**, then any **Claim** subsequently made against the **Insured** arising out of such **Media Offense** will be deemed for the purpose of this insurance to have been first made on the date on which such written notice is first received by the Company.

It is a condition precedent to the coverage afforded by this Discovery Of Potential Claims that written notice be given to the Company containing the following information:

1. The description of the **Media Offense**;
2. The date on which such **Media Offense** took place;
3. The **Damages** which has or may result from such **Media Offense**;
4. The identity of any injured person or organization subject to such injury or damage; and
5. The date and circumstances by which the **Insured** first became aware of such **Media Offense**.

Subject to the paragraph hereinabove, if during the **Policy Period** the **Insured** provides such written notice of a specific **Media Offense** which is reasonably expected to result in a **Claim** within the scope of coverage of this Coverage Part, the Company at its sole option may investigate such specific **Media Offense**. Such matter will be subject to all terms, conditions, and provisions in this Coverage Part as applicable to a **Claim**.

C. Supplementary Payments

Pursuant to Paragraph **B**. Supplementary Payments of Section **II** – Insuring Agreement, upon the Company's receipt of satisfactory written proof of payment by the Named Insured within 60 days of the date incurred, the Company will indemnify the Named Insured for such expenses and such loss of earnings within 60 days.

SECTION IX – EXTENDED REPORTING PERIOD

- A.** The Named Insured's right to exercise the Extended Reporting Period under this Coverage Part will exist solely if the Named Insured also exercises its right to purchase the Extended Reporting Period under all Insuring Agreements in the policy for which an Extended Reporting Period is available.
- B.** If the Named Insured nonrenews this policy in its entirety or cancels this policy in its entirety pursuant to Section **D**. Cancellation of the **COMMON POLICY CONDITIONS**, or if the Company nonrenews this policy or cancels this policy pursuant to Paragraph **D**. Cancellation of the **COMMON POLICY CONDITIONS**, for reasons other than nonpayment of premium, Deductible or non-compliance with the terms and conditions of this policy, then the Named Insured will have the right upon payment of an additional premium calculated at the Premium Percentage shown in the Declarations of the annual premium for the **Policy Period** to extend the coverage granted under Section **II** – Insuring Agreements of this Coverage Part for the Additional Period of months shown in the Declarations, as elected by the Named Insured, to apply to **Claims** first made against the **Insured** during the Additional Period shown in the Declarations, and reported to the Company pursuant to Section **VIII** – Claims Reporting And Notice, following immediately upon the effective date of such cancellation or nonrenewal, for any **Media Offense** which happened during the **Policy Period** or on or after the applicable Retroactive Date shown in the Declarations and prior to the effective date of such cancellation or nonrenewal and which is otherwise covered by this Coverage Part.

This extended period of coverage as elected by the Named Insured and described herein will be referred to in this policy as the Extended Reporting Period.

If, however, this Coverage Part is immediately succeeded by similar claims made insurance coverage on which the applicable retroactive date is the same as or earlier than that stated in Declarations, the succeeding insurance will be deemed to be a renewal hereof and, in consequence, the Named Insured will have no right to purchase an Extended Reporting Period applicable to the coverage afforded under this Coverage Part.

The quotation of a different premium, deductible, or limit of liability for renewal does not constitute a cancellation or refusal to renew for the purpose of this provision.

- C. As a condition precedent to the right to purchase the Extended Reporting Period, the Named Insured must have paid:
1. All deductibles when due;
 2. All premiums due for the **Policy Period**; and
 3. All premiums and deductibles due on any other policies issued by the Company or any of its affiliated companies in an uninterrupted series of policies of which this Policy is a renewal or replacement.

The right to purchase the Extended Reporting Period will terminate unless a written notice of such election for the Extended Reporting Period is received by the Company within 30 days after the effective date of cancellation or nonrenewal together with payment of the additional premium for the Extended Reporting Period. If such written notice of request and premium payment for the Extended Reporting Period are not so received by the Company, there will be no right to purchase the Extended Reporting Period at a later date.

- D. In the event of the purchase of the Extended Reporting Period the entire premium therefor will be fully earned at its commencement.
- E. The Extended Reporting Period will not in any way increase the Limits Of Liability stated in the Declarations.

SECTION X – CHANGES IN OWNERSHIP

A. New Organizations

If, before or during the **Policy Period**, the Company acquires or creates a new **Subsidiary** or acquires an entity by merger or consolidation, to perform the same services of a professional nature as the Named Insured and as are stated in the **Application** attached to and made a part of this policy and over which the Named Insured maintains ownership or majority interest, coverage under this Coverage Part automatically will apply to the new organization, provided:

1. Such coverage will apply only with respect to any **Media Offense** taking place after such acquisition or creation; and
2. There is no other similar insurance available to that organization.

Coverage will be subject to the following:

- a. Coverage is afforded only until 60 days after the Named Insured acquired or formed the organization or the end of the **Policy Period**, whichever is earlier;
- b. The Retroactive Date shown in the Declarations applicable to any **Claim** against such organization newly acquired or newly formed by the Named Insured for **Media Offenses** by **Insureds** will be the date on which the Named Insured newly acquired or newly formed the organization;
- c. There is no other similar insurance available to that organization; and
- d. No person or organization is an **Insured** with respect to the conduct of any current or past partnership, joint venture, or limited liability company that is not shown as a Named Insured in the Declarations.

B. Acquisition Of The Insured

If, during the **Policy Period**, a transaction occurs wherein another organization gains control of the Named Insured through the ownership of more than 50% of the outstanding securities or voting rights representing the present right to vote for the election of directors or equivalent position, or the Named Insured merges into another organization or consolidates with another organization such that the Named Insured is not the surviving organization, then:

1. The first Named Insured must give written notice of such transaction to the Company within 60 days after the effective date of such transaction and provide the Company with such information in connection therewith as the Company may deem necessary; and
2. This Coverage Part will apply only to those **Media Offenses** that happened on or before the effective date of such transaction unless waived in writing by the Company.

C. Cessation Of Subsidiaries

If, before or during the **Policy Period**, an organization ceases to be a **Subsidiary**, coverage with respect to such **Subsidiary** will continue until the end of the **Policy Period** or the Extended Reporting Period if applicable, provided such coverage will apply only with respect to any **Claim** for a **Media Offense** taking place prior to the date such organization ceased to be a **Subsidiary**.

SECTION XI – OTHER CONDITIONS

A. Mitigation

It is a condition precedent to coverage that the **Insured** will not willfully fail to monitor and remove **Content** which is posted on blogs, bulletins boards, chat rooms, or other internet forums controlled by the Named Insured and which constitutes a **Media Offense**.

B. Retractions And Corrections

The **Insured** will take such actions which, in the **Insured's** judgment, are deemed necessary and practicable to prevent or limit the dissemination of **Content** which is false, erroneous, or untrue.



EVANSTON INSURANCE COMPANY

COMMON POLICY CONDITIONS

All Coverage Parts included in this Policy are subject to the following conditions.

Throughout this Policy, the term Company refers to the insurance company providing this insurance.

A. Terms And Conditions

This Policy is comprised of these **COMMON POLICY CONDITIONS**, the Declarations, various Coverage Parts and endorsements, if applicable, and the **Application**. Although various Coverage Parts may be referenced in this Policy, a Coverage Part is included within this Policy only if that Coverage Part is stated as being purchased in the Insuring Agreement Schedule of the Declarations.

Except for these **COMMON POLICY CONDITIONS** or unless stated to the contrary in any Coverage Part or endorsement, the terms and conditions of each Coverage Part of this Policy apply only to that Coverage Part and shall not apply to any other Coverage Part of this Policy. Any defined term referenced in the **COMMON POLICY CONDITIONS** but defined in a Coverage Part shall, for purposes of coverage under that Coverage Part, have the meaning set forth in that Coverage Part. If any provision in the **COMMON POLICY CONDITIONS** is inconsistent or in conflict with the terms and conditions of any Coverage Part, the terms and conditions of such Coverage Part shall control for purposes of that Coverage Part.

B. Policy Aggregate Limit Of Liability**1. Coverage Parts Which Share An Aggregate Limit Of Liability**

Notwithstanding the Limits Of Liability of any single purchased Coverage Part, the Company's maximum aggregate Limit Of Liability for all **Damages**, **Policy Payments**, and **Claim Expenses** covered under all purchased Coverage Parts which share an Aggregate Limit Of Liability, if any as shown in the Declarations, shall be the largest of the Aggregate Limit Of Liability for each Coverage Part that shares a Limit Of Liability, if any. Such shared Aggregate Limit Of Liability shall be part of, and not in addition to, the Policy Combined Aggregate Limit Of Liability stated in the Declarations. This paragraph further limits the Company's maximum liability under each such Coverage Part and does not increase the respective separate Aggregate Limit Of Liability for each Coverage Part.

2. Combined Aggregate Limit Of Liability

The Policy Combined Aggregate Limit Of Liability stated in the Declarations shall be the Company's maximum aggregate liability for the combined total of all **Damages**, medical expenses, **Policy Payments**, and **Claim Expenses** covered under all purchased Coverage Parts, combined.

C. Single Limit And Deductible Or Retention Amount

The inclusion herein of more than one **Insured** in any **Claim** or the making of **Claims** by, or reporting of a **Policy Event** or **Loss** incurred by more than one person or organization or under more than one purchased Coverage Part of this Policy, shall not operate to increase the Limits Of Liability stated in the Declarations.

It is the intent of the Company that the coverage afforded under the Coverage Parts be mutually exclusive. If however, it is determined that more than one purchased Coverage Part applies to one **Claim**, **Policy Event**, or **Loss**, then the Limit Of Liability with respect to such **Claim**, **Policy Event**, or **Loss** shall be the larger(est) Limit Of Liability available under the applicable purchased Coverage Parts and not the sum of the limits available under the applicable purchased Coverage Parts. In such event, the smaller(est) of the applicable deductibles or retention amounts for the applicable purchased Coverage Parts will apply and not the sum of such deductibles or retention amounts.

D. Cancellation

This Policy may be cancelled by the Named Insured on behalf of all **Insureds** by mailing to the Company written notice stating when thereafter such cancellation shall be effective. If cancelled by the Named Insured, the Company

shall retain the customary short rate proportion of the premium. Payment or tender of unearned premium shall not be a condition precedent to the effectiveness of cancellation, but such payment shall be made as soon as practicable.

This Policy may be cancelled by the Company, by mailing to the Named Insured, at the address stated in the Declarations, written notice stating when, not less than 30 days thereafter, such cancellation shall be effective. However, if the Company cancels the Policy because the Named Insured has failed to pay a premium or Deductible when due, including premium, deductible(s) or co-insurance obligations(s) due on any other policy(ies) issued by the Company or any of its affiliated companies in an uninterrupted series of policies for which this Policy is a renewal or replacement, this Policy may be cancelled by the Company, by mailing a written notice of cancellation to the Named Insured stating when, not less than 10 days thereafter, such cancellation shall be effective. The mailing of notice as aforementioned shall be sufficient notice and the effective date of cancellation stated in the notice shall become the end of the Policy Period. Such notice shall be conclusive on all **Insureds**. Delivery of such written notice by the Named Insured or the Company shall be equivalent to mailing. If cancelled by the Company earned premium shall be computed pro rata. Premium adjustment may be made at the time cancellation is effected or as soon as practicable thereafter.

E. Representations

By acceptance of this Policy, the **Insureds** agree that the information and statements contained in the **Application(s)** are:

1. The basis of this Policy and are to be considered as incorporated into and constituting a part of this Policy;
2. Their representations, that shall deemed material to the acceptance of the risk or hazard assumed by the Company under this Policy; and that this Policy is issued in reliance upon the truth of such representations.

F. Entire Agreement

The Declarations, **COMMON POLICY CONDITIONS**, Coverage Part(s), any written endorsements, and any **Application(s)** shall be deemed to be a single unitary contract.

G. Other Insurance

This insurance shall be in excess of the applicable Deductible or Retention and any other valid and collectible insurance available to the **Insured** whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is written only as a specific excess insurance over the Limits Of Liability provided in this Policy.

If any **Claim** under this Policy is also covered by one or more policies issued by the Company or any of its affiliated companies affording coverage to the Named Insured or to any organization or person who controls, is controlled by, or is affiliated by common control with the Named Insured unless such other insurance is written only as specific excess insurance or umbrella insurance over the Limits Of Liability provided in this Policy, then with respect to such **Claim**:

1. The Limit Of Liability available under this Policy will be equal to the percentage that this Policy's available Limit Of Liability bears to the total combined Limits Of Liability available under all applicable policies; and
2. The total Limit Of Liability available for such **Claim** shall not exceed the greater(est) available Limit Of Liability remaining on all such policies and its payment shall extinguish the Company's and its affiliated companies' liability on all such policies for such **Claim**.

H. Changes

Notice to any agent or knowledge possessed by any agent or other person acting on behalf of the Company shall not effect a waiver or a change in any part of this Policy and shall not estop the Company from asserting any right under the terms of this Policy. The terms of this Policy shall not be waived or changed, except by written endorsement issued to form a part of this Policy, and this Policy embodies all agreements existing between the **Insureds** and the Company or any of its agents relating to this insurance.

I. Assignment Of Interest

Assignment of interest under this Policy shall not bind the Company unless the Company's consent is endorsed hereon.

J. Subrogation

In the event of any payment under this Policy, the Company shall be subrogated to the right of recovery of all **Insureds** to the extent of such payment. The **Insured** shall execute and deliver instruments and papers and do

whatever else is necessary to secure such rights. The **Insured** shall do nothing after the **Claim** to prejudice such rights.

The Company shall not exercise any such rights against any person or organization included in the definition of **Insured**. Notwithstanding the foregoing, however, the Company reserves the right to exercise any rights of subrogation against an **Insured** in respect of any **Claim** brought about or contributed to by an intentional, willful, dishonest, fraudulent act or omission of such **Insured** or by an act or omission of such **Insured** that constitutes a willful violation of any statute or regulation.

Any amount so recovered, whether effected by the Company or by the **Insured**, shall be allocated as follows:

1. First, for the repayment of expenses incurred toward subrogation;
2. Second, for any **Damages**, medical expenses, **Policy Payments**, and **Claim Expenses** incurred by the **Insured** which is in excess of the amount applicable limit under this Policy and which is excess of any amount paid by any insurer under any other policy;
3. Third, for any damages and claim expenses payment or any loss indemnification or payment by any excess carrier on behalf of the **Insured**;
4. Fourth, for any **Damages**, medical expenses, **Policy Payments**, or Supplementary Payment made by the Company; and
5. Last, for repayment of the **Insured's** Deductible or Retention Amount.

K. Assistance And Cooperation Of The Insured

The **Insured** shall cooperate with the Company and upon the Company's request, the **Insured** shall:

1. Submit to examination and interview by a representative of the Company and while not in the presence of any other **Insured**, under oath if required;
2. Attend hearings, depositions, and trials;
3. Assist in effecting settlement, securing and giving evidence, and obtaining the attendance of witnesses in the conduct of suits;
4. Give written statements to the Company's representatives and meet with such representatives for the purpose of determining coverage and investigating or defending any **Claim**; and
5. Provide any information required to comply with federal or state reporting regulations;

all without cost to the Company, other than coverage provided under Loss Of Earnings And Expense Reimbursement in Section II – Insuring Agreements. The **Insured** shall further cooperate with the Company and do whatever is necessary to secure and effect any right of indemnity, contribution, or apportionment which the **Insured** may have.

The **Insured** shall not, except at their own cost, make any payment, admit any liability, settle any **Claims**, assume any obligation, agree to arbitration or any similar means of resolution of any dispute, waive any rights, or incur any expense without the prior written consent of the Company, such consent not to be unreasonably withheld. Any costs and expenses incurred by the **Insured** prior to the **Insured** giving written notice of a **Claim** to the Company shall be borne by the **Insured** and will not constitute satisfaction of the Deductible or Retention Amount.

L. False Or Fraudulent Claims

If any **Insured** commits fraud in proffering any **Claim**, this insurance shall become void from the date such fraudulent **Claim** is proffered.

M. Inspection

Any of the Company's authorized representatives will have the right and opportunity, whenever the Company so desires, to inspect at any reasonable time the **Insured's** products, goods, operations, or premises, but the Company assumes no responsibility or duty by reason of such inspection or the omission thereof. The **Insured** agrees to provide appropriate personnel to assist the Company's representatives during such inspection without cost to the Company.

N. Action Against The Company

No action shall lie against the Company unless, as a condition precedent thereto, the **Insured** has fully complied with all of the terms and conditions of this Policy, nor until the amount of the **Insured's** obligation to pay has been fully and

finally determined either by judgment against the **Insured** after actual trial or by written agreement of the **Insured**, the claimant, and the Company.

Nothing contained in this Policy shall give any person or organization any right to join the Company as a co-defendant in any action against the **Insured** to determine the **Insured's** liability.

O. Bankruptcy

Bankruptcy or insolvency of the **Insured** or of the **Insured's** estate shall not relieve the Company of any of its obligations hereunder.

P. Authorization

By acceptance of this Policy, the **Insureds** agree that the first Named Insured stated in the Declarations shall act on behalf of all **Insureds** with respect to the:

1. Giving and receiving of all notices to and from the Company as provided herein;
2. Exercising of the Extended Reporting Period, if available;
3. Cancellation of this Policy in whole or part;
4. Payment of premiums and deductibles or retention amounts when due;
5. Receiving of any return premiums that may become due under this Policy.

With respect to any coverage which provides for the reimbursement or indemnification of the Named Insured, the **Insureds** agree that the first Named Insured stated in the Declarations shall act on behalf of all Named Insureds with regard to the receiving of such reimbursement or indemnification as provided.

Q. Policy Extended Reporting Period – All Claims Made Coverages

The Named Insured's right to exercise the Extended Reporting Period under any Coverage Part shall exist solely if the Named Insured also exercises its right to purchase the Extended Reporting Period under all Coverage Parts that provide coverage on a claims made basis.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MINIMUM EARNED PREMIUM

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART
GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART (CLAIMS MADE)
MARKEL CYBER 360SM INSURANCE COVERAGE PART
MEDIA OFFENSE LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

SCHEDULE

Percentage: 25%

In consideration of the premium paid, it is hereby understood and agreed that the following is added to the **COMMON POLICY CONDITIONS**:

Minimum Earned Premium

In the event that this Policy is cancelled by the first Named Insured, the Policy premium is subject to a minimum earned premium of the Percentage shown in the Schedule of this endorsement.

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – MEDICAL MALPRACTICE

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

In consideration of the premium paid, it is hereby understood and agreed that the following exclusion is added to Section **IV** – Exclusions:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

Medical Malpractice

Based upon, arising out of, or in any way involving medical malpractice including, but not limited to, patient treatment, consultation with patients, or rendering medical opinions in specific treatment of any patient as the consulting medical care provider for a second opinion or primary care.

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – NUCLEAR ENERGY LIABILITY (BROAD FORM)

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART
GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART (CLAIMS MADE)
MARKEL CYBER 360SM INSURANCE COVERAGE PART
MEDIA OFFENSE LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

Please refer to each Coverage Part to determine which terms are defined. Words shown in bold font on this endorsement may or may not be defined in all Coverage Parts.

In consideration of the premium paid, it is hereby understood and agreed that the following exclusion is added to Section IV – Exclusions:

With respect to all Insuring Agreements, this insurance does not apply:

Nuclear Energy

1. Under any Liability Coverage, to **Bodily Injury** or **Property Damage**:
 - a. With respect to which an **Insured** under the Policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada, or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
 - b. Resulting from the **Hazardous Properties of Nuclear Material** and with respect to which:
 - (1) Any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof; or
 - (2) The **Insured** is, or had this Policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
2. Under any Medical Payments coverage, or any Supplementary Payments provision relating to first aid, to expenses incurred with respect to **Bodily Injury** resulting from the **Hazardous Properties of Nuclear Material** and arising out of the operation of a **Nuclear Facility** by any person or organization.
3. Under any Liability Coverage, to **Bodily Injury** or **Property Damage** resulting from **Hazardous Properties of Nuclear Material** if:
 - a. The **Nuclear Material**:
 - (1) Is at any **Nuclear Facility** owned by, or operated by or on behalf of, an **Insured**; or
 - (2) Has been discharged or dispersed therefrom;

- b. The **Nuclear Material** is contained in **Spent Fuel** or **Waste** at any time possessed, handled, used, processed, stored, transported, or disposed of, by, or on behalf of an **Insured**; or
 - c. The **Bodily Injury** or **Property Damage** arises out of the furnishing by an **Insured** of services, materials, parts, or equipment in connection with the planning, construction, maintenance, operation, or use of any **Nuclear Facility**, but if such facility is located within the United States of America, its territories or possessions, or Canada, this exclusion c. applies only to **Property Damage** to such **Nuclear Facility** and any property thereat.
4. As used in this exclusion:
- a. **Hazardous Properties** includes radioactive, toxic, or explosive properties.
 - b. **Nuclear Facility** means:
 - (1) Any **Nuclear Reactor**;
 - (2) Any equipment or device designed or used for:
 - (a) Separating the isotopes of uranium or plutonium;
 - (b) Processing or utilizing **Spent Fuel**; or
 - (c) Handling, processing, or packaging **Waste**;
 - (3) Any equipment or device used for the processing, fabricating, or alloying of **Special Nuclear Material** if at any time the total amount of such material in the custody of the **Insured** at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
 - (4) Any structure, basin, excavation, premises, or place prepared or used for the storage or disposal of **Waste**; and
 - (5) The site on which any of the foregoing is located, all operations conducted on such site, and all premises used for such operations.
 - c. **Nuclear Material** means **Source Material**, **Special Nuclear Material**, or **By-Product Material**.
 - d. **Nuclear Reactor** means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.
 - e. **Property Damage** includes all forms of radioactive contamination of property.
 - f. **Source Material**, **Special Nuclear Material**, and **By-Product Material** have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.
 - g. **Spent Fuel** means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a **Nuclear Reactor**.
 - h. **Waste** means any waste material:
 - (1) Containing **By-Product Material** other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its **Source Material** content; and
 - (2) Resulting from the operation by any person or organization of any **Nuclear Facility** included under paragraphs (1) and (2) of the definition of **Nuclear Facility**.

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – ASBESTOS

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

In consideration of the premium paid, it is hereby understood and agreed that the following is added to Section **IV** – Exclusions:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

Asbestos

Based upon, arising out of, or in any way involving asbestos, asbestos fibers, or any product or material containing asbestos in any form, under any theory of liability whatsoever.

It is further agreed that the Company shall have no duty to defend or to pay or reimburse for any fees, costs, or expenses in the investigation or defense of any **Claim** excluded herein.

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – VIOLATION OF STATUTES RELATED TO PERSONAL DATA

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

In consideration of the premium paid, it is understood and agreed that:

A. The following definition is added to Section **III** – Definitions:

Personal Data means information that identifies, relates to, describes, is capable of being associated with, or could reasonably be linked to a particular person or household, including, but not limited to:

1. Identifiers such as a real name, alias, postal address, unique personal identifier, online identifier, Internet Protocol address, email address, password, account name, social security number, driver's license or state identification card number, passport number, telephone number, insurance policy number, employment, employment history, bank account number, credit card number, debit card number, or any other financial information, medical information, or health insurance information, or other similar identifiers, characteristics, or descriptors;
2. Commercial information, including records of personal property, products, or services purchased, obtained, or considered, transactions occurring over a peer-to-peer electronic cash system, or other purchasing or consuming histories or tendencies;
3. Biometric data or information (such as a fingerprint, voice print, retina or iris image, or other unique physical representation or digital representation of biometric data);
4. Internet or other electronic network activity information, including, but not limited to, browsing history, search history, and information regarding a person's or household's interaction with an internet website, application, or advertisement;
5. Geolocation data;
6. Audio, electronic, visual, thermal, olfactory, or similar information;
7. Professional or employment-related information that is not publicly available;
8. Education information, defined as information that is not publicly available personally identifiable information as defined in the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. section 1232g; 34 C.F.R. Part 99) including any amendments thereto;
9. Identifiers set forth under any state or federal consumer protection or privacy statute or law including, but not limited to, the identifiers shown in Paragraphs **1.** through **8.** above; or
10. Inferences drawn from any of the identifiers shown in Paragraphs **1.** through **9.** above to create a profile about a person or household reflecting such person's or household's preferences, characteristics, psychological trends, predispositions, behavior, attitudes, intelligence, abilities, or aptitudes.

B. The following exclusion is added to Section **IV** – Exclusions:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

Violation Of Statutes Related To Personal Data

Based upon, arising out of, or in any way involving, directly or indirectly, any action or omission that violates or is alleged to violate any federal, state, or local statute, law, rule, ordinance, or regulation, that addresses, prohibits, regulates, or limits the printing, interception, dissemination, disposal, collecting, recording, sending, transmitting, communicating, distribution, sharing, sale, storage, retaining, receiving, or protection of **Personal Data**, including, but not limited to:

1. The Illinois Biometric Information Privacy Act (BIPA);
 2. The California Consumer Privacy Act (CCPA);
 3. The California Invasion Of Privacy Act (CIPA);
 4. The New York Stop Hacks and Improve Electronic Data Security Act (SHIELD Act);
 5. The European Union General Data Protection Regulation (GDPR); and
 6. Any similar or related federal, state, or local statute, law, rule, ordinance, or regulation;
- including any amendments thereto.

However, this exclusion shall not apply to a TCPA Violation or FCRA Violation if covered under Section **II.B.1.** and **2.**

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMEND POLLUTION EXCLUSION

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

The **Pollution** exclusion under Section **IV** – Exclusions is replaced by the following:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

Pollution

Based upon or arising out of:

1. Any actual, alleged, or threatened discharge, disposal, migration, dispersal, release, presence, or escape of **Pollutants**;
2. Any directive, order, or request to test for, monitor, remediate, clean up, remove, contain, treat, detoxify, or neutralize **Pollutants**; or
3. The failure to undertake any action described in Paragraph **2.** above, or to pay for or contribute to the costs of undertaking such actions.

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

TEXAS AMENDATORY

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART
GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART (CLAIMS MADE)
MARKEL CYBER 360SM INSURANCE COVERAGE PART
MEDIA OFFENSE INSURANCE COVERAGE PART FOR PROFESSIONALS
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

In consideration of the premium paid, is it hereby understood and agreed that, if a **Claim** covered under this Policy or applicable coverage part does not require the **Insured** to consent to settlement of such **Claim**, the Company will notify the Named Insured in writing of:

1. An initial offer to settle a **Claim** against an **Insured** not later than the 10th day after the date an initial offer to settle a **Claim** is made; and
2. A settlement of a **Claim** against an **Insured** not later than the 30th day after the date a **Claim** is settled.

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DELETION OF AGGREGATE DEDUCTIBLE

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

In consideration of the premium paid, it is hereby understood and agreed that Paragraph **B.2.** Aggregate Deductible under Section **VI** – Limits Of Liability, Deductibles And Interrelated Wrongful Acts is deleted in its entirety.

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDED DEFINITION OF SOCIAL ENGINEERING INCIDENT

This endorsement modifies insurance provided under the following:

MARKEL CYBER 360SM INSURANCE COVERAGE PART

In consideration of the premium paid, it is hereby understood and agreed that Definition **PP. Social Engineering Incident** under Section **III** – Definitions is replaced by the following:

PP. Social Engineering Incident means any priming, pretexting, spoofing, or other fraudulent, manipulative, or deceptive communication received by an **Insured** within the normal course of the Named Insured's business operations, provided:

1. The **Insured** was acting in good faith reliance upon the communication that was purported to be legitimate but was, in fact, fraudulent;
2. The **Insured** followed dual authentication procedures to confirm the communication was legitimate, including confirmation by a predetermined phone number;
3. The third party that initiated the communication was acting without the knowledge, authorization, or consent of the **Insured**; and
4. The communication directed the **Insured** to transfer, pay, or deliver money, securities, bonds, or similar financial instruments with monetary value;

regardless of whether such **Social Engineering Incident** was precipitated by or was the result of **Unauthorized Access**.

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMEND MEDIA OFFENSE TO INCLUDE PROFESSIONAL SERVICES

This endorsement modifies insurance provided under the following:

MEDIA OFFENSE LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART
PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

A. The following changes apply only with respect to the MEDIA OFFENSE LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART:

1. Definition **I. Media Offense** under Section **III – Definitions** is replaced by the following:
 - I. Media Offense** means any of the offenses committed by the **Insured** in the performance of **Professional Services** or in its dissemination of **Content** for which the Named Insured is legally responsible:
 1. Libel, slander, or defamation, or any other form of disparagement;
 2. Invasion or infringement of the right of privacy or the right of publicity;
 3. Improper deep-linking, framing, web harvesting, web scraping, or data extraction;
 4. Infringement of copyright, service mark, service name, trademark, title, trade dress, trade name, or slogan, and unfair competition alleged in connection therewith;
 5. Plagiarism, piracy, or misappropriation of ideas under implied contract; or
 6. Infliction of emotional distress, mental anguish, false arrest, or malicious prosecution.
2. The following definition is added to Section **III – Definitions**:

Professional Services means those services stated in the Declarations or otherwise scheduled on this Policy rendered for others for a fee.
3. Exclusion **W. Professional Services** under Section **IV – Exclusions** is deleted in its entirety.

B. The following changes apply only with respect to the PROFESSIONAL LIABILITY INSURANCE COVERAGE PART:

1. All references to **Personal Injury** are deleted in their entirety.
2. Definition **B. Bodily Injury** under Section **III – Definitions** is replaced by the following:

B. Bodily Injury means bodily injury, sickness, or disease sustained by a person, including death resulting from any of these; however, **Bodily Injury** shall not include **Sexual Injury**.
3. Definition **Q. Personal Injury** under Section **III – Definitions** is deleted in its entirety.
4. Exclusion **R. Patents Or Trade Secrets** under Section **IV. Exclusions** is replaced by the following:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, **Additional Payment**, or **Supplementary Payment**:

R. Patents, Copyrights, Or Trade Secrets

Based upon or arising out of:

1. Infringement or inducement of infringement of copyright, patent, trademark, service mark, trade name, or trade secret or misappropriation of trade secrets or confidential or proprietary information;
2. Unfair competition based upon infringement of copyright, patent, trademark, service mark, trade name, or trade secret;
3. The value of trade secrets or confidential processing methods; or
4. Any dispute related to ownership of any intellectual property.

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

INFORMATION TECHNOLOGY SERVICES

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

In consideration of the premium paid, it is hereby understood and agreed that:

A. Section III – Definitions is amended as follows:

1. The following is added to Definition **H. Damages**:

Damages also shall not include the cost or expense incurred by the **Insured** or others for any recall of any product, good, or work.

2. Definitions **W. Professional Services** and **GG. Wrongful Act** are replaced by the following:

W. Professional Services means:

1. **Technology Services**; and
2. The Professional Services stated in the Declarations;
rendered for others for a fee.

GG. Wrongful Act means a:

1. Negligent act, error, or omission in **Professional Services** rendered or that should have been rendered by the **Insured** or by any person for whose acts, errors, or omissions the **Insured** is legally responsible;
or
2. **Software Copyright Infringement**; and
includes an **Interrelated Wrongful Act**.

3. The following definitions are added:

Software Copyright Infringement means any actual or alleged infringement of any copyright of source code or other software code written or published by the **Insured**.

Technology Services means any of the following:

1. Computer hardware or electronic component configuration, design, integration, maintenance, repair, or support;
2. Computer firmware or software configuration, design, development, integration, or support;
3. **Computer system** configuration, design, integration, or analysis;
4. Information technology:
 - a. Consulting, including security consulting and forensic investigations;
 - b. Staff augmentation; or
 - c. Outsourcing;
5. Internet service provider (ISP);

6. Local exchange carrier, competitive local exchange carrier, long distance carrier, voice over internet protocol (VOIP), or wireless carrier;
7. Network:
 - a. Hosting;
 - b. Implementation;
 - c. Management;
 - d. Security; or
 - e. Security outsourcing;
8. Data storage, hosting, processing, analysis, scrubbing, or destruction;
9. Search engine:
 - a. Services; or
 - b. Optimization;
10. Software as a service (SAAS)/application service provider (ASP), including the sale of software to a **Client**;
11. Value added re-sale of **Technology Services**, computer hardware, or software;
12. Web portal services;
13. Website:
 - a. Design; or
 - b. Hosting; or
14. Training or expert witness involving any of the above.

B. Section IV – Exclusions is amended as follows:

1. Exclusion **R. Patents Or Trade Secrets** does not apply to **Software Copyright Infringement**.
2. Exclusion **X. Unintentional Data Compromise** does not apply to the extent such **Claim** is based upon or arises out of any **Wrongful Act** or **Personal Injury** of the **Insured** in the performance of **Technology Services**.
3. The following exclusions are added:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

Unsolicited Communications

Based upon or arising out of any violation of any federal, state, or local statute, law, rule, ordinance, or regulation that addresses, prohibits, or limits the dissemination, interception, receiving, sending, transmitting, communicating, printing, disposal, collecting, recording, or distribution of information or other material including, but not limited to, the:

1. Telephone Consumer Protection Act of 1991 (TCPA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation;
2. CAN-SPAM Act of 2003 and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation; or
3. Fair Credit Reporting Act (FCRA) and amendments thereto or any similar or related federal, state, or local statute, law, rule, ordinance, or regulation including, but not limited to, the Fair and Accurate Credit Transactions Act of 2003 (FACTA);

except as provided by Paragraph **B. Additional Payments** of Section **II – Insuring Agreements**.

Value Of Money Or Securities

For the value of any money or securities transferred to or from any entity or natural person.

All other terms and conditions remain unchanged.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MEDICAL BILLING OR REVENUE CYCLE MANAGEMENT

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

SCHEDULE

- | |
|---|
| ☒ Medical Billing |
| ☐ Revenue Cycle Management |

A. Section III – Definitions is amended as follows:

1. The following is added to Definition **W. Professional Services**:

Professional Services includes those services selected by an "X" in the Schedule of this endorsement rendered for others for a fee.

2. The following definitions are added:

Medical Billing means:

1. Rendering medical services into billable charges;
2. Properly coding diagnoses and procedures; and
3. Submitting claims for direct payment or reimbursement of billable medical charges to insurance companies or insurance programs, whether private, public, federal, or state.

Revenue Cycle Management means:

1. **Medical Billing**;
2. Determining patient balances and collecting payments;
3. Collecting patient registration information for inpatient or outpatient procedures to establish a medical record number and meet applicable regulatory, financial, and clinical requirements;
4. Applying or rejecting payments through remittance processing;
5. Collecting payments from third-party insurers; and
6. Performing utilization review in the examination of the necessity of medical services.

B. With respect only to the coverage provided by this endorsement, Section IV – Exclusions is amended as follows:

1. Exclusions **E. Conversion Or Misappropriation** and **H. Failure To Pay Or Collect** are replaced by the following:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

E. Conversion Or Misappropriation

Based upon or arising out of any conversion, misappropriation, commingling, defalcation, theft, disappearance, or insufficiency in the amount of escrow funds, monies, monetary proceeds, funds, property, or any other assets, securities, negotiable instruments, or any other thing of value. This exclusion will apply regardless of which individual, party, or organization actually or allegedly committed or caused, in whole or in part, the conversion, misappropriation, commingling, defalcation, theft, disappearance, or insufficiency in amount.

H. Failure To Pay Or Collect

Based upon or arising out of any inability or failure of any party to:

1. Pay or collect monies, except in the performance of **Professional Services**; or
 2. Pay or collect federal, state, county, or local tax, including, but not limited to, income tax, sales tax, or property tax.
2. The following exclusions are added:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment, or Supplementary Payment:

Material Representation Or Statement

Based upon or arising out of a material representation or statement, including, but not limited to, warranties or guarantees whether express, implied, or otherwise, made by the **Insured** pertaining to the availability of funds, specified rate of return or interest, or the future value of assets or recoveries.

Owned, Purchased, Or Acquired Debt

Based upon or arising out of the collection of debt owned, purchased, or acquired by the Named Insured or any parent organization, **Subsidiary**, division, or organization affiliated with the **Insured**.

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT

Except with respect to any policy issued in any state in which the insurer is licensed as an admitted insurer to transact business, it is agreed that in the event of the failure of the insurer to pay any amount claimed to be due hereunder, the insurer, at the request of the named insured, will submit to the jurisdiction of a court of competent jurisdiction within the United States and will comply with all requirements necessary to give such court jurisdiction and all matters arising hereunder shall be determined in accordance with the law and practice of such court. Nothing in this clause constitutes or should be understood to constitute a waiver of the insurer's rights to commence an action in any court of competent jurisdiction in the United States, to remove an action to a United States District Court, or to seek a transfer of a case to another court as permitted by the laws of the United States or of any state in the United States. It is further agreed that service of process in such suit may be made upon Secretary, Legal Department, Markel Service, Incorporated, 10275 West Higgins Road, Suite 750, Rosemont, Illinois 60018, and that in any suit instituted against the insurer upon this policy, the insurer will abide by the final decision of such Court or of any Appellate Court in the event of an appeal.

Further, pursuant to any statute of any state, territory, or district of the United States which makes provision therefor, the insurer hereby designates the Superintendent, Commissioner, or Director of Insurance or other official specified for that purpose in the statute, or his/her successor or successors in office, as its true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by or on behalf of the named insured or any beneficiary hereunder arising out of this policy, and hereby appoints the above-named as the person to whom the said statutory designee is authorized to mail such process or a true copy thereof.

EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – UNMANNED AIRCRAFT

This endorsement modifies insurance provided under the following:

GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART

GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART (CLAIMS MADE)

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART

PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS

In consideration of the premium paid, it is understood and agreed that the policy is amended as follows:

A. The PROFESSIONAL LIABILITY INSURANCE COVERAGE PART and PROFESSIONAL LIABILITY INSURANCE COVERAGE PART FOR INFORMATION TECHNOLOGY PROFESSIONALS are amended as follows:

1. The following is added to Section **III** – Definitions :

Unmanned Aircraft means an aircraft that is not designed, manufactured, or modified after manufacture, to be controlled directly by a person from within or on the aircraft.

2. The following is added to Paragraph **C.** of Section **IV** – Exclusions:

With respect to all Coverages under this Coverage Part, this Coverage Part does not apply to any **Claim**, Additional Payment or Supplementary Payment:

C. Based upon, arising out of or in any way involving:

The ownership, maintenance, use or entrustment to others of any aircraft that is an **Unmanned Aircraft**. Solely for purposes of this exclusion, “use” includes operation of or exercise of any control over an **Unmanned Aircraft**; and the **Insured’s** authorization, direction or acquiescence in the operation or control of **Unmanned Aircraft** by any person or entity; and loading or unloading of any such **Unmanned Aircraft**. This exclusion applies even if any such **Claim** alleges negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by the **Insured**, involving the ownership, maintenance, use or entrustment to others of any aircraft that is an **Unmanned Aircraft**.

B. The GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART and the GENERAL LIABILITY INSURANCE FOR PROFESSIONALS COVERAGE PART (CLAIMS MADE) are amended as follows:

1. Paragraph **B.** of Section **III** – Definitions is replaced by the following:

B. Aircraft Products means any aircraft whether or not heavier than air, including manned and **Unmanned Aircraft**, spacecraft and missiles, and any ground support, guidance, control or communications equipment used in connection therewith, and also includes parts, supplies, or equipment installed in or on or used in connection with aircraft, including tools, training aids, instructions, manuals, blueprints and other data, engineering and other advice, services and labor used in the operation, maintenance or manufacture of **Aircraft Products**.

2. The following is added to Section **III** – Definitions:

Unmanned Aircraft means an aircraft that is not designed, manufactured, or modified after manufacture, to be controlled directly by a person from within or on the aircraft.

3. The following is added to Paragraph **A.2.** of Section **IV** – Exclusions:

A. With respect to all Coverages, this Coverage Part does not apply to any **Claim** or Supplementary Payment:

2. Based upon, arising out of or in any way involving:

Bodily Injury, Property Damage or Personal And Advertising Injury arising out of the ownership, maintenance, use or entrustment to others of any aircraft that is an **Unmanned Aircraft**. Solely for purposes of this exclusion, "use" includes operation of or exercise of any control over an **Unmanned Aircraft**; and the **Insured's** authorization, direction or acquiescence in the operation or control of **Unmanned Aircraft** by any person or entity; and loading or unloading of any such **Unmanned Aircraft**. This exclusion applies even if any such **Claim** alleges negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by the **Insured**, if the **Occurrence** which caused the **Bodily Injury or Property Damage** or the offense which caused the **Personal And Advertising Injury** involved the ownership, maintenance, use or entrustment to others of any aircraft that is an Unmanned Aircraft.

4. Paragraph **B.1.f.** of Section **IV** – Exclusions is replaced by the following:

B. With respect to Paragraph **A. Bodily Injury And Property Damage Liability** of Section **II** – Insuring Agreements, this Coverage Part does not apply to any **Claim**:

1. Based upon or arising out of:

f. Bodily Injury or Property Damage arising out of ownership, maintenance, operation, use or entrustment to others or loading or unloading of:

(1) Any **Automobile**, aircraft other than an **Unmanned Aircraft** or watercraft owned or operated by or rented or loaned to any **Insured**; or

(2) Any other **Automobile**, aircraft other than an **Unmanned Aircraft** or watercraft operated by any person in the course of employment by the Named Insured;

This exclusion applies even if any such **Claim** alleges negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by the **Insured**, if the **Occurrence** which caused the **Bodily Injury or Property Damage** involved the ownership, maintenance, use or entrustment to others of any aircraft other than **Unmanned Aircraft, Automobile** or watercraft that is owned or operated by or rented or loaned to any **Insured**;

however, this exclusion shall not apply to:

(1) The parking of an **Automobile** on premises owned by, rented to or controlled by the Named Insured or on ways next to such premises, if such **Automobile** is not owned by or rented or loaned to any **Insured**;

(2) A watercraft while ashore on premises owned by, rented to or controlled by the Named Insured; or

(3) A watercraft that is less than 26 feet in length, that is not owned by the Named Insured and that is not being used to carry persons or property for a charge;

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

TRADE OR ECONOMIC SANCTIONS

The following is added to this policy:

Trade Or Economic Sanctions

This insurance does not provide any coverage, and we (the Company) shall not make payment of any claim or provide any benefit hereunder, to the extent that the provision of such coverage, payment of such claim or provision of such benefit would expose us (the Company) to a violation of any applicable trade or economic sanctions, laws or regulations, including but not limited to, those administered and enforced by the United States Treasury Department's Office of Foreign Assets Control (OFAC).

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM (CASUALTY)

This endorsement modifies all commercial liability coverage included in the policy that is subject to Sec. 102, (12) of the federal Terrorism Risk Insurance Act of 2002, as amended:

A. Subject to Paragraphs **B.** and **C.** below, this policy provides coverage for certified acts of terrorism.

As used in this endorsement, certified act of terrorism means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a certified act of terrorism include the following:

- 1.** The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
- 2.** The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

B. If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and the insurer deductible under the Terrorism Risk Insurance Act has been met, the insurer shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

C. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this policy, such as losses excluded by a nuclear hazard, war, or military action exclusion.

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF YOUR POLICY IN RESPONSE TO THE DISCLOSURE REQUIREMENTS OF THE TERRORISM RISK INSURANCE ACT. THIS ENDORSEMENT DOES NOT GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.

CONFIRMATION OF CERTIFIED ACTS OF TERRORISM COVERAGE – TERRORISM RISK INSURANCE ACT

SCHEDULE

Terrorism Premium:	\$0
Federal Share Of Terrorism Losses:	80%

Disclosure Of Premium

We have notified you that under the Terrorism Risk Insurance Act we must make certified acts of terrorism coverage available in the policies we offer.

Certified acts of terrorism coverage has been provided because either you have indicated to us or your agent that certified acts of terrorism coverage is desired or we have provided certified acts of terrorism coverage at no additional charge. If you have chosen to purchase certified acts of terrorism coverage, the premium charge is the amount shown in the Schedule of this notice.

If there is no premium shown above or the premium shown is \$0, there is no separate premium for the coverage during this policy period.

Disclosure Of Federal Participation In Payment Of Terrorism Losses

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals a percentage (as shown in the Schedule of this notice) of that portion of the amount of such insured losses that exceeds the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AON BROADENED MEDIA LIABILITY

This endorsement modifies insurance provided under the following:

MARKEL CYBER 360SM INSURANCE POLICY

In consideration of the premium paid, it is hereby understood and agreed that:

A. Definition AD. Media Wrongful Act under Section II – Definitions is replaced by the following:

AD. Media Wrongful Act means any of the below acts in the course of publishing or broadcasting communicative or informational content in any form:

1. Defamation or other tort related to disparagement or harm to the character, reputation, or feelings of any person or organization, including libel, slander, product disparagement, trade libel, or injurious falsehood;
2. Infliction of emotional distress, outrage, or outrageous conduct;
3. Invasion, infringement, or interference with rights of privacy or publicity, including false light, public disclosure of private facts, intrusion, eavesdropping, or misappropriation of name or likeness;
4. Infringement of copyright, plagiarism, piracy, or misappropriation of ideas under implied contract, including allegations of such infringement resulting from breach of the scope of a license to use any of the foregoing intellectual property; however, this Paragraph 4. does not include infringement of a software copyright; or
5. Unfair competition, but only if alleged in conjunction with any of the acts listed in Paragraphs 1. through 4. above.

B. Exclusion 1.a. Infringement of Intellectual Property in Paragraph B. Exclusions Applicable to Specific Insuring Agreements under Section III – Exclusions does not apply to the Media Liability Insuring Agreement.

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AON CYFI PANEL ENHANCEMENT

This endorsement modifies insurance provided under the following:

MARKEL CYBER 360SM INSURANCE POLICY

SCHEDULE

Vendor	Rate
Stroz Friedberg	\$350 per hour
Supplemental Extended Reporting Period	
Duration	Premium Percentage
1 Year	75%
2 Years	150%
3 Years	175%
4 Years	200%
5 Years	225%
6 Years	250%

- A.** The phrase "first discovered during the **Policy Period**" in Subparagraphs **1.** through **7.** of Paragraph **A.** First Party Coverages under Section **I** – Insuring Agreements is replaced by the following:
- First discovered during the **Policy Period** and reported to the Company pursuant to Paragraph **A.1.a.** under Section **VII** – Reporting, Notice, and Cooperation; or
 - First occurs on or after the **Retroactive Date** and before the end of the **Policy Period** and reported to the Company pursuant to Paragraph **A.1.b.** under Section **VII** – Reporting, Notice, and Cooperation.
- B.** Section **II** – Definitions is amended as follows:
- Definition **J. Control Group** is replaced by the following:

J. Control Group means the **Named Insured's** chief executive officer (CEO), chief financial officer (CFO), general counsel, risk manager, or their functional equivalents if such a title does not exist at the **Named Insured**.
 - Paragraph **3.a.** of Definition **R. eCrime Loss** is deleted.
- C.** The following is added to Exclusion **A.13.** Insured Versus Insured and Related Parties under Section **III** – Exclusions:
- Paragraph **a.** of this exclusion also does not apply to a **Claim** brought by an **Insured** described in Paragraph **6.** of the definition of **Insured** as a customer of the **Named Insured**.
- D.** Paragraph **B.** Consent to Settlement under Section **VI** – Defense, Claim Expenses, and Settlements is replaced by the following:
- B. Consent to Settlement**

The Company will not settle any **Claim** without the prior written consent of the first **Named Insured**, but the Company will have the right to recommend a settlement of any **Claim**. If the first **Named Insured** refuses to settle such **Claim** pursuant to the Company's recommendations and acceptable to the claimant, then the Company's liability with respect to such **Claim** will not exceed the sum of:

1. The amount of **Damages** for which the Company could have settled such **Claim**;
2. **Claim Expenses** incurred as of the date such settlement was proposed in writing by the Company to the first **Named Insured**; and
3. 80% of all covered **Damages** and **Claim Expenses** incurred thereafter on account of such **Claim**.

Such amounts are subject to the applicable Insuring Agreement Each Claim Limit of Insurance and the Policy Combined Aggregate Limit of Insurance shown in the Declarations.

- E. Paragraph A. Event or Claim Reporting under Section VII – Reporting, Notice, and Cooperation is replaced by the following:

A. Event or Claim Reporting

It is a condition precedent to coverage that:

1. Under First Party Coverages, the **Insured** must notify the Company in writing of an **Event**:
 - a. That is first discovered during the **Policy Period** as soon as practicable after any member of the **Control Group** discovers such **Event**, but no later than 90 days after such discovery or the end of the **Policy Period**, whichever is later. Notice must contain all reasonably obtainable information concerning the time, place, and other details of the **Event**; or
 - b. That first occurs prior to the end of the **Policy Period** and is discovered during the Extended Reporting Period, as soon as practicable after any member of the **Control Group** first discovers such **Event**, but no later than 90 days after the end of the **Policy Period** or during any applicable Extended Reporting Period; and
2. Under Third Party Liability Coverages, the **Insured** must notify the Company in writing of a **Claim** as soon as practicable after any member of the **Control Group** becomes aware of such **Claim**, but no later than 90 days after the end of the **Policy Period** or during any applicable Extended Reporting Period.

Notice of a **Claim** or **Event** to the Markel Cyber Support Hotline shown in the Notice to Policyholders Claim Reporting will be considered notice to the Company.

If the **Insured** fails to provide notice of a **Claim** to the Company as specified above, the Company will not be entitled to deny coverage for the **Claim** based solely upon late notice unless the Company can demonstrate its interests were materially prejudiced by reason of such late notice

- F. The first paragraph in Paragraph E. under Section VIII – Extended Reporting Periods is replaced by the following:

- E. A Supplemental Extended Reporting Period is available for the Duration shown in the Schedule of this endorsement, but only by an endorsement and for an extra charge. This Supplemental Extended Reporting Period starts with the end of the **Policy Period**.

- G. Section IX – Changes in Ownership is amended as follows:

1. Paragraph A. New Organizations is replaced by the following:

A. New Organizations

If, before or during the **Policy Period**, the **Named Insured** acquires or creates a new entity or acquires an entity by merger or consolidation to perform substantially similar operations, coverage under this Policy will automatically apply to the new entity. Provided the **Named Insured** provides written notice of such transaction to the Company, the Company must provide written notice to the **Named Insured** that such operations are not substantially similar to the **Named Insured's** operations within 7 days of the written notice. Otherwise, coverage under this Policy will apply to the new entity as otherwise afforded subject to the following:

1. The first **Named Insured** will use its best effort to give written notice of such transaction to the Company within 90 days after the effective date of such transaction and provide the Company with such information in connection therewith as the Company may deem necessary;

2. Coverage is afforded only until 90 days after the **Named Insured** acquired or created the entity or the end of the **Policy Period**, whichever is earlier; however, this condition will not apply if such entity's total consolidated revenues as of the date of such acquisition will be no more than 25% of the total consolidated revenues of the **Insured** according to the most recently filed financial statements;
 3. With respect only to the Media Liability and Technology Professional Liability Insuring Agreements, the **Retroactive Date** applicable to any **Wrongful Act** against such entity newly acquired or newly created by the **Named Insured** will be the date on which the **Named Insured** newly acquired or newly created such entity; and
 4. No person or organization is an **Insured** with respect to the conduct of any current or past partnership, joint venture, or limited liability company that is not shown as a **Named Insured** in the Declarations or included in the definition of **Subsidiary**.
- H. Paragraph 1.b. of Condition F. Cancellation And Nonrenewal under Section X – Other Conditions is replaced by the following and supersedes any provision to the contrary in any state change endorsement:
- b. This Policy may be canceled by the Company only for nonpayment of premium by mailing or delivering to the first **Named Insured**, at the address shown in the Declarations, written notice stating when such cancellation will be effective, which will be no less than 10 days prior to cancellation.
- I. The Company agrees to the use of a Vendor shown in the Schedule of this endorsement and selected by the **Named Insured**. However, the rates charged by the Vendor incurred may not exceed the Rates shown in the Schedule of this endorsement. Any amounts incurred in excess of such Rates shown in the Schedule of this endorsement will be the responsibility of the **Insured**.

With respect to this Paragraph H.:

1. Paragraph 5. of Definition W. **Incident Response Expense** under Section II – Definitions is replaced by the following:
 5. For any other services not described in Paragraphs 3. or 4. above that are required by a **Privacy Regulation** to respond to the **Security Event** or, at the sole discretion of the Company, recommended by a legal services provider from a Vendor shown in the Schedule of this endorsement; and
2. Subparagraph 2. of Paragraph D. Cyber Extortion Event Conditions under Section VII – Reporting, Notice, and Cooperation is replaced by the following:
 2. Engage, with the Company's prior written consent, such consent not to be unreasonably withheld or delayed, a Vendor shown in the Schedule of this endorsement.

All other terms and conditions remain unchanged.



EVANSTON INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AON STREAMLINED RENEWAL WHEN CONDITIONS MET

This endorsement modifies insurance provided under the following:

MARKEL CYBER 360SM INSURANCE POLICY

SCHEDULE

Premium Increase Percentage:	0%
Revenue Change Percentage:	20%

In consideration of the premium paid, it is hereby understood and agreed that the following Condition is added to Section X – Other Conditions:

Streamlined Renewal When Conditions Met

The Company guarantees renewal of this Policy with an annualized premium increase not to exceed the Premium Increase Percentage shown in the Schedule of this endorsement of the expiring annualized policy premium if each of the following conditions are met:

1. No **Events** have been discovered during the **Policy Period** that exceed or are expected to exceed 50% of the applicable Retention shown in the Declarations;
2. There have been no material changes to the business operations; and
3. The **Named Insured's** revenues have not increased or decreased by more than the Revenue Change Percentage shown in the Schedule of this endorsement of the expiring exposure.

In the event of the **Insured's** failure to meet all of the conditions above, this endorsement does not apply, and the renewal premium will be subject to standard underwriting considerations.

All other terms and conditions remain unchanged.